

CÔTE D'IVOIRE:

Needs of IDPs must not be forgotten as peace process edges forward

A profile of the internal displacement situation

18 May, 2009

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Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

Based on its monitoring and data collection activities, the Centre advocates for durable solutions to the plight of the internally displaced in line with international standards.

The Internal Displacement Monitoring Centre also carries out training activities to enhance the capacity of local actors to respond to the needs of internally displaced people. In its work, the Centre cooperates with and provides support to local and national civil society initiatives.

For more information, visit the Internal Displacement Monitoring Centre website and the database at www.internal-displacement.org.

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OVERVIEW

Needs of IDPs must not be forgotten as peace process edges forward

Some people internally displaced by the conflict which erupted in Côte d'Ivoire in 2002 have continued to return to home areas, mostly without assistance. However little or no data is available on the decision of the IDPs to resettle elsewhere in the country or to integrate in the place to which they were displaced. With the social fabric still fragile, especially in the west where tensions between communities are still high, some of these attempted returns have not been sustainable. Land issues continue to cause most tensions, and with poverty at the highest levels in the past decades, access to land has become ever more important. At the same time, the ongoing illegal occupation of IDP's homes in the north has impeded the achievement of durable solutions there.

Progress in the implementation of the Ouagadougou Accord has been irregular, and the planned presidential election has been deferred once more, to November 2009. The presence of militias and the widespread availability of small arms, coupled with the lack of progress in disarming former Forces Nouvelles rebels, all threaten long-term peace and stability. The Forces Nouvelles have gained effective economic control in the north thanks to their control over natural resources, while human rights abuses there have continued with impunity in the absence of an operational criminal justice system.

The integration of guarantees for the protection of IDPs into the ongoing peace process, and a commonly-agreed strategy for the achievement of durable solutions, should be the priorities for both the government and the international community. Special safeguards of IDP's rights should be included in the implementation of all upcoming reforms, including the one on land ownership.

Background and causes of displacement

Internal armed conflict broke out in Côte d'Ivoire in 2002 following a failed coup by disaffected soldiers. The rebels of the Patriotic Movement of Côte d'Ivoire (*Mouvement Patriotique pour la Côte d'Ivoire*, or MPCl) gained control of much of the centre and the north of the country, while government forces held the south. Hundreds of thousands of civilians were displaced, with many seeking refuge in the southern city of Abidjan. Further displacements occurred later that year when two new rebel factions, later to merge with the MPCl and to become known as the New Forces (*Forces Nouvelles* or FN), emerged in western Côte d'Ivoire. The Ouagadougou Peace Accord signed in March 2007 under the auspices of the Economic Community of West African States (ECOWAS) brought the conflict to an end, but there has since been slow progress in the peace process. Control of the different areas of the country is effectively shared between the government and the FN in a situation that analysts have described as "no war, no peace" (ISS, 11 February 2009).

At the heart of the conflict lay tensions over access to land and its economic exploitation between locals, economic migrants from other areas of the country, and workers from other West African countries. These were exacerbated by the politicisation of ethnicity (CRISE, March 2007). From independence until the 1990s, Côte d'Ivoire was West Africa's most prosperous country. A key to the economic development of the country was the availability of foreign labour, which was further encouraged by liberal laws on land ownership, under which the land belonged to those cultivating it. However, existing local tensions were not tackled in any sustainable way (UN Commission on Human Rights, 22 December 2004).

Facing increasing instability following a sharp decline in the commodity prices of coffee and cocoa, Côte d'Ivoire's main exports, President Henri Konan Bédié started politicising ethnicity in the 1990s and introduced the concept of "*Ivoirité*" in a bid to hang on to power. According to this new concept of national identity, a citizen of Côte d'Ivoire had to be born of Ivorian parents who were members of one of the country's "autochthonous" (indigenous) ethnic groups, had to belong to one of the country's ethno-linguistic and cultural groups, and had to share the same socio-cultural experience as the Ivorian people.

Developments since March 2007

After several failed peace agreements, the Ouagadougou Peace Accord was praised as a concrete attempt at reviving the peace process (Government of Burkina Faso, 14 January 2008; AU, 19 December 2007). However, the process has since suffered from delays in its implementation, including the repeated postponement of national elections. In May 2009, Prime Minister Soro indicated 29 November 2009 as the latest planned polling day (Reuters, 14 May 2009). In his address to the UN Security Council, the Special Representative of the Secretary-General for Côte d'Ivoire highlighted how the momentum for elections had weakened considerably, while the de facto reunification of the country had become a priority (UN SC, 28 April 2009).

Although since 2007 a new unity government has been formed, the dividing line between north and south dismantled and the process of identifying the population begun, FN commanders in the centre-north of the country remain in effective control of the local administration and no progress has been made in the disarming and dismantling of militias in the west (UN SC, 13 April 2009). The redeployment of the justice system has suffered from these setbacks in the disarmament, demobilisation and reintegration (DDR) programme, while both sides have reportedly contravened the UN arms embargo (UN SC, 8 April 2009).

It is still not clear whether the benefits of implementing the Ouagadougou Accord outweigh "existing incentives for the conflict's protagonists to maintain the situation of neither peace nor war" (Conciliation Resources, 2008). Some analysts have maintained that the status quo does indeed benefit both sides (ICG, 9 March 2009). The results of the elections are highly unpredictable, while control of resources such as cocoa enables financial returns significantly higher than the rewards for DDR.

IDP numbers

Given the patterns of displacement, with almost all people being hosted by friends and family, and the extreme scarcity of information from the areas under ongoing FN control in the north, reliable statistics about the number of internally displaced people (IDPs) across the country are difficult to obtain. A UNFPA-funded survey, carried out by the national statistics agency ENSEA in late 2005 and published in March 2006, put the total number of IDPs in five government-held regions at 709,377. In its appeal to fund the response to "critical humanitarian needs" in 2009, the UN uses this number for ease of reference (OCHA, 22 January 2009). However, taking into account reported return movements since the Ouagadougou Accord was signed in 2007 (UN SC, 28 April 2009; OCHA, October 2008), the current number is likely to be lower.

Meanwhile, inter-communal tensions have continued to lead to violence and short-term displacement, particularly in the west of the country (US DoS, 25 February 2009). According to data released by the NGOs International Rescue Committee (IRC) and CARE, there were some 27,000 IDPs around Zou, Diéouzon and Duékoué in the Moyen Cavally and Dix-huit Montagnes regions by the end of 2008 (OCHA, 13 January 2009).

Return movements

Since the signing of the Ouagadougou Peace Accord, some 76,000 IDPs have returned to their areas of origin in the west (UN SC, 28 April 2009). According to rapid assessments conducted in the departments of Bloléquin, Bangolo, Man and Biankouma between April and October 2008, all four departments had witnessed the return of households within the previous three months, though to a lesser extent in the sub-prefecture of Sangouine and in the department of Biankouma (NRC, December 2008). The villages where the rates of return appeared greatest were in the department of Bloléquin and in the subprefectures of Zou, Zeo and Diehouzon.

Most of the 24,000 civil servants displaced have been redeployed to the former FN areas, although with mixed results (UN SC, 28 April 2009). Generally, return movements have been only partially documented and there is no reliable data on their total number. Even scarcer is the data on IDPs who have resettled to another area or integrated in the place to which they were displaced.

Return movements have mostly been spontaneous (OCHA, February 2009), but some IDPs planning to return have received support. The government and international agencies have organised “go and see” visits to enable IDPs to gather and share information on the situation in areas of return (OCHA, 22 January 2009). Groups displaced around the towns of Guiglo and Bloléquin in the west have made arrangements to participate more in decision-making processes (OCHA, 2008). Their five IDP focal points and sixteen IDP leaders, who have also been trained on basic protection issues, have played an important role in facilitating returns.

Obstacles to return

Not all return movements have been smooth, and a number of obstacles persist. The situation in the western commune of Zéaglo illustrates the barriers to the sustainability of return movements. In May 2008, the non-displaced community and returnees had agreed to a formula to share the land (UNOCI, 6 August 2008). However, tensions over property rights escalated, leading to violence and secondary displacement in November (IRIN, 28 November 2008). The failure of the agreement has highlighted the need for continued reconciliation efforts and a more systematic approach to land issues.

The 1998 Rural Land Act was adopted in order to improve security of tenure by certifying land rights and clearly demarcating village boundaries, while acknowledging customary rights and translating them into statutory ownership titles. However, its complexity and the various interests at stake may prevent its effective implementation and the resolution of the frequent disputes. In September 2008, the government launched a new drive for the delivery of land certificates (Fraternité Matin, 15 September 2008), and in this context, careful consideration must be given to the rights of IDPs.

Unresolved claims to land are indeed a powerful obstacle to sustainable returns. Land disputes still constitute a source of inter-communal conflict, particularly in western Côte d'Ivoire where new migrants have occupied plots left vacant. Rapid assessments in the Moyen Cavally and Dix-Huit Montagnes regions have underlined the prevalence of land conflicts, with more than half (and in some areas practically all) of the respondents highlighting the problem in all of the sub-prefectures surveyed (NRC, December 2008/Moyen Cavally & Dix-Huit Montagnes). There are also tensions over land in the north, where a number of property disputes (mainly related to illegal occupation) have been reported in urban centres (NRC, December 2008/Vallée du Bandama).

Although the country has remained relatively peaceful, there are a number of threats to stability and therefore to the sustainable solution of the internal displacement situation. The north has been “fractured into a series of politico-military commands”, sometimes clashing over access to economic resources (UN SC, 8 April 2009). The redeployed administration has to compete with

them for legitimacy (AFP, 15 January 2009), while returnees cannot count on regular services and criminality remains widespread. Security forces and local civilian “self-defence” committees have continued to erect roadblocks on the main roads to extort money, and migrant workers have reportedly been at a higher risk of harassment (US DoS, 25 February 2009). Assaults and ambushes targeting returnees were frequent in 2008, and led in some instances to incidents of murder and rape (OCHA, 22 January 2009).

Protection and humanitarian concerns

The identification and voter registration process has made notable progress, but with delays. Although it started in September 2008 with a planned end date of 28 February 2009, by 23 February only 56 per cent of the total estimated population had been covered (Le Nouveau Réveil, 27 February 2009). As a preceding step, mobile courts (*audiences foraines*) had issued auxiliary judgments (*jugements supplétifs*) in place of birth certificates for those whose birth had never been registered (GoCdl, September 2007). It is not clear how many IDPs have been unable to attend the mobile courts in their place of birth, and consequently risk being disenfranchised.

According to a study by the national statistical institute (INS), almost half of the population was living below the poverty threshold of less than \$1.25 per day at the end of 2008, the worst indicator for the past 20 years (IRIN, 3 December 2008). Poverty was most widespread in the areas most affected by the internal displacement situation, including the centre, the north, the north-west and some parts of Abidjan. A 2008 assessment conducted by the World Food Programme and FAO found significant food insecurity in the northern Savanes region, where 12 per cent of rural households were severely food insecure, while 15 per cent of the surveyed households in Moyen Cavally region were moderately food-insecure (OCHA, 22 January 2009).

In the face of such poverty, displaced girls in Abidjan between the ages of ten and 14 were found to be under considerable pressure to find income and risk sexual exploitation as waitresses in bars or nightclubs (IRIN, 29 September 2008). Violence against women and girls is of general concern, especially in the west, where humanitarians have reported a rise in the past year and a half. It is unclear whether there has been an actual increase in incidents of rape and other sexual violence since 2007 or whether there has only been an increased reporting of cases (IRIN, 21 October 2008). However, in all cases, perpetrators reportedly enjoy impunity (UN SC, 13 April 2009).

National and international responses

The declared overarching goal of the government’s IDP plan is the return of all displaced people to their original homes. The Ouagadougou Accord focuses on the drafting of a national strategy document to facilitate the return of IDPs, and remains silent on the right to resettle in another part of the country or integrate locally, as prescribed in the Guiding Principles on Internal Displacement.

Some IDPs have benefited from government support to return home. The government launched a project to this end from 2007 until February 2009 (Fraternité Matin, 20 April 2009). The project was implemented by the Ministry of Solidarity and War Victims, the government focal point on IDP issues, with the support of the Swedish government and UNDP. 2,407 internally displaced heads of households reportedly benefited both from logistical and material assistance for their return.

Confusion over the roles and responsibilities of different government bodies has hampered the national response. An inter-ministerial committee was set up in 2007 to coordinate the protection of and assistance to the country’s IDPs, but it has consistently suffered from a broad lack of high-

level participation. Elements of a national legal framework upholding the rights of IDPs, including a bill defining compensation mechanisms for war victims including IDPs, were still awaiting signature in April 2009, years after they were initially drafted. In April 2009, the Minister of Solidarity and War Victims publicly voiced its frustration over the lack of engagement of the rest of the government and the limited financial commitment in support of IDPs (Fraternité Matin, 20 April 2009). However, having cleared its arrears with most of its multilateral creditors and having gained the approval of the International Monetary Fund (IMF) for a three-year arrangement under the Poverty Reduction and Growth Facility (PRGF) in March 2009, the government should now have more room for higher spending on pro-poor policies and post-conflict needs (IMF, 27 March 2009).

Meanwhile, the humanitarian community has decided to focus its resources in 2009 on IDP protection and resettlement in the west, and nutrition and food security in the north (OCHA, 22 January 2009). Other early recovery and development needs would be addressed by other bodies and funding mechanisms, such as the two trust funds set up by UNDP (one for the elections and the other for the larger government programme on crisis recovery) in an effort to facilitate external funding (OCHA, 3 July 2008). Operational agencies have increasingly shifted to early recovery activities, and the humanitarian community has issued an appeal entitled *Critical Humanitarian Needs* instead of a CAP for 2009.

The government and the international community have tried to include guarantees for the sustainable return, resettlement and reintegration of IDPs in the UN Development Assistance Framework (UNDAF) for the period from 2009 to 2013, to “consolidate peace and contribute to durable and equitable economic recovery” (UN, 3 July 2008). The UNDAF, the first UN joint planning exercise in Côte d'Ivoire since the crisis, recognises that challenges such as the sustainable return of IDPs will not be resolved if the causes of their displacement are not addressed. Foremost among these are access to formal legal identity and access to land. At the same time, comprehensive mapping of return movements and assessment of both returnees' needs and IDP's intentions should be undertaken.

CAUSES AND BACKGROUND

Background

A chronology of key events (2009)

BBC News, 5 November 2008

"Independence

1960 - France grants independence under President Felix Houphouet-Boigny. He holds power until he dies in 1993.

1990 - Opposition parties legalised; Houphouet-Boigny wins Ivory Coast's first multiparty presidential election, beating Laurent Gbagbo of the Ivorian Popular Front (FPI).

1993 - Henri Konan Bedie becomes president following the death of Houphouet-Boigny.

1995 October - Bedie re-elected in a ballot that is boycotted by opposition parties in protest at restrictions imposed on their candidates.

1999 - July - Alassane Ouattara, a Muslim, leaves job at International Monetary Fund and returns to run for president in 2000; his plan to challenge Bedie splits country along ethnic and religious lines. Opponents say he is national of Burkina Faso, not Ivory Coast.

Coup

1999 - Bedie overthrown in military coup led by Robert Guei. Bedie flees to France.

2000 October - Guei proclaims himself president after announcing he has won presidential elections, but is forced to flee in the wake of a popular uprising against his perceived rigging of the poll.

2000 October - Laurent Gbagbo, believed to be the real winner in the presidential election, is proclaimed president. Opposition leader Alassane Outtara, excluded from running in the poll, calls for a fresh election.

2000 October - Fighting erupts between Gbagbo's mainly southern Christian supporters and followers of Outtara, who are mostly Muslims from the north.

2000 December - President Gbagbo's Ivorian Popular Front (FPI) emerges as the biggest single party in parliamentary elections.

2001 January - Attempted coup fails.

2001 March - President Gbagbo and opposition leader Ouattara meet for the first time since violence erupted between their supporters in October 2000 and agree to work towards reconciliation.

2001 March - Calls for fresh presidential and legislative elections after Alassane Ouattara's party gains majority at local polls.

2001 October - President Gbagbo sets up National Reconciliation Forum. General Guei refuses to attend in protest against the arrest of his close aide Captain Fabien Coulibaly.

2001 November - Opposition leader Alassane Ouattara returns, ending year-long exile in France and Gabon.

2002 August - Ouattara's RDR opposition party given four ministerial posts in new government.

Rebellion

2002 19 September - Mutiny in Abidjan by soldiers unhappy at being demobilised grows into full-scale rebellion, with Ivory Coast Patriotic Movement rebels seizing control of the north.

2002 October-December - Short-lived ceasefire in October gives way to further clashes and battle for key cocoa-industry town of Daloa. Previously unknown rebel groups seize towns in west.

2003 January - President Gbagbo accepts peace deal at talks in Paris. Deal proposes power-sharing government.

Power-sharing

2003 March - Political parties, rebels agree on new government to include nine members from rebel ranks. "Consensus" prime minister, Seydou Diarra, tasked with forming cabinet.

2003 May - Armed forces sign "full" ceasefire with rebel groups to end almost eight months of rebellion.

2003 July - At presidential palace ceremony military chiefs and rebels declare war is over.

2003 September - Rebels accuse President Gbagbo of failing to honour peace agreement and pull out of unity government.

2003 December - 19 killed in armed attack on state TV building in Abidjan.

Rebels rejoin government of national unity.

2004 March - Deadly clashes during crackdown on opposition rally against President Gbagbo in Abidjan.

The former ruling party - the Ivory Coast Democratic Party (PDCI) - pulls out of the government, accusing President Gbagbo of "destabilising the peace process".

First contingent of UN peacekeeping force deployed.

2004 May - UN report says March's opposition rally was used as pretext for planned operation by security forces. Report says more than 120 people were killed and alleges summary executions, torture.

2004 November - Outbreak of hostilities: Ivorian air force attacks rebels; French forces enter the fray after nine of their soldiers are killed in an air strike. Violent anti-French protests ensue. UN imposes arms embargo.

2004 December - Parliament passes key reforms envisaged under 2003 peace accord, including abolishing need for president to have Ivorian mother and father.

2005 April - Government, rebels declare an "immediate and final end" to hostilities. The move follows talks in South Africa.

2005 June - Massacres in western town of Duekoue: President Gbagbo says more than 100 people were killed, but contradicts widely-held view that ethnic rifts lay behind violence.

Poll called off

2005 October - Planned elections are shelved as President Gbagbo invokes a law which he says allows him to stay in power. The UN extends his mandate for a further year.

2005 December - Economist Charles Konan Banny is nominated as prime minister by mediators. He is expected to disarm militias and rebels and to organise elections.

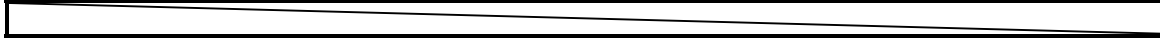
2006 January - Supporters of President Gbagbo take to the streets over what they see as UN interference in internal affairs.

2006 February - Main political rivals meet on Ivorian soil for the first time since the 2002 rebellion and agree to hold more meetings to iron out their differences.

2006 June - Militias loyal to President Gbagbo miss disarmament deadlines.

2006 September - Political, rebel leaders say they've failed to make any breakthrough on the main issues standing in the way of elections - principally voter registration and disarmament.

The government resigns over a scandal involving the dumping of toxic waste in Abidjan. Fumes from the waste kill three people and make many more ill.



2006 November - UN Security Council resolution extends the transitional government's mandate for another year.

2007 March - Government and New Forces rebels sign a power-sharing peace deal, mediated by Burkina Faso. Under the deal, New Forces leader Guillaume Soro is named as prime minister.

2007 April - President Gbagbo declares "the war is over" between his government and northern rebels, as the two sides move to dismantle the military buffer zone.

2007 April - President Gbagbo declares "the war is over" between his government and northern rebels, as the two sides move to dismantle the military buffer zone. Within days aid workers report an increase in violence. Within days aid workers report an increase in violence.

2007 May - Militia begin to disarm.

2007 June - Prime minister Soro survives a rocket attack on his plane.

2007 October - UN Security Council votes to maintain sanctions for another year.

2007 December - Rebel, government soldiers pull back from front-line positions as part of process to reunite country.

2008 January - UN renews mandate of 8,000 peacekeepers for six months to ensure polls are held by mid-year.

2008 January - Ten people are arrested and charged for plotting a coup in December 2007. Their alleged ring-leader, Sergeant Ibrahim Coulibaly, denies the charges.

2008 April - President Gbagbo cancels custom duties after a second day of violent protests against rising food costs.

2008 April - Date of long-awaited presidential elections put back from June to the end of November.

For more details on the November date, see also AFP's "[Le premier tour de la présidentielle fixé le 30 novembre](#)" (14 April 2008).

2008 May - Former rebels who still control the northern half of the country begin disarming.

2008 July - Ivory Coast complains that a 2004 UN arms embargo is crippling efforts to cut illegal fishing. The government increases diesel prices by 44% and petrol by 29% in response to rising world oil prices.

2008 August - The government halves ministerial salaries and those of state company managers to pay for a 10% fuel-price cut. Transport workers call off a threatened strike.

2008 October - Voter registration for the November parliamentary elections is suspended amid uncertainty about the validity of identity cards - one of the issues that sparked the 2002 rebellion. Local media say elections are likely to be postponed until early 2009.

The UN extends its arms embargo and sanctions on Ivory Coast's diamond trade for another year, promising to review the embargo once the country holds a presidential election. "

France 24, 15 October 2008

"Alors que le président Gbagbo fait campagne dans le nord de la Côte d'Ivoire, FRANCE 24 est en mesure de révéler, selon trois sources bien informées, à Abidjan et à Paris, que le scrutin présidentiel prévu le 30 novembre n'aura pas lieu en 2008.

[...]

Le scrutin aurait donc lieu en 2009, en début d'année, vraisemblablement avant la saison des pluies qui démarre en avril."

Reuters, 28 April 2009

"Ivory Coast, the world's top cocoa producer, will hold its long-delayed presidential elections by Dec. 6 at the latest, the country's U.N. ambassador said on Tuesday.

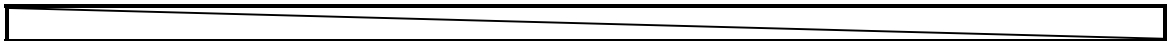
[...]

"The political decision has already been taken," he said. "The first round of the presidential elections in Ivory Coast will take place no later than Dec. 6, 2009."

[...]

President Laurent Gbagbo vowed last week that Ivory Coast would hold its presidential election this year but said he could not name an election date for another two months.

"(The) timetable allows us to envisage the holding of the presidential election in the period between Oct. 11 and Dec. 6, 2009," Djedje said, adding the exact date would be announced by the president "in the coming days."



Warring parties involved in the post-September 2002 crisis: an overview

AFP, 12 January 2003

"Following are details of the rebel groups [...] operating in the country:

Ivory Coast Patriotic Movement (MPCI):

The best known of the three groups which started the conflict with a well-synchronised rebellion on September 19 by disgruntled soldiers facing demobilisation.

Although the MPCI was defeated in the country's main city Abidjan on the first day, they occupied the northern half of the world's top cocoa producer in a lightning campaign.

This movement is headquartered in Ivory Coast's second city Bouake, the main economic hub after the economic capital Abidjan. Its other stronghold is the northern town of Korhogo. The group now has tens of thousands of fighters in its ranks, which have swelled due to voluntary enlistment by youths living in occupied territory.

The MPCl insists it is not a political movement and claims that none of the country's main political leaders are backing it.

However, it says it is fighting for the rights of the Muslim-majority northerners who have been discriminated against by the government of President Laurent Gbagbo, a Christian based in the south.

The best-known public faces of the MPCl are two soldiers -- Tuo Fozie and Sherif Usman -- but the leaders of their political wing remain shadowy.

Another of the leaders of the political movement is Louis Dakoury-Tabley, ironically one of Gbagbo's closest friends when the latter was an opposition figure and often forced to go into hiding.

The MPCl says it is determined to remove Gbagbo and usher in a new government after holding fresh elections.

It has strenuously denied claims that it is backed by neighbouring Burkina Faso, fingered by the government as the shadowy mastermind of the rebellion, or that it has any links with exiled opposition leader Alassane Ouattara, Gbagbo's arch-foe.

The MPCl signed a West African brokered ceasefire on October 17 which was "accepted" by Gbagbo as well but the truce was shattered late last month when fighting resumed in the country's west, where two new rebel groups emerged at the same time.

The MPCl and the Ivorian government began peace talks in the Togolese capital Lome on October 30 but the negotiations have been deadlocked for weeks.

Far West Ivory Coast People's Movement (MPIGO):

The group, which has now pulled out of the Paris talks, made a dramatic appearance on November 28 by taking the key western town of Danane near the Liberian border.

Its fighters are often armed with old-fashioned rifles and essentially comprise soldiers and men close to former military ruler General Robert Guei, killed in Abidjan on the first day of the September uprising.

The MPIGO claims to have around 6,000 fighters and controls a vast swathe of the west including Guei's native village of Gouessesso, where Guei withdrew after Gbagbo defeated him in presidential elections in 2000.

The MPIGO accuses the government of killing Guei and says it wants to avenge his murder and to secure a place for Guei's Yakuba ethnic group in Ivory Coast's pluralist society.

The group has repeatedly denied roping in Liberian fighters although witnesses have reported the presence of "English-speaking" combatants who loot and terrorise locals in sharp contrast to the MPCl forces.

Most of their men do not wear uniforms -- another major difference between the MPIGO and the two other rebel groups.

In December, French troops fired on the MPIGO to prevent them from taking the strategic town of Duekoue, on the route to Ivory Coast's cocoa capital Daloa, prompting the insurgents to threaten all-out war against the peacekeepers.

But like the MJP (see below) they have since signed a ceasefire, despite vowing to continue to fight the government forces.

Movement for Justice and Peace (MJP):

Surfaced on the same day as the MPIGO, with which it later concluded an alliance, when it took the key western town of Man on November 28.

Also based in western Ivory Coast, the MJP is thought to group some 250 soldiers of whom about one-fifth are traditional 'dozo' hunters who are reputed to possess magical powers.

Its leaders claim the group is a breakaway faction of the main MPCl rebel movement, whom they oppose for agreeing to enter into peace talks with the Ivorian government under the aegis of Togolese President Gnassingbe Eyadema.

The MJP however insists it has no links whatsoever with the MPCl despite maintaining "cordial relations" with the MPCl top brass including Tuo Fozie."

In December 2002, Soro's MPCl combined with the two other rebel groups to form the Forces Nouvelles (New Forces). Guillaume Soro became secretary-general of the group.

Chatham House, September 2007, p.16, 18

"In November 2002, two months after the war broke out, two other rebel groups emerged in western Cote d'Ivoire, until then untouched by the fighting. The Mouvement pour la Justice et la Paix (MJP) and the Mouvement Populaire Ivoirien du Grand Ouest (MPIGO) allied themselves to the main, northern rebel group, the MPCl, and quickly took over much of the west, including the region's major town of Man. They claimed to be independent, fighting to avenge the murder of Guéi by loyalists soon after the September 19 coup attempt began.

[...]

There is a good deal of uncertainty over how many rebel fighters there are. According the national disarmament commission and the terms of a series of disarmament deals signed in 2005 - the principles of which still hold, although deadlines have been repeatedly missed - the rebels have 42,564 troops. The deals state that all these troops are to hand in their weapons and be paid 499,500 CFA francs (£518, US\$970) each. They could also benefit from loans for small business start-ups, or farming, reaching a maximum of 430,000 CFA (£446, US\$830).

There may well be an element of paying for peace in the disarmament programme and the figure of 42,564 - a huge number compared to the loyalists' 17,050 military and paramilitary troops - should be taken with some scepticism. Reviewing the figures over time, one can see an inflation of troop numbers claimed by the Forces Nouvelles as disarmament has crept up the agenda and become a more realistic possibility.

The Forces Nouvelles have every reason to exaggerate their numbers, as the more troops who are officially disarmed, the more money they receive. The Ivorian authorities may turn a blind eye to inflation of the rebels' real troop numbers, viewing the disarmament process as a pay-off for the insurgency disbanding itself. The same temptation exists among the militias on the loyalist side. The MPCl had an estimated 800 fighters at the very beginning of the war, including most of the Ivorian soldiers based in the north - who had little choice but to join the revolt - and the *zinzins* and *bahefoués* [former footsoldiers of Guéi's regime]. The MJP and MPIGO sprung up on 28 November 2002, adding an extra 2,000 rebel fighters, including some 1,000 Liberian who were mostly within the ranks of the MPIGO. Sympathetic northerners and foreigners joined the MPCl

during the major fighting from September 2002 to May 2003. By the end of March 2003, the UN estimated the MPCI's numbers had increased to 5,000 bringing the total number of rebel fighters to 7,000."

The manipulation of ethnic factors for political and ideological purposes, 1893-2003

- For many years, ethnic factors in Ivorian society have been subject to political manipulation
- Since former President Henri Konan Bedie introduced the concept of 'Ivoirité' in 1995, the political and ideological manipulation of issues of nationality and ethno-religious divisions have been exacerbated
- The cross-border nature of the conflict in Cote d'Ivoire can be also traced back to particular ethnic alliances, in particular with regard to Liberia's involvement
- Human Rights Watch report describes atrocities committed during presidential and parliamentary elections in October and December 2000, including more than 200 killings, as well as torture, rape and arbitrary detention
- Flawed election of President Laurent Gbagbo in 2000, based on a blatantly racist agenda, laid the ground for the eventual division of the country into distinct ethnic and religious zones in 2002

UN Commission for Human Rights, 22 December 2004, paras. 41-42

"Ethnic factors in Ivorian society have for many years - and increasingly - been subject to political manipulation. In Côte d'Ivoire as elsewhere in Africa, the colonial Power frequently exploited ethnic differences to divide and rule, or else, using anthropology and ethnology, ethnicized groups and communities whose relationships had been regulated by traditional values and cultural practices for jointly dealing with ethnic tensions. Economic imperatives such as labour-force mobility did not respond to any desire to promote a genuine, interactive coexistence that might have fostered a national consciousness as opposed to the colonial policy of assimilation. Later, President Houphouët-Boigny found the implicit tensions within Ivorian society relatively manageable and was able to maintain a generally quiescent inter-ethnic coexistence. However, his approach to ethnic tensions, a mix of traditionalist pragmatism, political opportunism and the use of corruption and repression, within a non-democratic, one-party system, did nothing to neutralize the threat of conflict those tensions posed in any deep or lasting way. During his reign, Côte d'Ivoire was the scene of both xenophobic violence targeting foreign groups and political repression directed against particular Ivorian ethnic groups and their leaders.

This tendency finally took political expression in 1990, with the introduction of a multiparty system in which ethnic tension became a decisive political factor. In the forced transition from a paternalistic single-party system to a democratic multiparty one, in the context of multi-ethnic Côte d'Ivoire, it was only too tempting to play the ethnic card in the political manoeuvring, i.e., in the absence of any debate on ideas or substantive platforms, to resort to ethnic considerations to build up a militant political base for the conquest of power. In this context, "ivoirité", or Ivoirianness, became the conceptual basis for the construction of an ideology of political manipulation of the ethnic factor."

CASIN, August 2003, p. 26

"Ethnic alliances indicate the complex, cross-border nature of the conflict in Côte d'Ivoire. For instance, Gbagbo's small ethnic group, the Bété, is closely linked to the Liberian Krahns, who form the base of the anti-Charles Taylor rebel groups. Former Liberian President Samuel Doe, who was overthrown by Charles Taylor in 1989, was also Krahn—a fact that automatically indicates antagonism between Gbagbo and Taylor. General Guei and Charles Taylor are ethnically linked by virtue of their Yacouba and Gio, heritage, respectively (these two groups are

closely tied). Additionally, the tension between Gbagbo's Bété and Guéré supporters and the Dioula in the North has translated into a political FPI-RDR division."

HRW, August 2001

"The 2000 presidential and parliamentary elections in Côte d'Ivoire in October and December were marred by political violence which left over 200 people dead and hundreds wounded. In the months preceding the October presidential and December parliamentary elections, political leaders exploited ethnic divisions to oust rivals, used the state apparatus to repress opponents, and incited hatred and fear among populations which had for decades lived in relative harmony. Their actions culminated in two unprecedented waves of violence which shocked Ivorians and members of the international community alike, as well as grimly highlighting the danger of manipulating ethnic loyalties and latent prejudice for political gain. The legacy of the heightened suspicion and intolerance generated during the election period will take determined action to overcome; action which has so far been seriously lacking.

The violence shattered Côte d'Ivoire's hopes of rapidly regaining its status as francophone West Africa's economic powerhouse and a regional beacon of stability. This was lost a year earlier when a coup d'état against the corrupt government of incumbent elected president Henri Konan Bédié installed General Robert Guei as a military head of state in December 1999. General Guei had promised to return Côte d'Ivoire to civilian rule, and scheduled elections to do so, but had manipulated the process to such an extent that the legitimacy of the elections was already in doubt before they were held. A new constitution introduced by General Guei and approved by a July 2000 referendum required both parents of any Ivorian wishing to contest the presidential election to have been born in Côte d'Ivoire. This amendment was transparently designed to exclude Alassane Ouattara, the leader of the Rally of Republicans party (*Rassemblement des Républicains*, RDR), the largest opposition party, from the contest. On October 6, 2000, a controversial Supreme Court decision disqualified from running fourteen of the nineteen presidential candidates, including Ouattara, on citizenship grounds, and former president Bédié for not submitting a proper medical certificate. The Supreme Court, headed by General Guei's then legal adviser, was widely believed to have been hand picked by Guei himself.

On October 24, 2000, after early results showed Laurent Gbagbo, leader of the Ivorian Popular Front (*Front Populaire Ivoirien*, FPI), leading in the presidential poll, General Guei dissolved the National Electoral Commission and proclaimed himself the winner. Just two days later, he fled the country, in the midst of violence surrounding protests at his attempts to rig the elections. Laurent Gbagbo was left as the leading presidential candidate.

Despite the very serious concerns surrounding the legitimacy of the elections-both the widespread violence and the exclusion of Alassane Ouattara from the contest-Gbagbo was installed as president. Gbagbo then used the same methods as his predecessor during the December parliamentary elections, in particular to ensure that Ouattara was once again not allowed to run. Since assuming office, he has failed to acknowledge the flawed manner in which he became head of state, to promise new elections, to seek accountability for the violence, or to take adequate steps to ensure that, under his leadership, Côte d'Ivoire would be characterized by the rule of law, not by ethno-religious tension and military impunity."

Mercenaries and refugees from Liberia recruited by all parties to the conflict, end 2002-2003

- MJP and MPIGO and Ivorian government forces accused of using Liberian fighters
- Civilians displaced after attacks by presumed Liberian fighters in the west of war-torn Côte d'Ivoire

- Ivorian and Liberian authorities reported attacks on their common border by groups from each other's territory
- Liberia accuses Côte d'Ivoire government to back armed groups, which launch attacks from Toulepleu on the Ivorian side of the border
- Côte d'Ivoire asks France to activate bilateral defence pact following alleged raids by Liberian soldiers

UN OCHA, 3 March 2003

"Defence authorities in Cote d'Ivoire and Liberia have reported attacks by groups from each others' territory on locations on either side of their border. However, the claims could not be immediately confirmed by third parties.

Defence authorities in the Liberian capital, Monrovia, said that heavy fighting continued on Monday between Liberian government troops and insurgents in Toe Town, close to the Ivorian border. The town was captured on Friday by the Liberians United for Reconciliation (LURD) rebel group, according to the Liberian government.

Liberian Defence spokesman Philibert Browne told IRIN on Monday that Liberian government troops were "engaging the rebels to regain control of the town" which, prior to the attack, was a transit point for Ivorian refugees and Liberians fleeing armed conflict in Cote d'Ivoire.

Liberian Defense Minister Daniel Chea had told a news conference in Monrovia on Saturday that Toe Town had been attacked by two platoons of insurgents "armed and backed by the Ivorian government". He said the attack had been launched from the town of Toulepleu, on the Ivorian side of the border.

"For the Republic of Cote d'Ivoire to encourage Liberian mercenaries fighting alongside their own troops in their civil crisis to cross the border into Liberian territory is tantamount to a declaration of war," Chea said. "[...] those who want to continue this wave of violence against our people must understand that we reserve the right to self-defense."

However, Cote d'Ivoire's armed forces denied Chea's claims. The armed forces "would like to indicate that no foreign mercenary is fighting alongside it and that the statements of the minister of defence of Liberia constitute groundless accusations," Armed Forces spokesman Lt Col Jules Yao Yao said on Sunday.

"On the other hand," he continued, the Ivorian armed forces "recognise that the situation in the west of Cote d'Ivoire remains worrying since the different actors intervening in the conflict are difficult to identify."

Two rebel groups, the Mouvement pour la Justice et la Paix (MJP) and the Mouvement patriotique du Grand Ouest (MPIGO), operate on the Ivorian side of the border between Cote d'Ivoire and Liberia. The MJP has its headquarters in the town of Man, while MPIGO's territory is farther south, around the town of Danane. Like the Ivorian government, both groups have been accused of using Liberian fighters."

AFP, 24 January 2003

"They speak English and they kill," said Madeleine Ga Ahou, one of several thousand people displaced after attacks by presumed Liberian fighters in the west of war-torn Ivory Coast.

"Some were in uniform, the others in civvies. We don't know if they were rebels or others," she told AFP in the town of Guiglo, about 120 kilometres (75 miles) east of Toulepleu, the scene of bitter fighting on Wednesday and Thursday.

Ga Ahou arrived in Guiglo on Friday with her two children and was lodged at a camp run by the Red Cross.

She cannot say with certitude, like the Ivorian military, that the attackers were regular soldiers from neighbouring Liberia who went on the rampage alongside two rebel movements based in western Ivory Coast.

"All that we saw is that they had guns and they kill people," she said simply.

The Ivorian military has accused soldiers from the Liberian army of fighting alongside Ivorian rebel groups and of involvement in a deadly raid Wednesday in the town of Toulepleu which it claims killed at least 29 people.

Ivorian Defence Minister Kadet Bertin said on Thursday that Abidjan had officially asked former colonial ruler France to activate a bilateral defence pact following the alleged raids by Liberian soldiers.

Bertin said he had proof "that it is regular Liberian forces who are attacking us," adding that the attacks may not have been ordered by Liberian President Charles Taylor but "those in higher echelons of power with bad intentions."

Taylor on Friday denied the allegation but stressed that Liberian mercenaries were fighting both for the rebels and the Ivorian troops, albeit without Monrovia's blessings or knowledge.

However, several witnesses have reported the presence of Liberian fighters in Ivory Coast since the end of November.

The people of Guiglo are convinced that Liberians were involved in the attacks in the west, near the prized cocoa belt of Ivory Coast, the world's top producer of the bean.

Ga Ahou said she saw the "Liberians," mostly young men in their twenties, for the first time at the start of December in her campment of Iffa, in the heart of cocoa country near the town of Bolekin.

She said they looted and extorted locals but did not kill them. But on "Tuesday, they returned and started shooting, started demanding money and killing people who did not give them cash."

"They looted, they took food. we didn't understand what they were saying. They took my cycle and my little brother," said Joachim Koffi Kouame.

Kouame, a cocoa planter from central Ivory Coast, came to the region in 1986. But now he is returning to his native region.

Nearly 2,500 people from the Baoule ethnic group, natives of central Ivory Coast like Kouame, have fled during the last 15 days to the relative safety of Guiglo, said Koffi Tanoh, an official looking after the displaced.

Clement Gnan, who is among those who escaped, said "Many fled on foot through thick forests and the journey took several days."

However, most do not have severe wounds and generally suffer from fatigue or have grazes.

But they have deep psychological scars. "They spoilt everything. I've lost 10 years of my life, 10 years of my work," a fiftyish-year-old man said his eyes brimming with tears."

Reuters, 2 January 2003

"Villagers who escaped Neka said there were many Liberians among the fighters who struck on Wednesday in an attack claimed by the Ivorian Patriotic Movement of the Far West (MPIGO).

"There were a lot of dead, they killed lots of people," said one woman called Aminata, who had found a truck to San Pedro after escaping into the bush. "We saw the bodies."

Gbagbo's adviser in Europe, Toussaint Alain, accused mercenaries from Liberia's own savage wars of "massacring the inhabitants (of Neka) with machetes and burning their homes".

Fleeing civilians said they saw helicopter gunships and trucks full of Gbagbo's troops heading towards the fighting. Residents of San Pedro said white mercenaries paid by the army had also arrived in town.

"We're advancing on San Pedro," rebel spokesman Felix Doh told Reuters by satellite phone on Thursday.

San Pedro exports about half the cocoa beans from a country producing 40 percent of the world's supply and prices for benchmark March cocoa futures shot up more than five percent in London on Thursday because of the news from Ivory Coast.

A big contingent of troops from former colonial power France is based in San Pedro to protect hundreds of foreigners.

The French have committed helicopters, heavy arms and some 2,500 soldiers to Ivory Coast in their biggest African intervention since the 1980s to try to stabilise the war-torn country, once the region's economic powerhouse.

A first contingent of West African soldiers is also due to arrive this week to help the French in monitoring the ceasefire between the government and main rebel group.

The Ivorian army says Tuesday's helicopter raid on a small village called Menakro near Beoumi followed an attack on its own positions and spokesman Colonel Jules Yao Yao accused the rebels of using civilians as human shields."

"Regional warriors" re-recruited to fight in Côte d'Ivoire, 2004-2005

- Many young fighters, often forcibly recruited as children, have effectively ended up as mercenaries fighting in numerous armed conflicts in the region
- Armed groups have committed gross human rights violations against civilians with impunity
- Testimonies of "regional warriors", documented by Human Rights Watch, confirms that economic deprivation is a key cause of continuing cycle of war crimes throughout the region
- Since November 2004, hundreds of disarmed fighters in Liberia have been recruited to fight in pro-government militias in Cote d'Ivoire

HRW, 13 April 2005

"Since the late 1980's, the armed conflicts in Liberia, Sierra Leone, Guinea and Côte d'Ivoire have reverberated across each country's porous borders. Gliding back and forth across these borders is a migrant population of young fighters – regional warriors – who view war as mainly an economic opportunity. Their military 'careers' most often began when they were abducted and forcibly recruited by rebels in Liberia or Sierra Leone, usually as children. Thrust into a world of brutality, physical hardship, forced labor and drug abuse, they emerged as perpetrators, willing to rape, abduct, mutilate and even kill. Later, as veteran fighters struggling to support themselves within the war-shattered economy at home, they were lured by recruiters back to the frontlines – this time of a neighbor's war. There, they took the opportunity to loot and pillage; an all too familiar means of providing for their families or enriching themselves.

The flow of arms and combatants across the fluid borders of West Africa, paired with the willingness of governments in the region to support the actions of insurgent groups and government militias in neighboring countries has had lethal consequences, particularly for

civilians. The armed groups these regional warriors are part of have a well-documented record of committing unspeakable human rights abuses against unarmed civilians and have so far enjoyed impunity for the violations they commit. Efforts by the international community to disarm and reintegrate these fighters into their home communities –including through training – have so far had limited success. At present, the armed conflict in Côte d'Ivoire and the unstable political situation in Guinea appear to be the current theaters into which these regional warriors are being drawn.

The voices of the regional warriors heard in this report clearly illuminate the link between economic deprivation and the continuing cycle of war crimes throughout the region. The regional warriors unanimously identified crippling poverty and hopelessness as the key factors which motivated them to risk dying in subsequent armed conflicts. They described being deeply affected by poverty and obsessed with the struggle of daily survival, a reality not lost on the recruiters. Indeed they were born in and fight in some of the world's poorest countries. Many described their broken dreams and how, given the dire economic conditions within the region, going to war was their best option for economic survival. Each group with whom these combatants went on to fight with has, to varying degrees, committed serious human rights crimes against civilians, often on a widespread and systematic scale. The brutal armed conflicts in Liberia, Sierra Leone and Côte d'Ivoire have resulted in tens of thousands of civilians being killed, raped or maimed.

[...]

Aid organizations and United Nations officials working in Liberia say that hundreds of recently demobilized combatants, including children, have since at least November 2004 been re-recruited to fight in Côte d'Ivoire. The majority have, according to their reports, gone to fight alongside militias associated with the Ivorian government.

[...]

Deterioration in the military-political situation in Côte d'Ivoire would likely be accompanied by human rights abuses on a massive scale, given the proliferation of militias and level of ethnic tension."

See also UN Office for West Africa, 'Youth unemployment and regional insecurity in West Africa', 31 December 2005

UN sanctions Ivorian leaders in wake of orchestrated anti-UN violence, February 2006

- In February 2006, the UN Security Council imposed sanctions on three key Ivorian political figures found to constitute a "threat to peace" in the country
- Two of the individuals were leaders of a pro-government youth militia, and the third a rebel leader
- Sanctions came after a wave of orchestrated anti-UN violence in January, which caused several deaths and widespread damage
- The violence resulted in the withdrawal of UN peacekeepers from the west and the evacuation of humanitarian agencies

IRIN, 8 February 2006

"The United Nations' Security Council has slapped a 12-month travel ban and assets freeze on three Cote d'Ivoire political figures it accuses of hampering efforts to bring peace to the divided West African nation.

A Security Council sanctions committee on Tuesday called on member states to 'prevent the entry or transit' and 'freeze immediately the funds' of the three who it said constituted 'a threat to the peace and reconciliation process in Cote d'Ivoire.'

Those listed, according to a statement by the committee, are: Charles Ble Goude and Eugene Djue, leaders of the Young Patriots movement loyal to Cote d'Ivoire's President Laurent Gbagbo. Last month, the Young Patriots called supporters onto the streets to demand the departure of UN and French peacekeepers.

The third person is Martin Kouakou Fofie, a commander of the rebel New Forces movement, who was linked by the sanctions committee to human rights violations in the northern city of Korhogo.

Cote d'Ivoire split in two after a failed coup to oust Gbagbo in September 2002. The UN maintains a force of 7,000 blue helmets working alongside 4,000 French peacekeepers.

The UN decided to impose sanctions after hundreds of peacekeepers were forced to retreat as protesters set fire to UN vehicles and offices and ransacked compounds and humanitarian stores. Around 400 civilian staff have been temporarily evacuated and UN Secretary General Kofi Annan has warned that Gbagbo and his military chief of staff will be held personally responsible for new disturbances.

The Sanctions Committee said in its statement on Tuesday that it 'will continue to update the (sanctions) list on a regular basis.' "

IRIN, 18 January 2006

"Five people were killed and hundreds of UN peacekeepers forced to abandon base on Wednesday as anti-UN protests swept government-held southern Cote d'Ivoire for a third straight day.

After repeated attacks on UN compounds, vehicles and offices, a UN official said civilian personnel were being concentrated in central locations. 'The security of staff remains our primary concern,' he said.

As angry protesters loyal to President Laurent Gbagbo took over state television and broadcast calls for mass anti-UN demonstrations in the street, Nigerian President Olusegun Obasanjo, who also heads the African Union, flew in to help defuse the sudden crisis shortly before nightfall.

The main city Abidjan was paralysed for the third straight day by road blocks thrown up by angry youths loyal to Gbagbo.

Cote d'Ivoire split into two more than three years ago and some 10,000 UN and French troops monitor the buffer zone between the government south and the north, which is under rebel control.

In the volatile western region near the Liberian border, hundreds of blue-helmets based in Guiglo and Duekoue were forced to retreat after young protesters invaded compounds and torched UN buildings bearing the distinctive blue flag.

In Guiglo, some 350 km from the main city Abidjan, Bangladeshi soldiers opened fire to repel youths who besieged their barracks overnight. Hours later, the 200-300 men redeployed taking UN civilian personnel with them.

At the local hospital, a doctor who declined to be named told IRIN by telephone that five people were killed and 10 injured from gunshot wounds.

UN officials in Abidjan said four attackers were killed.

[...]

UN peacekeepers operate under the so-called Chapter VII of the UN Charter enabling soldiers to defend themselves and the local population if they come under direct attack.

[...]

Youths loyal to President Gbagbo who belong to a movement known as the Young Patriots have been targeting UN facilities since international mediators overseeing a UN peace blueprint backed measures effectively reducing Gbagbo's powers.

On Sunday, mediators in the ministerial-level International Working Group (IWG) said that parliament, which is packed with Gbagbo's Ivorian Popular Front (FPI) party members, does not have a mandate.

Parliament's mandate expired on 16 December and the IWG recommended the mandate not be renewed, effectively disbanding the assembly.

Gbagbo's ruling FPI on Tuesday announced in protest that it was quitting the peace process and pulling out its seven members in a transitional government headed by Prime Minister Charles Konan Banny.

A spokesman for the New Forces rebel movement, Sidiki Konate, meanwhile warned that the country was on the edge of war and said the UN withdrawal from Guiglo and Duekoue meant local populations had been left with no protection.

[...]

At the UN base in Guiglo, as well as at the offices of the aid group Save The Children, looters made away with everything they could salvage.

Western Cote d'Ivoire saw some of the fiercest fighting in the early days of the September 2002 rebellion that split the world's largest cocoa producing nation in two and brought into being the UN peacekeeping mission in April 2004. The volatile west has also often been the scene of ethnic strife.

Residents told IRIN that at the local radio station in the western town of Daloa, Young Patriots had demanded the station transmit pro-government propaganda. But when workers refused, the station was ransacked and looted.

Some 250 km away in Abidjan, makeshift barricades manned by young men brought activity to a standstill. While the number of Young Patriots roaming the streets was lower than during widely supported 2004 anti-French riots, all businesses were closed and most residents stayed at home.

At a hillside hotel transformed into UN headquarters, UN troops fired tear gas grenades and live bullets to warn off a crowd of protestors that has swollen from several hundred in the morning by over a 1,000 by the afternoon.

Nearly 500 youths meanwhile gathered outside the French military base, according to spokesman Jean-Luc Cotard. 'So far they are not violent, they are chanting and dancing,' he told IRIN.

But Young Patriots also massed outside the French Embassy in the lagoon-side business district of Plateau, Abidjan, blocking exits.

[...]

The group was especially vocal against France in violence in November 2004 when thousands of French nationals had to be evacuated from the country."

Cocoa trade has contributed to funding the armed conflict and fuel political instability, 2002-2008

- Cocoa trade has provided funding for the war effort.
- On the government side, cocoa institutions have contributed directly with both money and vehicles.
- The Forces Nouvelles have derived substantial financial support from the cocoa trade, notably through escort taxes and cocoa taxes. In February 2008, Global Witness found that the Forces Nouvelles kept perceiving tax revenues on both cocoa and diamonds through the delivery of laissez-passers and the establishment of check points.
- Cocoa continues to be smuggled from northern Cote d'Ivoire despite the Ouagadougou Agreement.

Global Witness, 20 March 2008

"Une mission de Global Witness en Côte d'Ivoire en février 2008 a constaté que le groupe des rebelles des Forces Nouvelles (FN) continue de percevoir des taxes sur le cacao et les diamants, malgré le processus en cours de réunification du pays.

Global Witness a notamment constaté que les camions de cacao continuent d'être escortés vers le Burkina Faso par les FN. Ses enquêteurs ont également pu confirmer sur le terrain que les FN continuent de délivrer des laissez-passer pour circuler dans leur zone et de maintenir des barrages routiers, et à cette occasion, commettent fréquemment des abus des droits humains.

« Ce système parallèle et illégitime de taxes, de laissez-passer et de barrages institué par les FN ne fait que favoriser la corruption. C'est de fait une économie de guerre qui retarde la réunification du pays » affirme Patrick Alley, directeur de Global Witness."

Voice of America, 30 October 2007

"Robert Rensi, an Ivory Coast specialist at the European Union, says the story of cocoa sums up the stakes in the country's fitful conflict.

"The whole Ivorian crisis can be translated into a struggle among different forces and the exclusion of part of the population in accessing these resources," Rensi said. "Cocoa has created a land tenure problem, has created a false identity problem. But at the bottom of all this, there's a struggle for control of resources that traditionally have been managed in a non-transparent way.

Meanwhile, the London-based International Cocoa Organization says Ivory Coast's \$1.4-billion cocoa industry is coasting on a booming world demand for chocolate. It says that demand is growing at about four percent a year."

Reuters, 30 October 2007

" Cocoa smuggling from the rebel-held north of world top cocoa grower Ivory Coast continues despite a peace deal intended to reunite the West African country, merchants say.

The rebel New Forces who seized the northern half of the country in a 2002-2003 civil war have long acknowledged using revenue from cocoa smuggled through their zone to neighbouring countries to fund their movement.

But in spite of a March peace deal that led President Laurent Gbagbo to make New Forces chief Guillaume Soro prime minister, truckloads of beans still roll over the northern border.

"No one told us to stop sending cocoa through Burkina Faso, Guinea or elsewhere and it's not because of peace that it's going to stop. We'll send our cocoa wherever the price is good," cocoa merchant Falikou Cisse said.

He is one of many buyers working in Fengolo, a village just north of Duekoue in Ivory Coast's main western cocoa belt.

Merchants send cocoa grown around Fengolo, including some grown in the government south as well as in the rebel zone, to neighbouring states as New Forces taxes are much lower than those payable to the state at the country's two sea ports.

These lower taxes enable smugglers to outbid other merchants working in this area and that has forced some cooperatives and independent buyers out of business."

Global Witness, June 2007, pp. 24, 33

"Cote d'Ivoire's national cocoa institutions, with the assent of the biggest exporters' union, have directly contributed to the war effort by providing the government with money, vehicles and weapons, using money from cocoa levies. These payments and gifts coincided with a period when some of the worst human rights violations by government forces took place. A World Bank official told Global Witness: "We know that the revenues collected from cocoa are used to fund the military". This is an obvious deviation from the cocoa institutions' official role, which is to regulate the cocoa trade and support cocoa farmers. Today, profits from the sector remain a potential "weapon of war" and little has been done to break the links between the cocoa trade and the armed conflict.

Three cocoa institutions have directly contributed at least 10.6bn CFA (US\$20.3m) to the war effort: the Autorité de Régulation du Café et du Cacao (ARCC), the Bourse du Café et Cacao (BCC) - whose board included two representatives of the biggest exporters' union, the Groupement Professionnel des Exportateurs de Café-Cacao (GEPEX), ADM Cocoa SIFCA's general manager and the director of Dafci, at the time owned by French company Bolloré - and the Fonds de Développement et de Promotion des Activités des Producteurs de Café et de Cacao (FDPCC). They have also given vehicles to the Forces de Défense et de Sécurité (FDS, the national security forces). To do so, they used money from levies paid by cocoa exporters. Such initiatives and deviations from the official role of cocoa institutions were facilitated by the lack of transparency and absence of checks and balances in the cocoa sector.

[...]

Individuals within the Forces Nouvelles (FN) have enjoyed financial as well as political rewards as a result of the conflict and the country's partition. They have a vested interest in prolonging the crisis: once the country is reunited, they may lose their control over natural resources and financial assets. As a significant source of the FN's finances, the cocoa trade has effectively contributed to delaying a resolution of the crisis.

Cocoa is a substantial source of revenue for the FN. Global Witness estimates that since 2004, the FN have derived an average of around 15.1bn CFA (US\$30m) per year from the cocoa trade. This figure was obtained by calculating the total of all the taxes and export agreements as well as the number of trucks taxed (about 3,250 trucks) for the estimated yearly cocoa production. According to FN estimate, annual cocoa production in the FN zone is 130,000 tonnes and is worth 104bn CFA (US\$203m). This represents a tenth of Cote d'Ivoire's total production and up to 3.6% of world production. The FN was quick to seize the opportunity to start taxing cocoa.

Initially, from September 2002 onwards, FN troops and rebel commanders developed a survival strategy based on extortion. It was reported that during a single week in August 2003, the FN made 69m CFA (US\$136,600) from sales of fuel and taxes on convoys. Economic operators were made to pay "protection" taxes to travel in the FN-controlled zone. No truck could travel without

an FN escort - usually attacks by bandits (*coupeurs de route*) and ease the way through the numerous FN checkpoints along the roads. This was later institutionalised as an "escort tax", costing 5,000 CFA (US\$9.6) and paid to the escort.

At the end of 2002, in addition to the protection taxes, cocoa was subject to a tax of 50CFA (10 US cents) per kilogramme. The trucks were weighed on a weighbridge in Séguéla and the tax was paid to Séguéla's FN commander, Zakaria Koné. The weighing system in Séguéla was abandoned in early 2003 in favour of a standard payment of 2m CFA (US\$3,870) per truck (which works out at approximately the same rate per kilogramme), paid at the start of the route, in Man or Vavoua."

See also BICC's [*"Conflict diamonds and peace process in Cote d'Ivoire"*](#) for an account of the role of diamonds in the path to peace.

Peace efforts

Summary of peace efforts, 2003 - 2005

- There have been four major sets of peace accords aimed at settling the political grievances behind the conflict: Linas-Marcoussis, Accra, Pretoria and Ouagadougou.
- The first three, signed between 2003 and 2005, have reportedly failed mostly because of the lack of political will of the Ivorian actors behind them.
- The Linas-Marcoussis Accords, signed in January 2003, were based on a power-sharing formula and saw the involvement of France as mediating power. Concluded in record time, the Accords allegedly suffered from a lack of realism, although they included important conditions for sustainable peace.
- The Accra and Pretoria agreements did not add any major changes to the previous one. The most important change with the Pretoria peace talks was the exclusion of minor political Ivorian actors. Once the preconditions for the presidential elections were once more not fulfilled, the peace process derailed once again.

Conciliation Resources, 2008

"The international interventions that ensued [*the 2002 crisis*] fall into a number of categories: the mediation of peace accords; UN Security Council resolutions; arms embargo, travel ban and assets freeze sanctions; investigations of alleged war crimes and crimes against humanity; and the threat of further investigations, including by the International Criminal Court (ICC). Each has been used or threatened at different points in the conflict to bring the conflict protagonists into line with international humanitarian norms or to seek a political resolution to the conflict. As far as the design interventions were strategic or complementary, they formed part of an improvised strategy, but one built on the close attention paid to developments by, in particular, France, the Security Council and ECOWAS.

There have been four major sets of peace accords that aimed at disarming the rebels and redeploying the apparatus of the state in the north, while settling the political grievances said to be behind the conflict, such as the feeling of political exclusion of 'northern' Muslims at both the popular and elite levels. Starting with the French-mediated Linas-Marcoussis Accords of January 2003 (signed just four months after the outbreak of the war), these issues and several others were ostensibly settled by all parties, and their implementation was to be overseen by a government of national unity incorporating representatives of the rebels as well as those political parties that had been excluded from the 2000 elections.

[...]

Subsequent accords mediated under the auspices of the AU and ECOWAS in Accra, Pretoria, and Ouagadougou have each been hailed as the possible solution to the country's underlying problems, though the solutions proposed in each case have been roughly the same: disarmament, demobilization and reintegration of rebel forces; reunification of the national territory; and identification of those without papers or whose identity had otherwise been called into question. As the existence of armed pro-Gbagbo militias became widely reported, then acknowledged by the government, their dismantling became a further condition of the accords, and after president Gbagbo's constitutional mandate ended in October 2005, transparent elections became the proposed endpoint of this process. [...]

There are several explanations for the failure of these accords, underpinned by the fact that major political actors agreed to them in bad faith in order to give themselves political room for manoeuvre and time to regroup and re-arm themselves. At the insistence of France and in consultation with ECOWAS and the AU, the Security Council has addressed this perception of bad faith in a number of ways. Resolutions 1633 and 1721 attempted to settle questions surrounding Gbagbo's constitutional mandate, whose term ended on 30 October 2005, which the opposition claimed rendered him illegitimate. Gbagbo's supporters claimed that he was entitled to serve indefinitely because of the exceptional circumstances of war and de facto partition of the country. The Security Council attempted to grant a one-time-only extension of one year, simultaneously diminishing the president's powers and transferring them to a new, more powerful Prime Minister."

Linass-Marcoussis Accords

CASIN, August 2003, pp.36-38

"The Marcoussis Accords resulted in a power-sharing agreement reached on 24 January 2003. The agreement gave MPCl [*Mouvement Patriotique de Côte d'Ivoire*] key positions in the Ministries of the Interior and the Defense. It also created a Government of National Reconciliation with a relatively neutral figure, Seydou Diarra, to serve as Prime Minister until elections in 2005.

[...]France has faced intense criticism for its role in brokering the peace accords. There is much speculation that the peace agreement was forced upon Gbagbo and the FPI [*Front Populaire Ivoirien*], especially since under the new governmental regulations, France will be able to maintain the status quo and continue to benefit from its investments and companies in Côte d'Ivoire. The Foreign Minister, Dominique de Villepin, actively advocated the peace negotiations. Though mediators in peace negotiations do not always have to be neutral figures, in this instance a more neutral figure may have been valuable. [...] During peace talks on Côte d'Ivoire, accusations of French bias were quick to emerge. In fact, on 20 January 2003, one member of the round table left the negotiations, accusing France of trying to conduct a "constitutional coup d'état." If the French have been described as "driving" the peace process, it is very likely that they had the end destination clearly in mind.

The weeks following the signing of the peace accords demonstrate that while the main players did sign the document, not all of them signed it in good faith. After signing the accords in Paris at a Special Heads of State Summit following the negotiation process, Gbagbo returned to Côte d'Ivoire and stated publicly that the accords are merely "proposals," in spite of his professed support for the agreement. Gbagbo's army refused to accept the accords because of the rebels' new role in the government, and called the agreement a "national humiliation." [...]

There were two aspects of the Marcoussis Accords that sparked protest and rebellion in Côte d'Ivoire: the composition of the Government of National Reconciliation and the choice of prime minister. In both instances, Gbagbo's supporters were the primary dissenters. They —particularly

the armed forces— assert that too many concessions were made to the rebels and that they hold too much power in the new government, notably positions in the defense and interior ministries. [...]

Another problematic aspect of the peace accords is their reliance on power sharing, a concept that is both applauded and criticized by professionals in the field of conflict resolution. In theory, power sharing is an appealing and logical solution to end a conflict in which several parties are vying for power. Yet, as one scholar writes, “power sharing has obvious problems: power-sharing agreements are difficult to arrive at, even more difficult to implement, and even when implemented, such agreements rarely stand the test of time.””

GIGA, July 2008, p.26

“The [*Linas-Marcoussis*] peace plan was put on the table and pushed through in about eight days. As good as the intentions may have been, it was rushed on the Ivorian actors. It lists important conditions for sustainable peace, such as the revision of eligibility rules and the revision of land ownership, but the “implementation rules”, that is, the concrete power-sharing formula for a government of national reconciliation in the following meeting, were not realistic at all.”

Accra and Pretoria Agreements

GIGA, July 2008, pp.24-25

“A short look at the interim agreements of Accra, July 30, 2004 (in the name of ECOWAS), as well as those of South Africa's President Thabo Mbeki in the name of the African Union (Pretoria I+II, April 6 and June, 29, 2005) should be added. Thirteen heads of state (and the UN Secretary General) participated in the Accra summit. It set specific deadlines to strengthen the dynamics of the peace process. No major change of the preceding agreements could be recorded. Gbagbo was urged to give the prime minister more prerogatives. Shortly afterwards Gbagbo reinstalled three opposition ministers of a reconciliation government he had suspended only in May (one of them being Soro). The calendar of reforms and of the disarmament process was equally revised at Accra. In November a severe crisis of the peace process erupted after attacks by the Ivorian army not only on rebel positions but also on a French military camp in Bouaké. [...] The government of reconciliation continued to exist with rebel ministries mostly absent for security reasons.

The two Pretoria summits in 2005 saw the participation of Gbagbo, Soro, Ouattara, Bédié and Diarra. This meant that minor political parties were no longer part of the game. The most important aspect concerned details of article 35 of the Ivorian Constitution concerning eligibility. Mbeki had found a way to avoid a constitutional referendum by interpreting article 48 of the Ivorian Constitution (exceptional rights of the president) as an instrument for Gbagbo to authorize the candidatures of personalities that would be presented by those who have signed the agreement of Linas-Marcoussis (after consultation with president of the National Assembly and the Constitutional Court). This looked like an apt juridical way out of the deadlock that Gbagbo's stress of constitutionality had created. However, new confrontations of a smaller scale took place even then, and neither the disarmament of the rebels and of pro-government militias nor other preconditions for elections were fulfilled in time to allow them to take place in this year. The South-African mediation lost credibility when the calendar of the peace process could not be kept.”

UN peacekeeping mission established in Cote d'Ivoire, 2004-2008

- UN Security Council establishes 6,240-strong Chapter VII peacekeeping mission (UNOCI), for an initial period of 12 months from 4 April

- UNOCI's mandate includes assistance in disarmament, demobilisation, reintegration, repatriation and resettlement, identification of the population, monitoring the arms embargo, support for the organization of open, free, fair and transparent polls and support for humanitarian assistance
- UNOCI's mandate is extended until 31 January 2009

UN SC, 27 February 2004

"The Security Council this morning, acting under Chapter VII of the Charter, established the United Nations Operation in Côte d'Ivoire (UNOCI) for an initial period of 12 months, from 4 April.

Unanimously adopting resolution 1528 (2004), the Council also requested the Secretary-General to transfer authority from the United Nations Mission in Côte d'Ivoire (MINUCI) and the Economic Community of West African States (ECOWAS) forces to UNOCI on that date, and decided, therefore, to renew MINUCI's mandate until 4 April.

The Council also decided to renew until 4 April the authorization given to the French forces and ECOWAS forces through its resolution 1527, as well as authorized the French forces to use all necessary means to support UNOCI in accordance with the agreement to be reached between UNOCI and the French authorities.

Comprising a military strength of a maximum of 6,240 United Nations personnel, UNOCI's mandate, in coordination with the French forces, will include observing and monitoring the implementation of the comprehensive ceasefire agreement of 3 May 2003 and movements of armed groups; assistance in disarmament, demobilization, reintegration, repatriation and resettlement; protection of United Nations personnel, institutions and civilians; support for humanitarian assistance, implementation of the peace process; and assistance in the field of human rights, public information and law and order."

UN SC, 29 July 2008

"The Security Council [...] (d)ecides to renew the mandates of the United Nations Operation in Cote d'Ivoire (UNOCI) and of the French Forces which support it, as determined in resolution 1739 (2007), until 31 January 2009, in particular to support the organization in Cote d'Ivoire of free, open, fair and transparent elections."

See also, [UN Security Council Resolution 1739 \(2007\)](#)

Elections once again impossible as peace process derails, September 2006

- Key processes of disarmament and voter identification and registration fail to make progress, making October 2006 elections impossible
- President Gbagbo boycotts meeting in New York aimed at reviving peace process, and says UN peacekeepers should leave Cote d'Ivoire
- Tensions rise over uncertainty of what will happen once Gbagbo's mandate expires at the end of October 2006

- Tensions exacerbated by toxic waste scandal in Abidjan, which prompts government to resign

ICG, 7 September 2006

"In May 2006, Crisis Group gave the Banny government a fairly positive evaluation. In its first few months it had installed an independent electoral commission, relaunched direct dialogue on disarmament between the belligerent forces and solved some longstanding problems like the organisation of school exams in the part of the country controlled by the former insurgents, the Forces Nouvelles (FN). But it had not yet addressed the main elements of the roadmap: the nationwide program to identify citizens and produce identity cards for them and papers for foreign residents; the program of demobilisation, disarmament and reintegration (DDR) of FN fighters and the government's Defense and Security Forces (FDS); disarmament and dismantling of the militias backing President Laurent Gbagbo; and voter registration and the actual organisation of free, fair and transparent presidential elections. Four months later, the government which, although dissolved by Banny on 6 September, is likely to be reconstituted largely intact - has achieved meagre results on all these counts, and a presidential election by the end of October is impossible."

BBC News, 21 September 2006

"Ivory Coast's elections will not happen by the end of October, when President Laurent Gbagbo's extended mandate runs out, the United Nations has confirmed.

A meeting in New York between the country's main rivals and African mediators failed to end a deadlock.

Ivorian President Laurent Gbagbo boycotted the meeting - and recently said UN peacekeepers should leave.

Peacekeeping chief Jean-Marie Guehenno said there were serious obstacles, making a vote impossible.

The country has been split in two for four years.

Mr Guehenno said the meeting, chaired by UN Secretary General Kofi Annan, established that 'there are serious roadblocks in Ivory Coast which will make it impossible to hold the elections as scheduled'.

Little progress has been made on the identification and registrations of voters and the disarmament of militias and rebels - a pre-condition for polls.

However it is not yet clear what will happen at the end of October, when Mr Gbagbo's mandate runs out.

He has said he will stay on until elections are held - a suggestion rejected by rebels and the opposition.

International mediators have suggested that he remain but cede most of his powers to the neutral prime minister of the government of national unity.

The Ivorian government resigned earlier this month over a toxic waste dumping scandal in the main city, Abidjan - which has led to tens of thousands of Ivorians seeking treatment."

The peace process moves forward thanks to home-grown agreement, March–April 2007

- On March 4, the Government of Côte d'Ivoire and the New Forces (Forces Nouvelles) sign a peace agreement reaffirming the necessity to build peace and stability in the country
- The parties recognize the need for the identification of the population and the registration of voters in view of the presidential elections
- The peace agreement envisages the early formation of a new government, the elimination of the "confidence zone," the eventual departure of foreign troops, and the future reunification of the government and rebel armies

United Nations Security Council, 8 March 2007, para. 17

"On 4 March, President Gbagbo and Mr. Soro signed the new agreement in Ouagadougou, under the facilitation of President Compaoré. The agreement builds upon Security Council resolution 1721 (2006) and previous peace agreements. It addresses key issues that had blocked the implementation of the identification of the population, the disarmament process, the restructuring of the armed forces, the restoration of State authority throughout the country and the preparation of the voters list. The agreement also envisages new institutional arrangements, which are expected to be agreed upon within a month. An annex to the agreement sets out an implementation schedule, which envisages the completion of the key process within a period of ten months. The parties requested the facilitator to submit the agreement to the Security Council, through the African Union, for endorsement. "

GIGA, July 2008, pp.26-27

"The Agreement of Ougadougou was signed by Gbagbo and Solro after a month of intense negotiations (and a still longer preparation) in what was called "direct dialogue". The mediator, Blaise Compaoré, president of Burkina Faso, himself the third signatory, is an "insider" in contrast to the mediators of all preceding agreements. He was very close to the rebels (supporting them even militarily in the first place), but gradually became aware of the nefarious effects of the Ivorian crisis to his country. A so-called "permanent concertation framework" consisting of these three persons, but also Bédié and Ouattara, is the other new element that gives all main players a function - and to nobody else (although the latter can be seen as losers of the agreement - they could not even sign). The content of the agreement is rather specific and gives clear indications on two bones of contention: the issuing of identity papers (crucial for voter registration) and the creation of a unified army. On short notice an integrated command center was put into place, an important step to create trust. The signatories at least verbally cared about ongoing local security problems in the confidence zone where impartial forces (UN peacekeepers and French Licorne mission) were not able to stop massive violence by roadblockers. On the other hand, reports by Western NGOs hinted at new attacks after the dismantling of the confidence zone.

Soro was appointed prime minister shortly after the agreement and presented a new government. [...]

An assassination attempt against Soro's plane at the airport in Korhogo on June 29, 2007 came as a shock and was attributed to different potential spoilers of the peace process. Soro remained unharmed but four persons of his entourage were killed. It did not change the power-sharing arrangement. "

See also, the Government of Cote d'Ivoire, "[Accord Politique de Ouagadougou](#)" for the full text of the Peace Accord.

A [report](#) by the International Crisis Group (ICG) of 27 June 2007 provides an analysis of the Ouagadougou Peace Agreement and more background information to its signing.

Progress in the implementation of the Ouagadougou Agreement, April 2007-April 2009

- Given initial delays and the impossibility of abiding by the deadlines set in the Ougadougou Agreement, four supplementary agreements were signed between November 2007 and December 2008 providing a new timeline
- The elections that were to be held on 30 November 2008 were once again postponed to some time in 2009 due technical delays in voter registration
- The integrated command centre was installed in its new headquarters in December 2007 and continued to build its capacity in 2009 thanks to the technical and logistical support of both UNOCI and Licorne forces. It continued, however, to face difficulties because of financial and operational constraints
- UNOCI dismantled the last observation post along the green line on 30 July 2008. On this date, the green line, which had replaced the zone of confidence, officially ceased to exist
- The disarmament process of government and rebel troops started on December 22, 2007. By April 2009, Forces Nouvelles combatants had started regrouping operations while no real progress had been made on the dismantling of the militias
- Substantial progress with the redeployment of the State administration was achieved although the Forces Nouvelles continued to retain almost full authority in their areas of responsibility. Delays in re-establishing the judicial system and the police presence in the north of the country have also contributed to hamper the work of redeployed state officials
- Mobile court operations for the issuing of legal documents ended officially on 15 May 2008 although supplementary operations were sent in August to areas not sufficiently covered in previous efforts. By end of March 2009 almost 6 million people were identified and included on voter lists. The identification of the population and the voter registration processes were launched on 15 September, to last for 45 days. After several delays and although it was due to end by 31 March 2009 the process was extended once more.

United Nations Security Council, 13 April 2009, paras. 5-6

"In the two years since the signing of the Ouagadougou Agreement in March 2007 significant progress has been made towards restoring normalcy in Côte d'Ivoire. The main achievements include the end of hostilities between the Forces nouvelles and the national defence and security forces; the removal of the zone of confidence that had previously physically divided the country; the restoration of free movement of people and goods throughout the country; the ongoing successful conduct of a credible process to identify the population and register voters; the overall improvement of the human rights situation throughout the country; sustained dialogue among the main political leaders; the gradual return to the north of State officials displaced during the conflict; the encouraging rebounding of the economy; and technical preparations for the elections.

Côte d'Ivoire is now at a stage where only two critical processes need to be completed in order to restore normalcy: reunification and elections. As noted in my previous report, the fourth supplementary agreement to the Ouagadougou Agreement, signed on 22 December 2008, outlined the way forward to the completion of the reunification process and the conduct of the elections. The agreement set out the modalities and provided a timeline for completing the following key tasks: (a) the disarmament of the former combatants of the Forces nouvelles and the dismantling of the militias, two months before the elections; (b) the reunification of Ivorian defence and security forces; and (c) the effective redeployment of State administration throughout the country, including the corps préfectoral (local authorities), the judiciary and the fiscal and

customs administration. The fourth supplementary agreement thereby reversed the sequence previously established in the third supplementary agreement, which had provided for elections to be conducted before the completion of the reunification processes."

United Nations Security Council, 8 April 2009, paras. 3-4

"The Group [*of Experts*] notes that, while the political situation in Cote d'Ivoire remains relatively peaceful, it would be incorrect to interpret this as a sign of progress towards a peaceful resolution of the crisis. In the north of the country, quasi-privat militias maintain control over natural resources and continue to extract rents from local businesses and the civilian population. Like all such quasi-State economies, that of northern Cote d'Ivoire depends on the availability of foreign markets for the export of natural resources and on relations with foreign suppliers for the importation of strategic goods, including fuel, vehicles and weapons. The economic networks that operate in the north of Cote d'Ivoire extend both north and south. The Group is of the view that economic stakeholders resident in neighbouring States, and in the Government-controlled south of Cote d'Ivoire, benefit from the status quo.

The Group believes that several years of north-south polarization have introduced new political and economic tensions into the crisis. The north of the country is fractured into a series of politico-military commands, which compete (sometimes violently) for control over natural resources and commerce. Should the political situation in the country deteriorate, and the economic interests of some parties be threatened by such events, the Group cannot exclude a situation in which armed violence may escalate rapidly, particularly in the north. Despite the arms embargo, the parties to the conflict remain sufficiently heavily armed to engage in sustained armed hostilities and some are rearming. In the months ahead, some parties will further entrench their control over the territory and economic resources of northern Cote d'Ivoire - thereby raising the stakes of any future political settlement."

Establishment of the integrated command centre

UNOCI, 4 December 2007

"Ivorian Prime Minister Guillaume Soro is due to inaugurate the new headquarters of the Integrated Command Centre (ICC) in Yamoussoukro on 17th December 2007, according to information obtained from the UN Development Programme (UNDP). "

United Nations Security Council, 2 January 2008, para. 16

" The integrated command centre comprises seven mixed cells and four support platoons and is currently manned by 120 Government and 51 Forces Nouvelles military personnel. The performance of the command centre has improved, owing in part to the logistical and technical support provided by UNOCI. However, the centre continued to face difficulties in fulfilling its mandate as a result of financial constraints and its limited planning and operational capacities. Lack of adequate communication and transport assets also presented serious challenges."

United Nations Security Council, 13 October 2008, para. 17

"The integrated command centre, which oversees the mixed police units and is responsible for implementing all the military and security aspects of the Ouagadougou Agreement, continued to build up its capacity with support from UNOCI and the Licorne force. Out of a total authorized strength of 668 personnel, the centre currently comprises 458 Government and Forces nouvelles military personnel: 214 elements based at the headquarters in Yamoussoukro and 244 deployed in the former zone of confidence as part of the mixed police units and supporting elements. Although the centre's communications capacity and mobility have improved, its operational effectiveness continues to be hampered by limited financial and logistical capabilities. Payment of allowances for food and fuel for the personnel of the command centre, including the mixed police units, has been erratic over the past several months."

United Nations Security Council, 8 January 2009, paras. 7-8

"The Ouagadougou Agreement and its supplementary agreements tasked the integrated command centre to police the former zone of confidence and secure the peace process, including the redeployment of State administration throughout the country. The Agreement also tasked the integrated command centre with the responsibility of unifying and restructuring the defence and security forces of Côte d'Ivoire, including by setting up mixed police units. While the mixed police units have been deployed by the integrated command centre into the area formerly covered by the zone of confidence, the unification of the national defence and security forces and the Forces nouvelles remained stalled until the signature of the fourth supplementary agreement on 22 December, mainly owing to continued disagreement on the ranks and numbers of the Forces nouvelles personnel to be integrated into the new national army. Under the fourth supplementary agreement, 4,000 Forces nouvelles personnel are expected to immediately, but temporarily, join the Ivorian police and gendarmerie to provide security during the electoral process, while 5,000 Forces nouvelles elements are expected to join the unified army within the next two years. UNOCI and the Licorne force continued to maintain a support capacity within the integrated command centre, comprised of military, police and civilian personnel, to provide logistical support and assist the centre in its planning and coordination activities.

As at 15 December, the strength of the integrated command centre was 518 military personnel drawn from Government forces and the Forces nouvelles, with 260 elements based in Yamoussoukro and 258 elements deployed in the former zone of confidence. Although the centre's communications capacity and mobility improved somewhat, its operations continued to be hampered by financial and logistical constraints. In a new development, in the framework of securing the identification and voter registration operations, over 220 Government forces were deployed to the north, while Forces nouvelles elements, deployed to the south, returned to their bases in the north on 3 December 2008."

Deployment of mixed units and the gradual lifting of the green line
Reuters, 30 April 2007

"Once sworn foes, government and rebel soldiers in Ivory Coast on Monday began their first joint patrols in a "battle for peace" aimed at reuniting the West Africa state split by a 2002/2003 civil war.

The patrols will gradually replace United Nations and French peacekeepers in a 600 km (375 mile)-long buffer zone that has kept the two sides apart since the brief conflict that divided the world's top cocoa producer into two opposing halves.

It is being dismantled under a March 4 peace plan struck between President Laurent Gbagbo and his rebel foes which foresees national reunification and elections within a year."

United Nations Security Council, 2 January 2008, para. 18

"Pursuant to the Ouagadougou Agreement, according to which the mission [UNOC] was to halve the number of observation posts every two months, UNOCI decided to remove eight observation posts between 30 November and 18 December. The gradual removal of the remaining nine posts will be based on further threat assessments and consultations with the integrated command centre and depend on overall progress made in the implementation of the Ouagadougou Agreement."

United Nations Security Council, 13 October 2008, para. 16

"In keeping with the provisions of the Ouagadougou Agreement, UNOCI dismantled the last observation post along the green line on 30 July [2008]. With the removal of all observation posts, the green line that replaced the zone of confidence has effectively ceased to exist. Mixed police units continued to patrol the former zone of confidence, even though their operational capacity remained limited owing to inadequate equipment and financial support."

Disarmament, demobilization and reintegration

United Nations Security Council, 2 January 2008, para. 24

"On 22 December, President Gbagbo, accompanied by Prime Minister Soro, presided over a ceremony marking the launch of the cantonment process in Tieébissou and Djébonoua, on either side of the former zone of confidence. The President and Prime Minister gave assurances that the necessary measures would be taken so that all combatants would either be integrated into the unified army, join the civic service or take part in reintegration programmes. The ceremony culminated in three national armed forces and two Forces Nouvelles platoons proceeding to their cantonment site in Yamoussoukro, and six Forces Nouvelles platoons moving to their cantonment site in Bouaké."

United Nations Security Council, 13 October 2008, paras. 19-20, 22

"As at 1 October [2008], 11,364 Forces nouvelles personnel had been cantoned, out of a total strength of 34,678 combatants declared by the group. From the cantoned former combatants, 7,598 have chosen to be demobilized, including 802 foreign combatants (from Benin, Burkina Faso, Ghana, Guinea, Liberia, Mali, the Niger, Nigeria and Togo), and 3,766 have expressed interest in joining the new national army. Only 10 weapons and some ammunition were collected. Of the Forces nouvelles elements cantoned, 455 female combatants have been demobilized, 28 of whom have volunteered to join the new army."

The National Programme for Reinsertion and Community Rehabilitation, which is supposed to absorb 7,000 ex-combatants, continues to face considerable financial problems and capacity limitations. The programme has received only \$10 million from the Government, out of the \$32.5 million expected for 2008. Financial constraints have compelled it to scale down its programmes and close most of its offices around the country. Meanwhile, although the national civic service programme has increased its capacity, it will be unable to absorb the expected caseload of 15,000 former combatants by the end of October owing to a lack of agreement between the Ivorian Government and the Forces nouvelles. Meanwhile, several donors, including the World Bank, United Nations agencies and the European Union, have launched programmes for the reinsertion of former combatants and youth-at-risk.

[...]

The integrated command centre and the National Programme for Reintegration and Community Rehabilitation have completed the registration and profiling of the militias in the western part of the country. Although the final figures have not yet been released, the centre reported that the number of militia personnel profiled exceeds the 1,019 armed militias previously listed by the Government. The Government has not yet determined the arrangements for disarming, dismantling and reintegrating the militia personnel. "

United Nations Security Council, 13 April 2009, paras. 11-12

"No further major progress was made in disarming Forces nouvelles combatants beyond the regrouping operations described in my last report. The adoption of a presidential decree to operationalize the provisions of the fourth supplementary agreement pertaining to the future of Forces nouvelles rank and file in the national army remains outstanding. However, some progress has been made in the reinsertion of the already registered combatants. The national civic service programme launched its training programme for youth at risk and ex-militias in the west of the country. Operations to profile and dismantle pro-Government militias, conducted by the integrated command centre and the national programme for reinsertion and community rehabilitation, have been launched in the western, eastern and southern parts of the country. Disarmament of militia elements in this phase is being carried out on a voluntary basis, and although sensitization efforts are ongoing to promote the handover of weapons, ammunition and other military items, almost none have been surrendered."

The national institutions established to implement the disarmament and reintegration of former combatants and militias continue to face financial and operational capacity constraints which

have hindered their activities. In addition, the parties are yet to formally endorse the results of the profiling operations as there are persisting differences on the number of former combatants and militias in the country. The availability of funds and payment modalities of the \$1,000 demobilization package to eligible Forces nouvelles and militia elements remains unclear. Meanwhile, UNOCI, in collaboration with the United Nations Development Programme (UNDP) and with resources from the Peacebuilding Fund, continued to support the reintegration process through the implementation of 335 microprojects benefiting a total of 1,180 ex-combatants, women and youth-at-risk."

Redeployment of State administration

United Nations Security Council, 13 October 2008, paras. 24-25

"While substantial progress has been made in redeploying the government officials that were displaced from the north during the conflict, those officials, including the préfets, are not yet able to exercise real authority as the Forces nouvelles zone commanders are reluctant to relinquish their administrative, security and financial authority in the areas under their control. The lack of adequate logistical and financial resources, as well as the protracted delays in re-establishing the judicial system and adequate police presence in the north also hampers the work of the redeployed State officials. The Ministry of Justice is considering retaining the judiciary personnel who were deployed in the north to support the electoral process. The effective redeployment of the judiciary and the ability of the préfets to function without impediments will be crucial for the smooth running and credibility of the electoral process.

The Ministry of Justice has submitted to the Government an operational matrix identifying the needs and the stages of redeployment of the justice administration to the north, centre and west that will be presented to the donors for funding. The four main categories of officials to be redeployed include magistrates, correctional officers, court registry and court staff. The Ministry is also drafting decrees for the appointment of magistrates. It would be crucial for the 10 courts located in the affected regions to begin functioning before the provisional electoral list is published, as they would adjudicate the complaints related to the voter registration process. "

United Nations Security Council, 13 April 2009, paras. 9-10

"Uneven progress was made in the efforts to restore State authority throughout the country, including the fiscal, customs and judicial administration. On 4 March, Prime Minister Soro inaugurated a "guichet unique" in Bouaké, collocating customs, fiscal and registration services. However, a ceremony to mark the transfer of authority from the Forces nouvelles zone commanders to the corps préfectoral, expected to take place on the same day, was postponed owing to the differences between the parties over the implementation modalities. The Forces nouvelles zone commanders therefore remain, de facto, in control of the local administration.

Meanwhile, nearly all judges and prosecutors were nominated and redeployed to the north, with the exception of six key positions, for which a presidential decree is still pending in spite of an agreement reached between the Ministry of Justice and the Conseil supérieur de la magistrature. The redeployment of court clerks and penitentiary personnel has yet to be completed, although nearly 100 corrections officers have been trained and are available for redeployment. Other factors continue to hamper the effective functioning of the judiciary in the north, including the insufficient presence of police and gendarmerie forces, poorly equipped or secured court premises and the need to rehabilitate court buildings. Eleven detention facilities in the north were rehabilitated and handed over to Ivorian authorities in January 2009. However, conditions of detention, including food and medicine shortages and overcrowding, remained of grave concern throughout Côte d'Ivoire. Public safety continued to be adversely affected by frequent prison breaks, as illustrated by the escape of 98 prisoners from Abengourou prison on 22 February."

Identification of the population and elections

United Nations Security Council, 13 October 2008, paras. 27-30

"It will be recalled that the Ouagadougou Agreement sought to accelerate the identification of those Ivorians who were eligible to vote. In that regard, the Agreement provided that all individuals who were on the voters' list in 2000 would be automatically eligible to receive national identity cards and voters' cards; the ongoing mobile courts would issue duplicate birth certificates to Ivorians aged 18 years and older, whose births had never been recorded in civil registers, to enable them to register to vote; and the civil registers that had been lost or destroyed during the conflict would be reconstituted to enable all other Ivorians who might not have been included on the 2000 voters' list to register to vote.

In my last report, I stated that the fourth round of the mobile court operations officially had ended on 15 May. Following the recommendation of the Permanent Consultative Framework meeting of 9 May, supplementary mobile courts were deployed on 27 August to issue duplicate birth certificates to applicants in areas that had not been adequately covered during the main operation. In that regard, the Ministry of Justice and Human Rights deployed 50 teams to 34 jurisdictions throughout the country. At the conclusion of the operation on 25 September, a total of 35,370 declaratory judgements in lieu of birth certificates had been issued. Of these, 32,239 were issued to Ivorian nationals and 3,131 to foreigners. The number of declaratory judgements issued in lieu of birth certificates since the mobile courts operations were launched in September 2007 stands at 750,000.

The identification of the population and the voter registration processes were launched on 15 September, subsequent to the promulgation of a decree on 14 September which stipulated that these two crucial processes would be conducted over a period of 45 days. As of 1 October, 5,849 Ivorians had been registered as voters. Although the pace of voter registration and identification is expected to increase as more teams are deployed throughout the country, it is unlikely that the process will be completed within the 45 days stipulated in the 14 September presidential decree.

The operation to reconstitute the civil registers and restore birth, marriage and death records that were lost or destroyed during the crisis was launched by the Minister of Justice on 15 May. The initial stages of the exercise involved preparing an inventory of the existing as well as destroyed and lost civil registers. The United Nations Office of Project Services, funded by the European Union, is providing technical assistance to this operation. Article 2 of the presidential decree adopted on 14 September stipulates that registration on the voters' roll of those applicants affected by the reconstitution operation should not change the time frame of the publication of the provisional electoral list."

United Nations Security Council, 13 April 2009, paras. 13-14

"As of 31 March, a total of 5.9 million Ivorians had been identified and registered as voters at the 10,730 registration centres opened, out of the 11,133 planned, countrywide. The identification and voter registration operations, including for Ivorians living abroad, continued to be marred by significant logistical, financial and procedural obstacles. Launched on 15 September 2008, the process was due to end on 31 March after several extensions, but required further prolongation to allow for the conduct of remedial operations to include areas not yet sufficiently covered and to register those affected by the reconstitution of lost or destroyed civil registers. The administrative phase of the operation for the reconstitution of lost or destroyed civil registers was launched on 27 January, and all but one of the 255 commissions were operational throughout the country by the end of March. Out of a total of 105,000 petitions received, some 41,000 have been approved and some 5,000 rejected thus far. The requests approved by the administrative commissions will be reviewed by judicial commissions following the end of the administrative phase.

On 29 March 2009, the Independent Electoral Commission announced the postponement of the registration of Ivorians abroad to an unspecified date owing to financial constraints encountered by SAGEM, a private French company and technical operator. Moreover, the Commission specified that remedial identification operations countrywide, initially planned for the beginning of

April 2009, would take place in mid-April. The Commission also indicated that it had developed a draft electoral timeline during its meeting on 27 February 2009. This timeline is contingent, however, on several prerequisites, which, according to its Chairman, are not within the purview of the Commission, including the need to fill the funding gap in its budget for the holding of the elections, the timeline for completing the reconstitution of lost and destroyed registers and the effective functioning of the first instance tribunals in the Forces nouvelles-held areas in order to settle legal disputes."

See also ISN Security Watch's *"Ivory Coast: Flames of Peace"* (14 August 2007) for an analysis of the first steps of the implementation of the Ouagadougou Agreement and the Carter Center's *"General Conclusions on the Cote d'Ivoire Identification and Voter Registration Process"* for a review of the identification process.



Presidential elections set for 29 November 2009, May 2009

Reuters, 14 May 2009:

"Ivory Coast's prime minister said his country will hold a long-delayed presidential election on Nov. 29, calling the timing "realistic", but analysts warned the date might slip like others set to end years of crisis.

[...]

"Nov. 29 is a realistic date. We think we have more clarity and visibility on the electoral process," Prime Minister Guillaume Soro said after a cabinet meeting on Thursday."

Main causes of displacement

Xenophobia and anti foreigner sentiments are a root cause of displacement (2004)

- The concept of foreigner stands in negative relief against "ivoirité" and leads to its consideration as the root cause of displacement and exclusion
- Thousands of people have been persecuted, harassed, threatened and evicted from their lands during the past few years because they, or their parents were foreign-born
- In November 1999, the anti-foreigner sentiment resulted in the displacement of 15,000 Burkinabes who were chased from their homes in the southwestern town of Tabou

- The conflation of ethnicity, culture and religion has proved particularly dangerous and several massacres have underscored the pattern of ethnic persecution as Muslims and other northerners claimed at the time that security forces in Abidjan had rounded them up and tortured them

Commission on Human Rights, 22 December 2004, paras. 50, 52, 53

“The outbreak of war in a context so dominated by this heightening of ethnic sensitivities by ideological, political, legal and administrative means helped push the dynamic of xenophobia into a higher gear. Representing as it did a shift from words to action, the war paved the way for pent-up feelings of frustration, fear and exclusion to spill over into acts of violence and other clearly xenophobic behaviours, some committed by the forces of law and order, the police, the armed forces and gendarmerie, or paramilitary groups, others by rebel groups. The next stage was that the various political rivals, appealing now to ethnic rather than democratic legitimacy, began acting and speaking in such a way as to effectively take the population hostage, giving the groups and communities whose interests they claimed to be defending the impression that they had no choice but to go along with their proposals and give them, if not their active support, at least a degree of approval.

[...]

E. The conflation of ethnicity, culture and religion

Côte d'Ivoire is a multireligious country made up principally of animists, Christians and Muslims. Although the north is usually portrayed as mainly Muslim and the south as Christian, Côte d'Ivoire has for a great many years benefited from a rich mix of coexisting faiths. Thus while the majority in the north are indeed the mainly Muslim north Mande, there are also Gur, who are basically Christians or animists. To the west live the southern Mande, who include Christians (some of them Yacouba and some Gouro), animists (Yacouba, Gouro and Krou) and Muslims (chiefly Yacouba). The east of the country is inhabited mainly by Akan, for the most part animists or Christians, while to the south live Krou, Lagunaires and Akan, again mainly animists or Christians.

However, during his visit, the Special Rapporteur found that the withdrawal into a core identity had given rise to a tendency to conflate ethnicity and religion, a particularly dangerous shift. Thus it emerges from reports received that northerners, foreigners and those who oppose the President are being termed Muslims. Some of the media have fanned the hatred of certain sections of the population for Muslim communities, who have apparently been accused of wishing to “incinerate Côte d'Ivoire”. The Special Rapporteur has received reports of a proliferation of Islamophobic acts such as damage to places of worship, the destruction of Muslims' property, as well as violence and torture and even summary executions of members of the Muslim faith. Several imams have allegedly been murdered.”

Alertnet, 23 June 2003

“Since the start of the war in Ivory Coast, approximately 400,000 foreigners have fled the country, including about 200,000 Burkinabes, 70,000 Guineans, 48,000 Malians, and 44,000 Liberians.

These people were not simply fleeing the conflict. Instead, many have run from the hostile xenophobia that has grown rampant in the past year in Ivory Coast. Thousands have been harassed, threatened and evicted from their homes or their lands.

When I visited Ivory Coast in March I was stunned by what I found. I travelled there expecting to investigate the needs of people fleeing the fighting between the rebels and the government, which had been well documented by NGOs and the media.

Instead I discovered a serious problem that was hardly being reported: many people were fleeing persecution because they, or their parents, were foreign-born. Ivorian civilians and military have harassed, threatened, and in a few instances, killed those considered foreigners.

Let's parse the term "foreigner". By the government definition, anyone whose parents were not born in Ivory Coast -- both parents, mind you -- is regarded as foreign. This working definition renders about 30 percent of Ivory Coast's 16 million inhabitants foreign, and, thereby, subject to hostility, even though many of these foreigners have never set foot outside Ivory Coast.

The concept of foreigner stands in negative relief against that of *ivoirité*, or "ivorianness." One's *ivoirité* is established simply by lacking foreign-born parents, and yet this has become the credential du jour throughout Ivory Coast.

LICENCE TO PILLAGE

For some Ivorians, it has also become a licence to pillage, intimidate and kill. Military and armed local youth have organised outfits of terror in western Ivory Coast.

The 35,000 Liberian refugees that remain in Ivory Coast are in imminent danger of being caught up in the conflict in the west and being targeted by these bands of thugs. In effect, the Liberian refugees who have sought refuge in Ivory Coast in the past decade are again in need of a safe haven.

This campaign of xenophobia comes at a high cost, literally. Ivory Coast, the world's biggest cocoa producer, relied on thousands of foreigners to work in the plantations. The violence inspired by the government has had the effect of dispersing this labour force from the cacao and coffee plantations.

[...]

The origins of *ivoirité*-based ethnic tension are varied and complex. The notion itself began as a political tactic of former President Henri Konan-Bédié to prohibit some politicians, including prominent northerner Alassane Ouattara, from standing as president.

It has increased tensions among ethnic groups and created a division between the mainly Muslim north, which is where most of those considered "foreigners" are living, and the mainly Christian south.

CHASED FROM THEIR HOMES

In November 1999, the anti-foreigner sentiment resulted in the displacement of 15,000 Burkinabes who were chased from their homes in the southwestern town of Tabou.

In the past eight months of conflict, Burkinabes, along with other foreigners such as Malians and Liberians, have been the targets of hostility. An ethnic massacre at Yopougon, outside Abidjan, in October 2000 and the massacre of gendarmes by northern rebels in the town of Bouaké in October 2002 exemplified ethnic hostility.

The roadblocks to peace in Ivory Coast are legion. Human rights abuses, including forced recruitment, must be stopped immediately. Liberian refugees need to be moved from western Ivory Coast to a safer area.

The government must ensure the protection of immigrants and refugees. It should also establish a new legal framework that liberalises citizenship requirements and protects the rights of foreign nationals living and working in the country.

These measures alone will not suffice. The government must also root out its own hypocrisy on the matter. For a government that has occasionally encouraged anti-immigrant and anti-refugee sentiments by publicly reviling foreigners, taking an active and public role in soothing xenophobic tension is imperative.

National reconciliation in any meaningful sense cannot happen until the government defuses ivoirité, and welcomes its citizens - all of them - to a persecution-free Ivory Coast. Until the people of Ivory Coast scrap the identity politics, there is little hope for a lasting peace."

Refugees International, 6 May 2003

"Since the start of Ivory Coast's conflict on September 19, 2002, more than one million people have been displaced. In addition to the political turmoil that has impelled their flight, many of these people have fled persecution. In the last seven months of conflict, the Government of Ivory Coast has occasionally encouraged anti-immigrant and anti-refugee sentiments by publicly reviling "foreigners."

Although a new government of national unity was recently created and a ceasefire was signed this weekend, failure to curb xenophobic laws and attitudes could compromise attempts at peaceful resolution and catalyze further displacement.

The term "foreigners" in this case is a misnomer: many of those being persecuted were actually born or raised in Ivory Coast, and some have never been outside of the country.

But by the government's narrow definition of "Ivoirian," about 30% of Ivory Coast's 16 million inhabitants are considered "foreigners" because both parents were not born in Ivory Coast. Ivoirian civilians and military have harassed, threatened, and in a few instances, killed those designated foreigners. Since the start of the war, approximately 400,000 "foreigners" have fled the country, including about 200,000 Burkinabès, 70,000 Guineans, 48,000 Malians, and 44,000 Liberians.

Members of the international community have highlighted the importance of national reconciliation, and have pointed to the need to address the anti-immigrant sentiment. The United Nations Humanitarian Envoy to Ivory Coast, Carolyn McAskie, and the new National Reconciliation Minister, Sebastien Danon Djedje, discussed xenophobia when they met recently.

On April 24, the UN information network reported that in this meeting with the new minister, McAskie "highlighted the importance of his portfolio, assured him that the international community was willing to help Ivory Coast's government, but noted the need for reconciliation at the government level."

The campaign of xenophobia has already caused massive damage to the country and the region. Thousands have been harassed, threatened, and evicted from their homes or their lands. In addition, damage to the regional economy has been great. Ivory Coast, the world's biggest cocoa producer, relied on thousands of foreigners to work in the plantations. The violence inspired by the government has had the effect of dispersing this labor force from the cacao and coffee plantations. The hostile and intimidating environment may leave the plantation workers reluctant to return even if Ivory Coast is stabilized. Such disruption of planting and harvesting - even for a short time - would deal a severe blow to a major pillar of West Africa's economy.

Neighboring countries have already suffered economic losses. For example, the Humanitarian Envoy reported, "Mali relied on Côte d'Ivoire for over 70% of its imports and exports, and along with Burkina Faso, and to a certain extent Niger, is suffering serious economic setbacks at a time when it is also affected by the drought in the Sahel." The violence and xenophobia in the Ivory Coast have had severe economic consequences: the loss of remittances, a poor agricultural

season, and the strain for communities in Burkina Faso and Mali of accepting thousands of returnees. Together, these consequences present a major challenge to the region.

Anti-foreigner sentiment is not new in Ivory Coast. The notion of "ivoirité" or "ivoirianness" started out as a political tactic of former President Konan-Bédié to prohibit some politicians, including prominent northerner Alassane Ouattara, from running for President. It has increased tensions among ethnic groups and created a division between the mainly Muslim north, which is where most of those considered "foreigners" are living, and the mainly Christian south.

In November 1999, the anti-foreigner sentiment resulted in the displacement of 15,000 Burkinabès who were chased from their homes in the southwestern town of Tabou. In the last seven months of conflict, Burkinabès, along with other foreigners such as Malians and Liberians, have been the targets of hostility.

In response to the latest outflow of Burkinabès, a UN worker told RI that "it appears to be rather clear cut that the Burkinabès have left Ivory Coast based on a well-founded fear of being persecuted owing to their nationality."

Several massacres have underscored the pattern of ethnic persecution. A recent Amnesty International report explained that an October 2002 massacre of gendarmes by the northern rebels in the town of Bouaké was reminiscent of an ethnic massacre at Yopougon (outside of Abidjan) in October 2000.

"All the victims of this massacre belonged to the Dioula ethnic group, a name often used to describe Côte d'Ivoire nationals from the north of the country... [Dioula] is also sometimes used to describe nationals of neighboring countries, especially those from Burkina Faso, Mali and Guinea," stated Amnesty. The report added that until the massacre at Yopougon, "[Ivory Coast] had steered clear of ethnically motivated massacres and violence, even though for some years, certain sections of the press and the state media had been regularly publishing xenophobic material promoting the ideology of 'ivoirité.'"

Refugees International has advocated for increased protection of Liberian refugees in Ivory Coast who also face anti-foreigner threats. In March, RI reported, "More than 35,000 Liberian refugees that remain in the Ivory Coast are in imminent danger of being caught up in the conflict in the west or targeted by the military and armed local youth.

These Liberian refugees, who [have] sought refuge in the Ivory Coast over the last decade, are again in need of a safe haven." This safe haven has not been furnished. Furthermore, recent reports from western Ivory Coast state that there is an increase of forced recruitment of these refugees."

Government and rebel forces cause mass displacement in Abidjan and provinces in aftermath of failed coup of September 2002

- In September 2002, a failed coup by disaffected soldiers marked the beginning of the worst crisis in Cote d'Ivoire's post-independence history
- Hundreds of thousands of people were displaced by fighting which left rebels in control of much of the predominantly Muslim north of the country
- At least 200,000 people were estimated to have fled the rebel-held northern town of Bouake, and several thousand were made homeless in the economic capital Abidjan by a government demolition policy aimed at rooting out dissidents

- Fierce fighting between government forces and two new rebel factions in the west of the country, as well as systematic human rights abuses against civilians displaced more than one million people, including some 150,000 who fled to neighbouring countries

UNHCR, 8 October 2002

“UNHCR remains concerned about the ongoing developments in Cote d'Ivoire amid reports of growing internal displacement following renewed fighting after the collapse of cease-fire negotiations on Sunday. A government-sanctioned program to raze shanty towns in Abidjan is also continuing, displacing thousands of local residents and foreigners, including refugees.

As a result of the renewed fighting in Bouake, a humanitarian inter-agency needs-assessment mission (OCHA, UNICEF, WFP, WHO and UNHCR) that was heading towards Bouaké yesterday (Monday) to assess the dire humanitarian situation there was turned back on the outskirts of Abidjan for security reasons. An advance team left Abidjan again this morning to the capital, Yamoussoukro. Depending on security conditions, the planned inter-agency mission to Bouake could take place in the next few days.

Worsening conditions in Bouake, including lack of water, electricity and food supplies, have prompted,

In Abidjan, meanwhile, the demolition of houses in the city's shanty towns continues, affecting thousands of Abidjan's local and foreign inhabitants, including refugees. The governor of Abidjan announced on Friday that the burning of shanty towns in Abidjan is expected to be completed in one month. During a visit to UNHCR's office in Abidjan on Friday, however, the Minister of Human Rights said the razing of shanty towns would be suspended for ten days. There is still no suspension, however. Such a suspension would be welcomed because it would give humanitarian agencies some more time to find alternative accommodation for the thousands of people, including migrants, refugees and Ivorians, who are being displaced on a daily basis. The minister told UNHCR that this is not an operation against foreigners, as many Ivorians are also affected. She reiterated that refugees have always been welcome in Cote d'Ivoire and remain so.”

UN OCHA, 15 October 2002

“According to mission members, the city of Bouake has partially become a ‘ghost town’ with several neighbourhoods completely empty of its residents. Shops, banks, pharmacies and commercial businesses remained closed since the 19th of September. The inability of Bouake's remaining residents to withdraw money from the banks is creating an increasingly untenable situation. The few open markets have very limited produce with only onions and yams available in some quantity. In addition, the prices of these basic commodities have increased three to four times from their original price since the beginning of the conflict. Cooking gas or charcoal has also become very scarce and expensive.

While hospitals and other social services are barely functioning, most of the medical personnel have either left the city or are unable to leave their homes.

The mission witnessed an estimated influx of more than 32,000 people fleeing Bouake in the direction of Brobo, M'Bahiakro, Sakassou, Didievei and Yamoussoukro. This brings to about 200,000 the number of people estimated to have left Bouake and become internally displaced persons [IDPs]. The figures, collected from some of the transit centers in the region of Bouake, are partial and need to be verified. After leaving Bouake some of the IDPs proceeded to their villages of origin or towns located further south of the ‘ghost town’. Women and children are the most affected, exhibiting signs of extreme exhaustion and fatigue including swollen feet, after two to three days of walking to safety. The Catholic Church has been instrumental in providing shelter and food, and in some instances transportation for the displaced. Their capacity to continue this level of services will be stretched to the limit should the flow of displaced persons continue to increase.”

IRIN, 29 January 2003

"The UN children's agency, UNICEF, has appealed for US \$5.7 million for emergency health, nutrition and education to cover over the next two months needs of more than one million people displaced by conflict in Cote d'Ivoire, over the next two months. At least 150,000 of the displaced had crossed into neighboring countries, straining already weak social service systems.

'Four months after the attempted coup in Côte d'Ivoire, the country is teetering on the brink of a catastrophe that threatens to trigger massive population upheaval if fighting between rebels and government forces continues,' UNICEF said. 'The political turmoil has unleashed an anti-immigrant sentiment affecting millions of foreigners in Côte d'Ivoire that likely will linger even if a solution to the current military standoff can be found. Vigilante groups, often acting with total impunity, continue to target immigrants from the sub-region.' "

Abuses in rebel-held areas cause renewed displacement following November 2004 crisis (2004-2005)

- Rebels in northern Cote d'Ivoire have reportedly increased human rights violations against civilians since November 2004, including kidnapping for ransom, which has caused new displacement
- Thousands of IDPs sheltering at various sites and with host families following attacks and harassment by Forces nouvelles rebels remain too afraid to return to the north
- In Abidjan, the humanitarian situation of IDPs continues to deteriorate and little assistance is provided

IRIN, 25 November 2004

"Government bombs may have stopped falling on towns in the northern half of Cote d'Ivoire, but now rebels are taking residents hostage for ransom, reports of human rights violations are on the increase, and the price of essential items such as bread and fuel has doubled.

Rebel forces, who hold the north of the country and were hit by Ivorian airplanes when an 18-month ceasefire was shattered on 4 November, are reported to be raiding villages to demand cash.

Some commentators in the Abidjan press see this as part of a drive by the rebels to strengthen their war chest in case full-scale conflict resumes.

An Ivorian woman, who asked not to be identified, told IRIN on Thursday that rebels fighters had stormed her home village of Konaklo in early November, looking for money.

All the young men in Konaklo, which lies about 50 km from the main rebel stronghold Bouake, fled into the bush as the rebel fighters arrived. The gunmen began breaking into houses to search for hidden notes and beat up many of the people they found inside, who pleaded that they had nothing left to give.

The woman said her own mother, who is aged over 70, also fled. She was smuggled over the frontline by a young nephew, who carried her on his bicycle.

Four middle-aged men were not so lucky. They were taken hostage by the rebels, who imprisoned them in containers seven kilometres down the road in the town of Sakassou, pending the payment of a 1.5 million CFA (\$3,000) ransom.

The New Forces rebel movement have used containers as makeshift prisons before in the northern city of Korhogo.

A UN human rights investigation into clashes between rival rebel factions in Korhogo in June reported that dozens of people were arrested and held in hot airless containers. A medical examination of 99 bodies discovered in mass graves on the outskirts of the city showed that many of them had suffocated to death.

Race to raise funds

With their neighbours languishing in custody, the remaining Konaklo villagers were only able to raise one million francs between them, the woman said. They therefore sent an envoy to Abidjan at the end of last week to raise the remaining 500,000 CFA (\$1,000) from people who had left the farming community to seek jobs in Cote d'Ivoire's economic capital.

The woman said the rebel fighters gave no reasons for demanding money and did not accuse the villagers, who are mostly from the Baoule ethnic group of former president Felix Houphouet Boigny, of siding with the government.

But she said the rebel gunmen threatened bluntly to kill the hostages and burn down the entire village unless the money was paid. One of her relatives, who witnessed the scene first-hand, quoted the leader of the rebel fighters as saying: 'If you don't give us the money, you won't see them again. They will be dead.' "

UN OCHA, 17 January 2005

"Internally Displaced Persons (IDPs) remain a particularly vulnerable group in Côte d'Ivoire. It is expected that more humanitarian assistance will be needed in 2005 as many IDPs and their host families have exhausted their resources and no longer have the capacity to cope with a third year of crisis. In the meanwhile, new displacements have taken place since the November crisis, also demanding humanitarian assistance.

Between August and December 2004, IOM has registered 1.233 new arrivals at the IDP centre in Guiglo since August 2004. There are now a total of 6.648 IDPs at the centre. Many of the new arrivals are IDPs who until recently were living with host communities in and around Guiglo, who have come to the centre to benefit from the humanitarian assistance available at the camp. It is expected that more families will arrive at the camp in 2005 as many no longer have the coping mechanisms to deal with a third year of little revenue and limited food stock. IOM is concerned, as the IDP centre does not have the capacity to deal with this growing population. In December the centre received 15 new tents and 2 kitchens in order to cater for the new arrivals.

Over 3500 IDPs, the majority of them children and women, remain sheltered at various sites and with host families in the towns of Priko and M'Bahiakro situated within the zone of confidence. The many IDPs gathered here following attacks and harassment by the Forces Nouvelles in early November. Humanitarian aid agencies have provided assistance and are currently reviewing the possibility of facilitating their return to the North. A joint mission including ONUCI, FIANCI and Licorne went to Priko and M'bahiakro to encourage the return of IDPs to the village of Bonguera, so far 35 IDPs in M'Bahiakro returned to Bonguéra, however many are still wary of the security situation and prefer to wait. UNICEF has ensured the supply of water and sanitation to these two towns as well as conducted a vaccination campaign against measles and provided vitamin A supplements for the children. WFP has distributed 30days of ration benefiting 2109 IDPs.

UNHCR has commenced its repatriation programme for 2005. In early January 100 Liberian refugees from Bolequin were voluntarily repatriated to Liberia with the support of GTZ and

SAARA. Another 50 refugees will be flown to Liberia by UNHCR on 18th January. UNHCR plans to repatriate approximately 45.000 Liberian refugees by the end of 2005. It is estimated that there are currently 72.000 refugees living in Côte d'Ivoire.

OCHA Korhogo, has received reports from the local NGO ARK, that a group of Ivorian refugees from Mali have returned to the border town of Pogo in Côte d'Ivoire and are in need of assistance. OCHA Korhogo is currently organising an assessment/verification mission to the site.

The Mie N'Gou centre in Yamoussoukro, will remain open until further notice. The centre was scheduled to close by the end of the year 2004. The 479 IDPs residing there have refused to leave following the November crisis as they are concerned about the security situation in the North. The local NGO ASAPSU continues to provide medical assistance to the IDPs at the centre and WFP provides food assistance.

The number of refugees in the Tabou refugee camp has increased by 128 people since September 2004. The new arrivals previously lived with host communities, but had come to the camp for assistance due to increased vulnerability from sickness and/or poverty. WFP distributes food aid to the refugees at the camp, in September WFP distributed aid to 3,369 refugees, in January 3,497 people benefited from assistance.

In Abidjan, the humanitarian situation of IDPs continues to deteriorate and little assistance is provided. A local association for IDPs from Bouaké, has reported that many of those who had returned to the North have now come back to Abidjan following the crisis of November. In Abobo, there are 11 631 IDPs from the North of which 2412 are children. Enfance Meurtrie Sans Frontières (EMSF) is the only international NGO currently providing assistance to this group."

Resumption of armed clashes and mob violence in Abidjan causes displacement and mass evacuation of expatriates (November 2004)

- In November 2004 government warplanes bombed the rebel stronghold of Bouake in an operation to retake the north, killing nine French peacekeepers and an American aid worker
- France's response of destroying Cote d'Ivoire's airforce sparked widespread mob violence in Abidjan, targeting mainly French citizens as well as opposition politicians and immigrants
- Several thousand expatriates were evacuated amid accusations that France was supporting Ivorian rebels

AFP, 5 November 2004

"The Ivory Coast military on Friday resumed air strikes on positions held by former rebels, after 24 hours of air raids and political violence targeting opposition parties in Abidjan raised fears of a collapse back into civil strife.

Regional leaders prepared talks to cool the situation, with African Union leaders calling a crisis meeting for Saturday, while UN agencies suspended relief and humanitarian work in response to the fighting.

On Thursday, military aircraft attacked strongholds of the ex-rebel New Forces (NF) at Bouake in central Ivory Coast and Korhogo in the north, leading NF officials to describe a shaky peace pact as 'defunct'.

[...]

The Ivorian military said Thursday's raids -- in which three people died and at least 40 were wounded -- had achieved their objectives, destroying ex-rebel camps and strategic targets in both cities.

Overnight arson attacks on opposition party buildings in Abidjan and belligerent language from both sides have added to tensions in the divided country.

Radical young supporters of Ivory Coast President Laurent Gbagbo ransacked the Abidjan offices of two main opposition parties late Thursday, also torching the offices of three pro-opposition newspapers.

Targeted were the Ivory Coast Democratic Party (PDCI), the country's former ruling and now main opposition party, and the Rally for Republicans (RDR) which is led by exiled former prime minister Alassane Ouattara."

IRIN, 7 November 2004

"Militant supporters of President Laurent Gbagbo rampaged through Abidjan's streets overnight, looting and burning French homes, schools and businesses and forcing France's military to airlift more than 150 foreigners to safety and send in troops to restore calm.

The violence erupted in Cote d'Ivoire's commercial capital after France destroyed almost the entire airforce of its former colony, following the Ivorian army's bombardment of a French base in the north. Nine French peacekeepers and one American civilian died in Saturday's bombing on the rebel town of Bouake.

Pro-Gbagbo militants, some wielding machetes and sticks, set fire to three French schools and the offices of the Orange mobile phone company. French-owned restaurants, hotels and homes were also looted as militant leader Charles Ble Goude called on his Young Patriots group to 'go and liberate Cote d'Ivoire'."

IRIN, 8 November 2004

"France sought on Monday to reassure thousands of angry Ivorian demonstrators that it was not trying to topple President Laurent Gbagbo, after a weekend of mob violence forced more than 2,000 foreigners to flee their homes.

As French troops tried to restore calm to the streets of the West African nation, French diplomats scurried to push a resolution through the UN Security Council that would impose penalties on Cote d'Ivoire, while South African President Thabo Mbeki prepared to fly into Abidjan to kick-start the battered peace process.

Ivorian youths began setting fire to French schools and businesses, looting homes and threatening foreigners on Saturday after the French army destroyed almost the entire Ivorian air force in retaliation for the killing of nine of its peacekeepers in an aerial bombardment in the northern town of Bouake.

At least 2,050 foreign residents were sheltering in French and UN military bases in Abidjan on Monday, many having been plucked by helicopter from their homes as they came under attack from angry mobs, some armed with sticks, stones and machetes.

The International Committee of the Red Cross said well over 400 people had been treated on Sunday, some for wounds from live ammunition and it appealed to be allowed to continue its activities unharmed.

Gbagbo made his first television appearance late Sunday, appealing to protesters to head home and not let themselves be provoked, but on Monday around 5,000 demonstrators lined up opposite French tanks stationed outside the Hotel Ivoire in the upmarket suburb of Cocody.

Screaming anti-French slogans and carrying banners branding the French assassins, the protesters rallied at the hotel following a morning appeal on state radio to form a human shield to protect Gbagbo, whose residence is nearby.

A diplomat at the hotel said French troops had fired shots in the air to disperse the protesters. Ivorian state television broadcast images of injured people getting to hospital. Over the weekend, it also showed the bodies of protesters who, it said, had been killed by French forces.

However it was unclear how many casualties there were."

Inter-communal clashes displace civilians, 2002-2008

- Inter-communal violence in western Cote d'Ivoire has been on the increase since the failed coup of September 2002, continuing into 2008, displacing many hundreds of people
- Violence in the western regions of Moyen-Cavally and Dix-Huit Montagnes had originally been provoked by indisciplined bands of Liberian militiamen, but more recently has involved villagers of the local Guere tribe and settlers from Burkina Faso, Guinea and other parts of Cote d'Ivoire who grow cocoa in the region
- Thousands of immigrants were chased off their land during and soon after the crisis in 2002, and many sought refuge at the already overburdened camps in Guiglo and Niela
- Complicated property issues in cocoa-growing areas and the proliferation of small arms have contributed to the ongoing tensions in western Cote d'Ivoire although land conflicts were also registered in the south and in the north
- There are also examples of inter-communal violence between pastoralists and agriculturalists

UN Human Rights Council, 18 October 2006, para. 10

" The Representative of the Secretary-General concludes from various discussions he had that the causes of population displacement today are basically related to the conflict that broke out in September 2002. According to the information he received, displacement has many causes. First, people have fled areas of conflict following attacks on military facilities in Abidjan, Bouaké and Korhogo. The Representative of the Secretary-General was also informed about displacements that occurred between October 2002 and March 2003 in Abidjan after the destruction of some of the poorest districts there. In the west of the country and in the 'zone of confidence', which are under the control of the neutral forces of Operation Licorne and UNOCI, inter-community conflicts are also a cause of population displacement. The Representative of the Secretary-General notes, moreover, that a general sense of insecurity with regard to political developments, fear of reprisals from one of the two parties to the conflict, the dismantling of the public administration and the destruction of infrastructure in the area controlled by the Forces Nouvelles and in the zone of confidence, as well as the economic consequences of the conflict, are at the root of some of the more recent cases of displacement."

UN, 18 November 2005

Examples of inter Community conflicts in 2005

Date	Principal events	Impact assessment
28 February 2005	Following the attack on the positions of the <i>Force Armée des Forces Nouvelles</i> (FAFN) at Logoualé, the youths of the MILOCI militia set fire to the houses of the so-called alien Burkinabe (from Burkina Faso) at Fengolo, who in turn retaliated by burning the houses of the Guérés	Destruction of the majority of the houses at Fengolo and all the indigenous population fled to Duékoué
16 March 2005	Request for investigation by UNOCI following the death of 13 so-called alien villagers who were said to have been tortured by the forest guards in the Marahoué national park	13 fatalities and several wounded
30 March 2005	An argument between Dioula and Baoulé (ethnic groups) children led to inter-ethnic clash between two communities at Boli village	6 people suffered severe injuries, hundreds of people were displaced and the majority of the houses and shops were torched
29 April 2005	Inter ethnic clashes between the Dioulas and the Guérés at Duékoué	More than 15 died and some 500 people were displaced at Duékoué
30 mai/02 June 2005	Another inter ethnic incidents between Dioulas and the Guérés at Duékoué	More than 70 died and some 5000 people were displaced at Duékoué and at Man
14/15 June 2005	Expropriation by the so-called local Attié youth of farmers from the North, (of the Lobi, Koulango and Abron ethnic groups), who have been in Attié country for generations	More than 500 displaced persons people at Alépé,
23/24 Juillet 2005	Attack by unidentified elements at Agboville and Anyama	Some 25 deaths including 7 soldiers

Centre-north Cote d'Ivoire (regions: Bafing, Zanzan)

UNOCI, 8 September 2008

"Eight people were killed, 21 wounded and 400 displaced after violent confrontations between villagers from Assandogo and Marahui, 86 km from Bondoukou in eastern Côte d'Ivoire, on 3 and 5 September 2008. According to information received by a UNOCI patrol which went to Marahui yesterday, trouble started when a group of about 60 people from the Lobi community from Assandogo went to Marahui to attack members of the Koulango community on 3 September 2008. They attacked them with machetes, 12 calibre rifles and knives and burnt down their houses. Two days later, on 5 September 2008, a larger group of Lobis returned to Marahui and carried out a second attack. Most of the displaced are taking refuge in a school in Bondoukou. UNOCI's Ghanaian battalion, which is based in the town, has donated medicines and food to the injured in hospital. The Gendarmerie is providing security to the displaced people and the National Armed Forces of Côte d'Ivoire (FANCI) has promised to send reinforcement to provide security in the village."

UN OCHA, 8 July 2007

"La cohabitation entre les éleveurs peuhls et les agriculteurs de Touba, est de plus en plus difficile. Les agriculteurs ont souvent manifesté leur mécontentement face à la dévastation des champs et des récoltes par les bœufs. Un conflit qui s'est déclenché dans la semaine du 25 au 30 juin 2007 suite au refus d'un jeune peuhl de répondre à une convocation des autorités villageoises Toranou S/P de Booko, s'est vite répandu dans 9 autres villages de ladite sous-préfecture. Les peuhls de ces villages ont été chassés, 2 cases ont été saccagées et des troupeaux de bœufs dispersés. Il faut ajouter qu'il y a eu des pertes d'argent et autres biens matériels chez les peuhls. Ce sont environ 120 personnes qui ont quitté leurs cases. Vingt déplacés se sont réfugiés à Touba et 100 autres se sont rendus à Odienné où ils vivent chez leurs compatriotes dans conditions de forte promiscuité."

Western Cote d'Ivoire (regions: Moyen-Cavally, Dix-Huit Montagnes)

OCHA, 6 October 2008

"En réponse à la situation de conflit intercommunautaire latent qui prévaut à Seoun Guiglo entre autochtones et allogènes/allochtones, une mission conjointe CARE international et OCHA s'est rendue le 29 septembre 2008 dans le village de Seoun Guiglo et dans le campement Petit Guézon. Il ressort de cette mission que la cohésion sociale est en mal dans la zone entre les communautés sus citées. Un problème foncier serait à la base de ce malaise. En effet, aux dires des autochtones guéré du village de Seoun Guiglo, les populations allogènes exploitent illicitement leurs forêts. Les allogènes quant à eux, estiment exploiter légalement ces forêts qu'ils ont achetées avec les autochtones et que ces de braquages sont des manœuvres pour les obliger à fuir les forêts. Les braquages et tueries orchestrés par un gang qui serait installé dans la forêt depuis trois ans, ont envenimé la situation vu que les victimes seraient uniquement des allogènes/allochtones. D'où des suspicions de part et d'autre, les uns estimant que les braquages/tueries sont organisés pour les dissuader de poursuivre l'exploitation de la forêt, les autres se disant innocents estimerait que des représailles seraient en cours de préparation. Compte tenu de la tension perceptible entre les autochtones et allogènes et dans la crainte des représailles, des mouvements de populations (Nombre non encore déterminé) seraient constatés dans le village de Seoun Guiglo depuis le 21 septembre 2008 en direction des localités de Diourouzon, Guéhiébly, Guinglo Sropan, Dah Zagna et Bangolo. Le dernier braquage (voir sitrep n°39 du 22 au 28 septembre 09) qui a coûté la vie à 3 personnes et la disparition de 4 autres serait l'élément de trop qui a amené les populations étrangères dans leur ensemble, à prendre des dispositions pour leur propre sécurisation. La mission a effectivement constaté que les populations de Seoun Guiglo ont quitté le village, pour se réfugier dans les villages voisins."

US Department of State, 11 March 2008

"New population displacements continued on a regular basis in the western region, particularly in the area around Guiglo and in the former ZOC, although on a much smaller scale than had occurred in previous years. Persons who had settled on abandoned plantations during the crisis were themselves displaced by returning landowners. During the year confusion over land tenure caused significant tension in the region as ethnically different returning communities and those who were never displaced were required to negotiate a new and delicate balance of power. Although the origin of most disputes appeared to be economic, generally resulting from issues of land tenure and access to arable farmland, most of these conflicts also cut along ethnic lines."

UNOCI, 29 January 2008

"A group of forty people led by a local militia leader made death threats against villagers in Douekpé, western Cote d'Ivoire, on 25 January 2008, forcing them to flee into the bush. According to Military Observers who visited the village, members of the group had allegedly provided security in the village during the Ivorian crisis, and deliberately threatened the villagers in order to draw the attention of government to their grievance: they claim they have not been paid by the authorities for the work they did. The village chief has requested protection from the Bangolo Mixed Brigade and increased patrols by the Impartial Forces. MORBATT is closely monitoring the situation."

UN Human Rights Council, 18 October 2006, para. 11

"Many observers have drawn attention to the land-related conflicts that have given rise to a large number of displacements, especially in the west, a highly agricultural area. Many people are reported to have been chased from their homes in Moyen Cavammy region since 2003, often by gangs of youths or by village or ethnic-based self-defence committees. Recent events in late 2004 and in 2005 have also given rise to displacements in the regions of Guiglo, Bolequin and Duékoué. In this region, the land issue continues to give rise to further displacements following inter-community clashes and criminal attacks. The Representative of the Secretary-General also

observed that, while the recent crisis in the country has had an impact on internal displacement, especially as a result of political groups exploiting the problem for political ends, the land issue and subsequent inter-community conflicts predate the crisis."

OCHA, 13 March 2006

"L'Ouest du pays reste le théâtre de déplacements des populations en raison des affrontements entre les différentes communautés ethniques. Dans la nuit du 05 au 06 février 2006, le campement de Peehapa du village Mona, situé à environ 17 km de Guiglo a été attaqué par des individus non encore identifiés. Au total, 12 personnes appartenant aux communautés Guéré et Gnaboua (ethnie minoritaire ivoirienne) ont été tuées et il y a eu plusieurs autres blessées. Cette attaque a provoqué un mouvement de population dans la zone. Une vingtaine des familles déplacées a été signalée par le comité de crise de la mairie de Guiglo. Les familles déplacées ont trouvé refuge dans des familles d'accueil. Les autorités politico-administratives et militaires de Guiglo ont ouvert une enquête qui se poursuit.

Suite à l'attaque de Peehapa, un groupe des jeunes des villages de Zouan et de Monan situés à une dizaine de kilomètres à l'ouest de Guiglo se sont mobilisés le 13 février 2006, pour aller attaquer le Centre d'Accueil Temporaire (CATD) à Guiglo. Selon les rapports des FDS, les jeunes voulaient se venger de l'assassinat de leurs douze (12) parents dans le campement de Peehapa une semaine avant. Ils accusaient les burkinabés d'être les auteurs de ce massacre. Les autorités locales (mairie, préfecture et FDS) informées des menaces, se sont rendues sur le lieu et ont contenu les jeunes. Les autorités locales restent en contact avec le comité de déplacés et ont promis de continuer à assurer leur sécurité. "

Human Rights Watch, 3 June 2005

"In the past week alone, renewed clashes between local indigenous groups and farm workers from the north and neighbouring countries have brought the total number of dead in western Côte d'Ivoire since February to at least 89. Ethnic tension in this fertile cocoa-producing region predates the civil war between northern-based rebels and the Ivorian government, which is primarily composed of officials from the south and west.

Despite the end of the war in 2003, tension has remained high between indigenous groups in the west and the northern and foreign-born workers who for decades have worked on the local cacao plantations. In recent years, this tension has been both exploited and exacerbated by the country's political and military divisions.

[...]

At least three waves of communal violence have broken out in Côte d'Ivoire in the last four months. On February 28, an attack by government-backed militia on the rebel-held town of Logoualé sparked ethnically motivated attacks between the indigenous Wê tribe and immigrant farm workers, mostly from Burkina Faso, that caused some 16 deaths. The violence also caused more than 13,000 villagers to flee, and left several villages in flames. In late April, several days of interethnic fighting around Duékoué resulted in the death of at least 15 people from the indigenous Guéré and Northern Dioula tribes.

The latest wave began one week ago when Guéré tribesmen allegedly killed at least four farmers from the Senoufo ethnic tribe, which originates from the northern part of the country. On May 31, unidentified men attacked the two largely Guéré villages of Guitrozon and Petit Duékoué, shooting, stabbing or burning to death at least 41. This in turn triggered more attacks against Dioulas and Burkinabe (those originally from Burkina Faso), which on June 1 claimed at least another 11 lives.

[...]

The western region of Côte d'Ivoire, the heart of the country's vital cocoa and coffee industry, is a zone of smoldering instability which, if ignited, could engulf the whole sub-region. For decades,

immigrants from Burkina Faso, Mali, Niger and Guinea have provided cheap labor for local landowners, which helped turn Côte d'Ivoire into the world's leading cocoa producer.

However, competition over land rights, economic decline and the 2002-2003 civil war resulted in ever-increasing ethnic tension. As a result, both indigenous groups and immigrant farmers have organized themselves into militias and self-defense groups resulting in a lethal tit-for-tat dynamic between the groups. Western Côte d'Ivoire saw the heaviest fighting in the months after the September 2002 rebellion."

Southern Cote d'Ivoire (regions: Bas-Sassandra, Agnéby)

UNOCI, 21 September 2007, paras. 47-48

"Le mercredi 30 août, le corps sans vie d'Olivier Ayekoué Kouadio a été découvert dans un puits près du quartier Dioulakro, à Moapé, village situé dans la Sous-Préfecture d'Adzopé. Les autochtones ont aussitôt organisé une expédition punitive contre les allogènes qu'ils ont accusés d'être à l'origine de ce drame. Ce conflit a entraîné le déplacement interne de plus de 100 familles qui se sont réfugiées à la gendarmerie d'Adzopé avant d'être accueillies par leurs communautés respectives. La situation étant redevenue calme, les familles ont commencé à regagner le village de Moapé au mois de septembre.

Une personne de l'ethnie Abouré a été tuée le dimanche 10 septembre au cours d'affrontements entre les communautés Abouré et Gwa, dans la localité d'Alépé. Ce décès a été confirmé par le Commandant Guy Tanny, de la Compagnie de la Gendarmerie nationale d'Alépé. Il s'agirait selon lui, de vieux conflits interethniques qui éclatent de façon sporadique."

OCHA, 13 March 2006

"En janvier 2006 le département de Tabou a connu les mouvements importants des populations suite aux tensions inter-communautaires. Les affrontements inter-communautaires à Yakro le 19 janvier 2006, entre les lobi (groupe ethnique du nord de la Côte d'Ivoire avec des ramifications au Burkina Faso) et les populations considérées comme « allogènes » (baoulé et abron) et « autochtones » (krumen), ont fait 09 morts et plusieurs blessés. Face à la dégradation de la situation sécuritaire, les populations de Yaokro ont fui leur campement pour se réfugier dans les villages voisins et ensuite à la mission catholique de Tabou. Pendant les premiers jours, 153 déplacés avaient été enregistrés sur le site de la mission catholique. Les déplacés étaient pris en charge par le HCR et la mission catholique. La mission du PAM sur le terrain les 26-28 janvier 2006 a confirmé les faits.

A la fin du mois de février 2006, les déplacés ont quitté le site de la mission. Toutefois, IRC-Tabou a rapporté que le village de Niplou (approximativement 35 km de Tabou) reste toujours vide de presque toute sa population (environ 289 personnes) qui a trouvé le refuge dans les villages environnants, notamment à Béséréké (25 km de Tabou) pour des raisons de sécurité. Selon les autorités locales de Déholinké, les populations n'ont pas accès à leurs champs parce que des hommes armés (apparemment des lobis) les empêchent d'y accéder."

See also, International Crisis Group (ICG), [Cote d'Ivoire: 'The War Is Not Yet Over'](#), 28 November 2003

POPULATION FIGURES AND PROFILE

Global figures

Some 600,000 people are still displaced (April 2009)

There are no comprehensive statistics on return movements and therefore no clear number of people still internally displaced in Cote d'Ivoire. The estimate of around 600,000 is obtained by subtracting the number of registered IDPs who have returned to western Cote d'Ivoire (77,860) and that of redeployed civil servants (18,343) from the figure calculated by ENSEA in 2006 (709,377). It is unclear how many of the new displaced are currently still so.

UN OCHA, April 2009:

N.B. : Cumul des retours de Nov. 06 - Mars 2009

Ces statistiques ne prennent en compte que les statistiques disponibles

NDI : Journal des retours de NDI 00 - Mars 2009
 Ces statistiques ne prennent en compte que les statistiques disponibles

				P E R I O D E								
				May 08	June 08	July 08	Aug. 08	Sept. 08	Oct. 08	Nov. 08	Dec. 08	Jan. 09
Région/ Zone	Département/ ARR	S/Préfectu re	ZONES/LOCALITES DE RETOUR	E F F E C T I F C U M U L E D E R E T O U R N E S								
EX-ZoC	Bongolo	Bongolo	Ville/Villages de la S/P de Bongolo	ND	ND	ND	ND	ND	ND	ND	ND	13
		Zou	Villages de la S/P de Zou	8,438	8,602	10,511	11,110	11,460	11,582	12,279	12,369	12,624
		Déouzon	Villages de la S/P de Déouzon	7,837	7,837	8,726	9,662	10,878	10,878	10,878	10,878	10,878
		Logouate	Blodie	1,265	1,265	1,265	1,265	1,265	1,265	1,764	1,764	1,764
Moyen Cavally	Douékoué	Douékoué	Blody	4,300	4,300	4,300	4,300	4,300	4,300	7,104	7,104	7,104
			Villages de la S/P de Douékoué									
		Bogahou	Villages de la S/P de Bogahou									
		Guehiepé	Villages de la S/P de Guehiepé									
	Guiglo	Guiglo	Carlane Glo-kouon, Zere-Bas, Goumbie, Zehoun	1,455	1,455	1,455	1,455	1,455	1,455	1,455	1,455	1,455
	Biclaquin	Biclaquin	Carlane Zerebas	1,236	1,236	1,236	1,236	1,236	1,236	1,236	1,236	1,236
			Carlane Nkeho, Zerebas, Ebo	26,873	26,873	26,873	26,873	26,873	26,873	26,873	26,873	26,873
Guiglo-Biclaquin	Guiglo, Biclaquin	Carlane Glo-kouon, Zere-Bas, Goumbie, Nkeho, Ebo, Zehoun, Zerebas	9,636	11,633	11,720	11,633	11,633	13,184	13,223	13,223	13,223	
Toulepieu	Toulepieu	Carlane Bas Cavally	152	152	152	152	152	152	152	152	152	161
		Carlane Pehe	681	681	681	681	681	681	681	681	681	681
Montagn es	Man	Man	Ville/Villages de la S/P de Man	ND	ND	ND	ND	ND	ND	ND	ND	-
	Danané	Danané	Ville/Villages de la S/P de Danané	ND	ND	ND	ND	ND	ND	ND	ND	61
	Zouan Houmen	Zouan Houmen	Ville/Villages de la S/P de Zouan Houmen	ND	ND	ND	ND	ND	ND	ND	ND	116
TOTAL				61,933	65,234	66,919	68,387	69,933	71,526	75,645	75,725	76,209
				% de retour (sur 120.000 PDI estimées)								

UN SC, 15 April 2008, para. 24

"Out of the 24,437 civil servants who had been displaced during the conflict, only 6,094 have yet to return to their posts throughout the country."

IDP number remains 709,000 for planning purposes (January 2008)

- UNFPA-funded study published in March 2006 puts total number of IDPs at 709,377 in five key government-held zones (Abidjan, Daloa, Duékoué, Toulépleu and Yamoussoukro)
- Figure subsequently revised to 750,000 in the Mid-Year Review of the UN Consolidated Appeal
- In their planning exercises for 2008, humanitarian agencies keep the IDP figure of 709,000

There are no country-wide statistics on the number of IDPs in Cote d'Ivoire nor comprehensive data on return movements. Humanitarian agencies are therefore retaining the number for 709,000 for planning purposes.

UNHCR, 24 January 2008, p.24

"UNHCR will further reinforce its leadership role to pursue protection on behalf of some 700,000 IDPs in the centre, western, south-western and northern Cote d'Ivoire."

UN OCHA, 10 December 2007, p.2

Population	15,366,000 persons
Under five mortality	195 p/1,000 (UNICEF 2005)
Life expectancy	45.9 years (UNDP Human Development Report 2006)
Prevalence of under-nourishment in total population	13% (FAO Statistical Division 2004 estimate)
Gross national income per capita	\$870 (World Bank Key Development Data and Statistics 2005)
Percentage of population living on less than \$1 per day	14.8% (WHO Statistical Information System 2005)
Proportion of population without sustainable access to an improved drinking water source	84% (MDG 2004)
IDPs (number and percent of population)	709,380 (4.6%) (UNHCR 2006)
Refugees	· In-country; 24,155 Liberians and 453 others (UNHCR August 2007)*
	· Abroad. 15,000 (UNHCR 2007)
ECHO Vulnerability and Crisis Index score	3/3 (most severe rank)
2006 UNDP Human Development Index score	0.421: 164 of 177 – low (UNDP Human Development Report 2006)

UNHCR, 23 March 2007, p. 6

Planning figures for Côte d'Ivoire				
Type of population	Origin	Dec 2007		
		Total in country	Total in country	To be assisted by UNHCR
IDPs	Western, northern and central Côte d'Ivoire	709,000	509,000	170,000
Returnees (IDPs)	Western, northern and central Côte d'Ivoire	300	200,000*	65,000
Total		709,300	709,000*	235,000

*200,000 IDPs are expected return only if political stability and the reunification of the country are reached.

UN, 18 July 2006

"One of the main challenges in Côte d'Ivoire at present is to extend and diversify humanitarian responses to better address the needs of returning IDPs and host communities at a time when, each year, an additional 2% of the population is falling below the poverty line. According to a new baseline survey the total figure of IDPs in Côte d'Ivoire – originally believed to be close to 500,000 – is now estimated at 750,000 with less than 10% living in transit camps and more than 90% being hosted by families. Each host family on average cares for about six IDPs, while about 30% of displaced children are not attending school."

More than 1 million Ivorians were estimated to be displaced at the height of the conflict (2003)

UN OCHA 8 May 2003

"Relief agencies estimate that between 700,000 and one million people were forced to flee their homes by the fighting and seek refuge in other parts of the country - mainly the government-held south."

UN OCHA, 10 January 2003

"The scale of displacement in Cote d'Ivoire is both large and rapid. Out of a population of 16 million, an estimated 600,000 were displaced internally by the end of November. Fighting in the west since then has caused further population movements, currently estimated at an additional 500,000. The total number of IDPs topped 1.1 million by the beginning of January."

Geographical distribution

Some 27,000 registered IDPs in the West by the end of 2008 (January 2009)

OCHA, 13 January 2009:

"According to the statistiques done by IRC/CARE return and reintegration 2006-2008 project in the province of Montagnes and Moyen Cavally delivered on 20 November 2008, there were 27,457 registered IDPs and welcome in the following locations (by geographical area): Zou (44.72%), Diéouzon (39.62%), Duékoué (15.66%)."

Up to some 440,000 people still displaced in Abidjan, highest proportion in Yopougon and Abobo (2008)

- A survey conducted in June 2007 in Abidjan found between 299,937 and 440,414 IDPs living in the city.
- The estimate is likely to be conservative given the number of households used for the sampling and the fact that the survey did not include in the questionnaire IDPs hosted by non-IDPs.
- IDPs were found in all of the communes of Abidjan except in Treichville, with higher proportions in Yopougon and Abobo.

Tufts University/IDMC, September 2008, p. 33

"We used our proportion of 9.7% to estimate the number of IDPs in Abidjan, based on the available census population estimates. The last national census was conducted in 1998, when the ten *communes* of Abidjan were found to have 577,258 households and 2,877,948 individuals. The official estimate for 2003 was 3,660,682 (which included the three sub prefectures outside of Abidjan City, not included in the 1998 count), and the 2006 estimate was 3,796,677.

Using the 2006 household estimate, we divide the expected population of Abidjan by our calculated proportion of IDPs to get $(3,796,677/0.097) = 368,277$. Using a confidence interval of + or - 1.85%, and our expected range of 7.9 and 11.6, we calculate that IDPs are in the range of 299,937 - 440,414.

This compares with the UNFPA/ENSEA study, conducted in 2005, which estimated a total number of 495,783 IDPs for Abidjan. Our estimates occurred two years later, and in the context of some return movements that had already started.

Based on using a household number of 8, as indicated in our sample, the IDP household estimate is thus 46,034, in the range of 37,492 - 55,051.

Our estimate is likely to be conservative for two reasons. First, we used a household number of 8 based on our sample findings; if we used the census number of 5, the number of households would be much higher.

Second, IDPs are also hosted in non-IDP households, but we did not include them in our estimate because unfortunately we realized the importance of this factor only after we had begun the survey, and thus could only ask the question of a subset of respondents. One third of our sample ($n= 332$), in four communes were asked whether any member of their households were IDPs and if so, how many. Of the 37 who said they were hosting IDPs, 11 were themselves IDPs according to our criteria. This means 26 or 7.8% of the sub-sample of 332 were non-IDPs hosting IDPs, as shown in Table 4.1. These non-IDPs hosted a total of 105 IDPs, or a mean number of 3 IDPs per non-IDP household. This would add a substantial number to our estimate of IDPs, if not IDP households.

If we added these IDPs to our total IDPs in the sample, we would get an increased proportion of individuals in the sample, but since we are using IDP households as our unit of analysis to obtain the estimate, we will simply bear this number in mind.

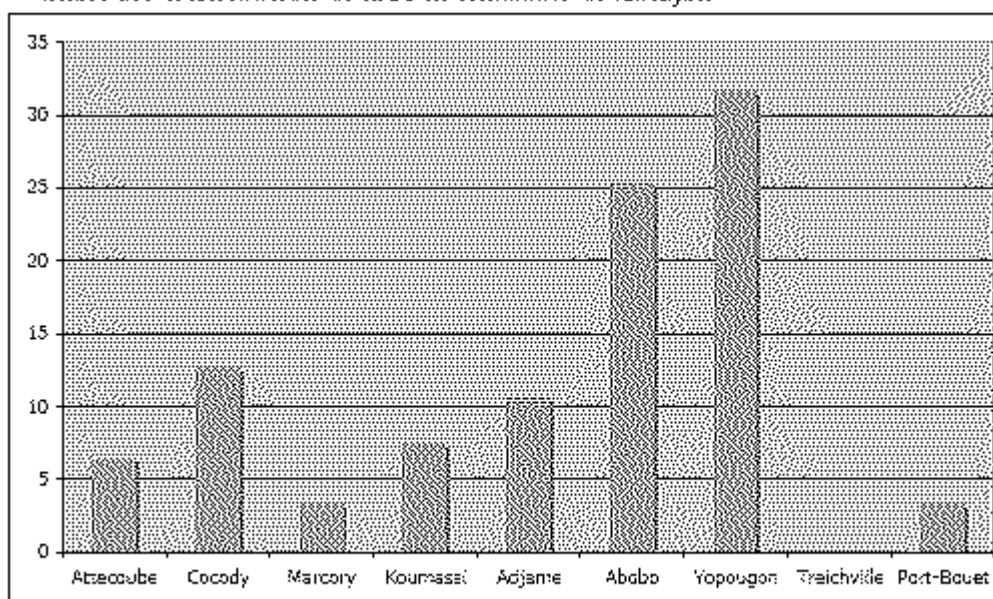
p. 31

As shown in Table 3.2 and Chart 3.1, we found IDPs in all of the communes of Abidjan except Treichville. The communes with the highest proportion were Yopougon and Abobo, and those with the lowest proportion were Port Bouet and Marcory.

Table 3.2 IDPs by commune in Abidjan

	Attcbe	Cocody	Marcory	Koumassi	Adjame	Abobo	Yopougon	Treichville	PortBouet
Number of IDPs	6	12	3	7	10	24	30		3
% IDPs in commune	7.5	9.6%	3.8	5.7%	12.7	12.5	16.4	0	3.8
% of all IDPs	6.3	12.6%	3.2	7.4	10.5	25.3	31.6	0	3.2

Chart 3.1 Distribution of IDPs in communes of Abidjan



"

Abidjan hosts almost 70 per cent of IDPs in government-held south (November 2006)

- IDPs are generally concentrated in urban areas with almost 70% in Abidjan
- Rural IDPs are more numerically relevant in the other departments

ENSEA, March 2006

"Au total, environ 709 377 personnes ont été accueillies dans des ménages avec une proportion relativement importante (67,5 %) pour le département d'Abidjan. Cette population déplacée est composée de 48 % d'hommes et de 52 % de femmes. La supériorité numérique de la population féminine est constatée dans tous les départements. Les PDI sont dans l'ensemble concentrées

en milieu urbain (81% des déplacés) : ceci est lié au poids démographique de la ville d'Abidjan et des possibilités offertes pour les accueillir. En revanche, la population rurale des déplacés est numériquement plus élevée dans les autres départements exception faite de Duékoué (43%) : Daloa 68%, Toulépleu 71%, Yamoussoukro 55%. Un quart des PDIs sont des enfants de moins de 10 ans. Les jeunes de moins de 25 ans représentent 62% des déplacés. Par ailleurs, parmi les 709 377 PDIs, 51 037 sont des enfants nés après le déplacement des parents. Par conséquent, l'ajustement de l'estimation des Personnes Déplacées Internes, après déflation de l'effectif de ces enfants, conduit à 658 340 déplacés internes."

United Nations, 30 November 2006, p. 56

"The table below presents recent statistics on displaced persons registered in the zone [west] by various sources:

Locality of origin of IDPs	Current places of residence in the West Zone	Total Number Registered	Source/ Observations
Zarabaon County (Zou)	San Pedro	271	IOM Figures, Extract summary table, registered on July 2006.
	Duekoué	1,161	
	Bangolo	220	
	Guiglo	6,987	
	Blolequin	1,003	
	Abidjan	1,907	
TOTAL		11,549	
Various Categories	Tabou	5,117	Source: Office of War Victims and Displaced Persons in Tabou, August 2006.
Non-Natives	Duékoué-Guiglo-Blolequin	46,958	8,426 families IOM Figures, April 2006.
Non-Natives and Foreigners	CATD	7,092	1,107 families; IOM Figures
Various Localities (Dieouzon...)	Bangolo	12,000	ICRC, August 06 Displaced persons and affected families.

"

The Centre d'Accueil Temporaire des Déplacés in Guiglo closes but IDPs still remain (October 2008)

- In mid-2003, Guiglo's local authorities and Moyen Cavally's Prefect granted the use of a piece of land close to the village of Nicla for the construction of an IDP camp
- Between August and December 2003, the 8,000 IDPs who were occupying public buildings in Guiglo were all transferred to the Centre d'Accueil Temporaire des Déplacés (CATD)
- The Centre was officially closed in July 2008 although at the end of September there were still 90 families living there.

OCHA, October 2008

"Since the official closure of the CATD at the end of July 2008, the inter-agency coordination meeting has decided to make an assessment/identification of IDPs who did not choose to return to their village of origin and listen to better document the reasons for their decision and desire in terms of support. The result was given to a small group (UNHCR, OCHA, UNOCI/DH, OIM) under the protection cluster and said that 190 families, about 777 people, were still present."

IOM, 1 August 2008

"IOM's Centre for Assistance to Temporarily Displaced Persons (CATD) in the western town of Guiglo has closed its doors exactly a year after the official reunification of the country.

The centre, which opened in December 2003, provided humanitarian assistance to thousands of mostly West African migrant workers who fled ethnic strife in 2002 and 2003. At its peak, it hosted up to 7,900 internally displaced people (IDPs), whom IOM subsequently helped to return and reintegrate in Western Cote d'Ivoire."

IOM, October 2007, p. 2

"A la moitié de l'année 2003, les autorités municipales de Guiglo ainsi que le Préfet de la Région du Moyen Cavally, dont les bâtiments administratifs étaient occupés par les déplacés, ont octroyé un terrain de 8 ha proche du centre de transit du HCR (5 ha) sur la route du village de Nicla pour construire un centre d'accueil des déplacés. L'aménagement de ce nouveau site a été financé par le HCR et l'UNICEF, tandis que la réalisation a été confiée à la GTZ. Ces deux sites mitoyens constituent le Centre d'Accueil Temporaire des Déplacés (CATD) de Guiglo.

Entre août et décembre 2003, les 8,000 déplacés qui occupaient les sites de la Mairie, de la Préfecture de Région et de la mission catholique de Guiglo, ont été installés sur le CATD. En décembre 2003, le recensement effectué par les partenaires humanitaires sur place, établissait : Nicla 1 (centre de transit du HCR), 4800 personnes; Nicla 2 (nouveau centre), 3 200 personnes, soit un total de 8 000 PDI dont 95% originaires du Burkina Faso et particulièrement stigmatisées, dans un grand dénuement et ayant été victimes, pour certaines, de violences, de vols et de viols.

Dès la réunion de coordination du 23 septembre 2003 à Abidjan à laquelle participaient, outre OIM, OCHA, ECHO, HCR, PAM, UNICEF, GTZ, CICR, Coopération belge, MERLIN, l'évaluation de la situation des personnes déplacées de Guiglo faite par les participants, a conclu au besoin d'un gestionnaire du CATD. Il a été alors demandé à l'OIM d'organiser le CATD et d'en assurer la gestion au quotidien, y compris l'approvisionnement des populations en vivres et non – vivres, l'achèvement des infrastructures minimales (notamment eau & assainissement), la coordination des activités des différents intervenants humanitaires, les relations avec les autorités locales... La gestion quotidienne du CATD et par conséquent l'assistance aux déplacés du CATD par l'OIM, a donc débuté en décembre 2003 sur un financement ECHO. Cette assistance d'urgence conduite par l'OIM depuis, se fait avec les apports du PAM, de l'UNICEF, de MSF et de Save The Children-UK (SCUK)."

Disaggregated data

Demographic data of IDPs in Abidjan (2008)

- In Abidjan, the average age of IDP men is 37 while IDP women are on average 36 years old.
- IDPs are more likely to be married or co-habiting with another person.
- IDP households tend to have more children than non-IDP households (nine to eight).

Tufts University/IDMC, September 2008, pp. 34-35

"As shown in Table 5.1, IDPs did not differ statistically from non-IDPs in age or marital status. For both groups the average age of men was 37, and for women there was slight variation - 35 years for non-IDP women and 36 for IDP women. Approximately half of the sample (49% of non-IDPs, 53% of IDPs) was married or co-habiting with another person.

IDP households tended to have more children. Although the table indicates that IDPs have slightly larger households, with an average of nine members compared with eight for non-IDPs, it is not a statistically significant difference.

Table 5.1 Demographic comparison of IDPs and non-IDPs

		Non-IDPs (n=879)	IDPs (n=95)
Percent male respondents		54%	54%
Mean age (Std dev: 13)		35.3	35.8
Marital status	% married or living with someone	49%	53%
Number of Children	Mean	2.83	3.23
	Std dev	2.6	2.9
	Range	0-17	0-16
Number in household	Mean	8.14	8.39
	SD	5.3	4.9
	range	1-45	1-25

Ethnicity of IDPs in Abidjan (2008)

- IDPs in Abidjan tend to be Baoule (from central Cote d'Ivoire), Guere (western regions), Yacouba (western regions), Bete (west-central Cote d'Ivoire) and Agni (eastern regions)

Tufts University/IDMC, September 2008, pp.31-32

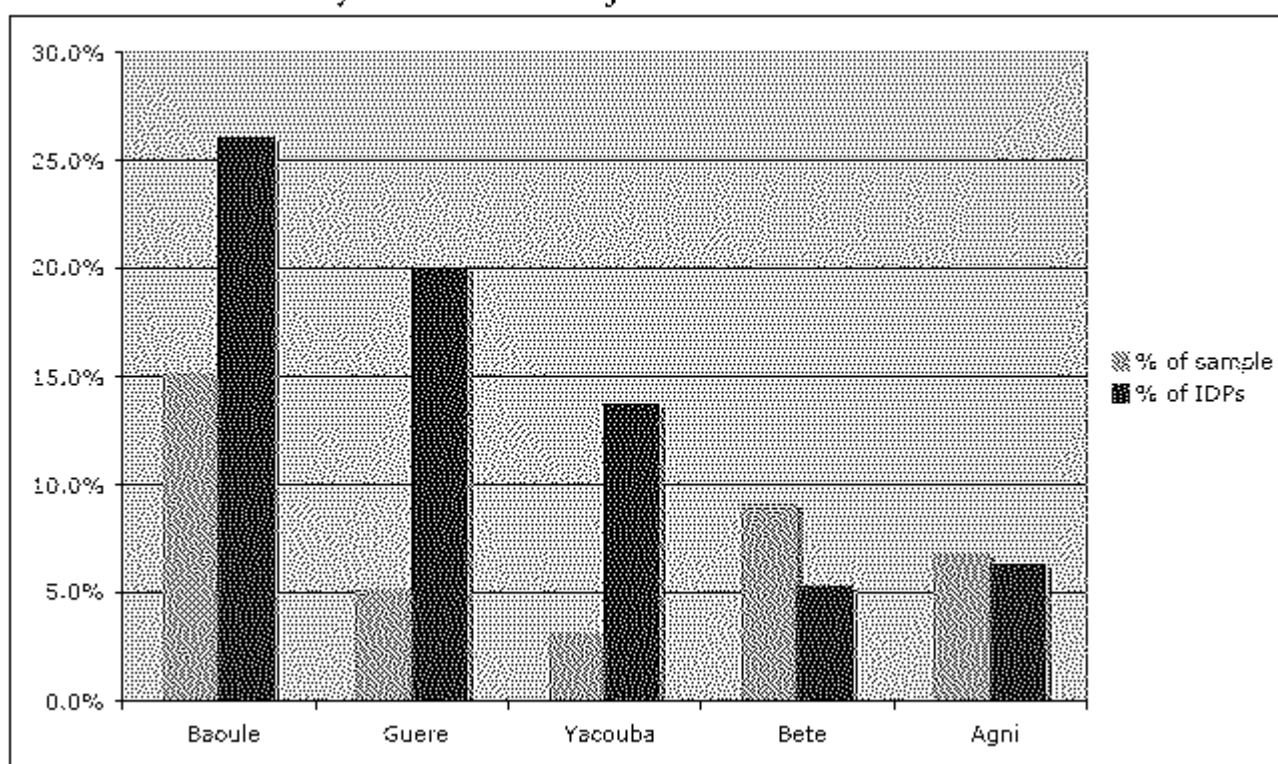
"As shown in Table 3.3, ethnic groups with the highest proportion of IDPs are the Baoule (26% of our IDPs were Baoule, and of those who identified themselves as Baoule, 17% were IDPs), the Guere (20% of the IDP group and 38% of Guere respondents), Yacouba (14% of the IDP group and 43% of Yacouba respondents). By contrast, the Agni comprised 6% of the IDP sample (which was close to their proportion of the total sample) and only 9% of the Agni "qualified" as IDPs. The Bete, also a significant ethnic group in Abidjan (9% of total sample), comprised only 6.3% of the IDP sample and 5.6% of Bete respondents were IDPs.

Table 3.3. Ethnicity of IDPs

	% of total sample (n=974)	% of IDP sample (n=95)	% of Ethnic group that are IDPs
Baoulé	15.1%	26.0%	17%
Guéré	5.1%	20.0%	38%
Yacouba	3.1%	13.7%	43%
Bété	9.1%	5.3%	5.6%
Agni	6.8%	6.3%	9%

Chart 3.2 shows the breakdown of the four main ethnic groups in Abidjan. The other ethnic groups comprised smaller percentages of IDPs, ranging from 0-5%.

Chart 3.2 Ethnicity of IDPs in Abidjan



Our IDP variable combined people who had been displaced from the conflict zones with those who had been displaced as a result of government forced relocation within Abidjan. When we analyzed only those who had been displaced from the conflict zones north of Abidjan, our results did not differ significantly. "

Demographic data of IDPs in government zones (March 2006)

- The majority of IDPs surveyed were aged between 0-4 years and 15-19 years (13 per cent in each category)
- 50 per cent of host family members were aged between 15-30 years
- One in five heads of household (of host families) were women
- The vast majority of IDPs were directly related to the head of their host family

ENSEA, March 2006

“ Structure par sexe et âge

Les groupes d'âge dominants dans la population des déplacés sont ceux compris entre 0 et 4 ans et 15 et 19 ans (13% chacun). Au sein de ces âges, les effectifs par sexe sont quasiment identiques (13% de femmes contre 12% d'hommes). En outre, une personne sur deux a moins de 20 ans. En considérant la population non déplacée, il apparaît une faible proportion d'enfants âgés de 0 à 5 ans. Elle est deux fois moins importante que dans la population déplacée. Par ailleurs, la majorité des personnes non déplacées se situe dans la tranche de 15 à 30 ans (50% de la population non déplacée). Par ailleurs, avant 30 ans, il existe plus de femmes que d'hommes parmi les déplacés ; cette tendance est inversée chez les non déplacés.

Caractéristique des ménages

Les ménages de plus de 8 membres sont majoritaires (16%), suivis de ceux comportant 3 personnes (14%) et des unités regroupant 5 individus (13%). L'âge moyen des chefs de ménage est de 45 ans ; 39,5% d'entre eux n'ont jamais été scolarisés. A Daloa et à Toulépleu, cette proportion est relativement importante et atteint 47%. Il ressort qu'une femme sur cinq est chef de ménage. C'est à Yamoussoukro que cette proportion est la plus élevée (31% des chefs de ménage). Chez les déplacés, les personnes sans lien de parenté avec le chef de ménage et son épouse sont en faible proportion dans l'ensemble (2%). Toutefois, le département de Toulépleu reste une exception avec 19% dans l'ensemble et 27% dans son milieu rural. Enfin, la proportion de chefs de ménage occupés a connu une baisse significative de 12%. La baisse la plus importante (25%) est survenue à Duékoué suivie d'Abidjan (13%).”

PATTERNS OF DISPLACEMENT

General

Vast majority of IDPs live with host families or communities (2008)

- Of the estimated 700,000 IDPs in Cote d'Ivoire, only a small number are housed in camps. The vast majority of IDPs live with host families or communities
- In Abidjan, a survey conducted in June 2007 found that non-IDP households were hosting 3 IDPs each on average. The question, however, was not included for all of the communes investigated
- IDP movements have been mainly registered around conflict areas where IDPs have settled in villages and towns nearby their areas of origin
- In general, displaced men from 'Vallée du Bandama' have relocated to urban areas while those from 'Haut Sassandra' have preferred to remain in rural areas

Tufts University/IDMC, September 2008, pp. 33-34

"IDPs are also hosted in non-IDP households, but we did not include them in our estimate because unfortunately we realized the importance of this factor only after we had begun the survey, and thus could only ask the question of a subset of respondents. One third of our sample (n= 332), in four communes were asked whether any member of their households were IDPs and if so, how many. Of the 37 who said they were hosting IDPs, 11 were themselves IDPs according to our criteria. This means 26 or 7.8% of the sub-sample of 332 were non-IDPs hosting IDPs, as shown in Table 4.1. These non-IDPs hosted a total of 105 IDPs, or a mean number of 3 IDPs per non-IDP household. This would add a substantial number to our estimate of IDPs, if not IDP households.

Table 4.1. Non-IDPs hosting IDPs by commune

	Attécoubé	Cocody	Marcory	Koumassi	Adjame	Abobo	Yopougon	Treichville
Number of IDPs (%IDP)	6 (7.5%)	12 (9%)	3 (4%)	7 (6%)	10 (13%)	24 (12.5%)	30 (16%)	0
Non-IDPs housing IDPs	Not asked	1	7 (9%)	14 (12%)	Not asked	Not asked	Not asked	7 (17.5%)

UNHCR, 23 March 2007, p.4

"Apart from IDPs staying with host families or renting accommodation, there are about 8,000 IDPs in camps, of which approximately 7,000 are in Guiglo and 1,000 in Yamassoukrou. The fact that most IDPs are not in camps has made their plight less visible to the humanitarian community and has made it more difficult to reach them and assess their situation."

UN Human Rights Council, 18 October 2006, para. 13

"The representative of the Secretary-General notes with interest that only a small number of displaced persons are housed in camps or shelters; most of them are in Guiglo, where there are two centres that hold about 7,100 people. Most of the displaced persons – about 98 per cent of them – have been taken in by families, which shows the generosity and solidarity of the Ivorian people. However, their social integration complicates the job of monitoring and assisting displaced persons."

ENSEA, March 2006, pp. 38-39 ; p.45

"Le mouvement des personnes déplacées a été guidé plutôt par le souci de retrouver un endroit plus sécurisant. Les plus chanceux d'entre eux ont trouvé refuge, dès leur arrivée, auprès de parents, d'amis, de collègues, etc... Les autres ont transité par des camps aménagés avant de trouver une famille d'accueil. L'insertion des personnes déplacées dans un ménage d'accueil s'est réalisée selon différentes approches (Tableau 25).

Tableau 25 : Répartition des familles d'accueil selon l'organisation de l'arrivée des déplacés

		Décision du CM	Entente CM et PDI	Famille ou communauté	Initiative PDI	Autre	Effectif
Abidjan	Urbain	31,1	15,8	6,4	44,4	2,4	283
	Rural	48,1	5,9	4,5	40,8	0,7	232
	Total	33,2	14,6	6,1	43,9	2,2	515
Daloa	Urbain	46,7	5,9	5,5	41,9	1,7	225
	Rural	21,4	7,5	29,6	39,5	1,9	254
	Total	22,5	7,5	28,6	39,6	1,8	479
Doukoulou	Urbain	37,2	13,9	7,2	39,0	2,8	287
	Rural	19,4	9,0	2,2	60,5	8,9	186
	Total	24,5	10,4	3,6	54,3	7,1	473
Toulépleu	Urbain	20,1	14,2	24,2	41,5	0,2	211
	Rural	22,0	5,9	15,1	57,1	0,9	242
	Total	21,8	6,6	15,8	55,8	0,1	453
Yamoussoukro	Urbain	20,6	46,1	5,2	27,7	0,4	245
	Rural	46,5	15,6	17,8	19,4	0,7	218
	Total	39,4	24,0	14,3	21,7	0,6	463
Type De Ménage							
Non accueil		20,9	17,1	12,1	48,1	1,8	2203
Accueil		33,1	13,3	9,5	41,6	2,5	2383
Statut du chef de ménage							
Non déplacé		24,4	13,6	13,0	45,9	3,0	3229
Déplacé		42,7	14,3	4,7	36,9	1,4	1357
Total		31,3	13,9	9,9	42,3	2,4	4586

Source : ENSEA – PDI 2005

Dans la plupart des cas (43%), c'est le déplacé lui-même qui a entrepris les démarches d'hébergement auprès des familles d'accueil. Les chefs de ménage ont pris eux-mêmes l'initiative d'héberger les déplacés dans 31% des cas. Peu de situations ont nécessité une entente entre chefs de ménage et déplacés (14%) ou l'intervention de la famille ou d'une communauté (10%) à laquelle appartient le déplacé. Le recours à la famille ou à une communauté comme intermédiaire dans la recherche d'une famille d'accueil se rencontre principalement en milieu rural (16% contre 6% en milieu urbain).

Depuis le déclenchement de la crise, les départs des zones de conflits ont été organisés par vagues successives. La durée des conflits est un facteur important dans le changement de comportement car certains ménages ont pu se reconstituer et accueillent les nouveaux déplacés. Les déplacés installés dans leur propre ménage se montrent plus sensibles à la situation des autres déplacés. En effet parmi les personnes ayant facilité l'accueil des déplacés dans leur ménage, 43 % (contre 24 %) sont des chefs de ménage eux-mêmes déplacés.

[...]

Le conflit armé a provoqué des mouvements de population fuyant prioritairement les régions de combat mais venant également de diverses zones du pays pour différentes raisons. C'est ainsi que les localités situées en lisière des zones ayant connu les conflits, ceux situés dans l'Ouest, le département du Hautassandra et la Vallée du Bandama, ont reçu une des vagues importantes de personnes déplacées. Les personnes rendues nécessiteuses du fait de la guerre, viennent ainsi principalement des zones peu éloignées des régions d'accueil. On note en effet une relative concentration des personnes déplacées dans les villes ou villages proches de leur localité de départ. La solidarité de proximité a été ainsi largement développée lors de la crise. A l'ouest, Duékoué et Toulépleu ont recueilli la quasi totalité des réfugiés venant de l'Ouest (97% et 83% respectivement). De même à Yamoussoukro, on note une prépondérance des déplacés issus de la Vallée du Bandama : 78% en milieu urbain et 64% en milieu rural (Tableau 32). Quant à Daloa, ville située au Centre Ouest, elle a accueilli essentiellement des déplacés venant de la Région du Hautassandra et de l'Ouest. Abidjan, située loin des zones d'hostilités, connaît une situation moins tranchée. On y compte une majorité de déplacés venant de la Vallée du Bandama mais aussi une part importante de réfugiés qui résidaient dans la partie septentrionale du pays ou dans l'Ouest.

D'une manière générale, on observe que les hommes déplacés provenant de la Vallée du Bandama se sont surtout installés en zone urbaine (51%). Par contre, ceux issus du Hautassandra ont préféré le milieu rural (2% de destination vers les villes) (Annexe Tableau E.2.1). Chez les femmes, le comportement reste identique. En effet, celles en provenance de la Vallée du Bandama et de l'Ouest ont préféré les villes contrairement à celles issues du Hautassandra (3% de destination vers les villes) (Annexe Tableau E.2.2)."

Chain displacement affects the West (July 2007)

- There are occurrences of displacements in series especially in the south-west and west of the ex-Zone of Confidence
- Displaced communities occupy land belonging to other IDPs while they are at their turn chased away again

US Department of State, 6 March 2007, section 2.d

"The displacement patterns often complicated the return of IDPs. For example, the displaced Burkinabe and other settlers living in the Guiglo IDP camp said that their plantations around the western town of Bolequin, south of the Zone of Confidence, were being occupied by indigenous Guere populations, who themselves had been displaced from their land in the Zone of Confidence at the beginning of the crisis. The government had not addressed this situation by year's end."

UN Human Rights Council, 18 October 2006, para. 37

"The Representative of the Secretary-General observed during his mission that people continue to be displaced in Cote d'Ivoire, particularly in the south-west, which is under government control and in the west of the zone of confidence, which is under the control of neutral UNOCI and Licorne forces. These areas are characterized by high levels of insecurity that led to displacement. The land issue, which is sometimes related to intercommunity conflicts, is also a source of insecurity for inhabitants. The Representative of the Secretary-General observed that displacements occur in series in this areas, when one population group chases away another and is then itself chased away. In the district of Zouan, for example, the people chased out of Zou occupied villages belonging to communities that had to flee their homes. Shortly after the visit by the Representative of the Secretary-General, the new arrivals were themselves attacked."

Cases of multiple displacements with final destination in Abidjan and Grand Bassam

UNHCR/GoCdi, July 2007, pp.9-10

"3,602 ménages (32%) ont effectué des mouvements transitoires dans d'autres localités avant d'atteindre leurs destinations finales qui deviennent leurs lieux de déplacement actuels. Les principales régions de transit identifiées sont les régions de la Vallée du Bandama (49%), des 18 Montagnes (26%), le Moyen Cavally (8%) et les Savanes (5%).

Les principales villes de transit ont été Bouaké, Korhogo, Bondoukou, Yamoussoukro, Daloa et Abidjan (pour les déplacés de Grand Bassam en provenance du centre nord et de l'ouest)."

Continuous violence causes repeated short-term displacement (2008)

- Inter-communal clashes continue to flare up around the country causing temporary population movements, lasting from days to a few months
- Families lose all their goods and find refuge in the bush or in public buildings or in neighbouring villages
- Sometimes, like in the case of the northeastern town of Marahui, reconciliation ceremonies pave the way for IDPs to return

Médecins Sans Frontières, 2007, p. 7

"When violence flares, people flee their village and seek refuge in larger towns or in the bush. The pattern of attacks and counter-attacks results in repeated short-term displacement lasting anywhere from days to months. Families lose their goods, abandon their fields and are exposed to malnutrition and disease.

When the war started, my in-laws fled to the bush to save their lives. They only returned to the village after one and a half years. But sometimes, even now, they spend the night in the village and the only return to the bush during the day- especially when they hear some rumour and are afraid.

This year, many people fled to other villages to stay with their family and friends. When we heard about the recent attack [in July 2005], we fled to the bush- but not for long because the attack was farther away. We stayed in the bush for three days because we wanted to be careful.

We are always on the run, fleeing people who might attack. We sleep on the bare floor. We don't eat well. When we are thirsty, we drink whatever water we can find. There is no time for us to nourish our children well- but it was not like this before the war. We are eating food from the old manioc fields that my in-laws planted in the bush when they were there over a year ago.

Woman from the zone of confidence, interviewed in August 2005."

Another example from northeastern Cote d'Ivoire

UNOCI, 17 September 2008

"A UNOCI patrol which yesterday went to Marahui village, 75 km from Bondoukou, to provide security following the violent clashes between Lobis and Koulangos on 3 and 5 September 2008, was told that a reconciliation meeting had been held there on 13 September 2008. The meeting, which was organised by an Ivorian human rights NGO, brought together various leaders from the

two communities. The two communities agreed to bury their differences, and as a gesture of peace, the Lobis made a symbolic donation of 70,000 FCFA and food items to the Koulangos in Marahui and promised to send more items. The patrol also observed that most of the displaced were returning to the village."

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Physical security

Human rights abuses against IDPs and returnees in the West (January 2009)

OCHA, 22 January 2009, pp. 1,16:

"There are continued concerns about human rights violations against displaced and returning populations, and the non-functional judiciary system allows for widespread impunity. Cases of sexual and gender-based violence (SGBV) are increasing and children's vulnerability has also increased in areas of return.

[...]

The number of security incidents, particularly ambushes and armed robberies has significantly increased from June to July 2008 in the west. The Duékoué-Bangolo axis is now considered to be one of the most dangerous areas because of ambushes, which involve killings, rape, other violence and robberies. High levels of insecurity and lack of administrative structures in some areas of return have made it difficult for victims to fully exercise their right to legal recourse after such abuses."

Levels of insecurity remain high especially in Moyen Cavally and Vallée du Bandama regions (October 2008)

- The number of security incidents have generally remained high in the Moyen Cavally and Vallée du Bandama regions throughout 2008
- With delays in the DDR process and in the dismantlement of the militias, tensions over allowances have frequently escalated both among the Forces Nouvelles and militia groups
- In the western regions of Moyen Cavally and Dix-Huit Montagnes land and other inter-communal disputes have continued to constitute a cause for concern
- Banditry is quite common especially on road axes around Bangolo and in the ex-zone of confidence
- Reasons for insecurity in the north include the absence of national law enforcement agencies and a functioning judicial system

UN OCHA, 3 July 2008, p. 5

"IDPs continue to face reintegration and protection-related problems including land ownership, nationality and citizenship issues, and lack of security."

UN Security Council, 13 October 2008, paras. 6-9

"The overall security situation in the country remained generally stable. However, a number of worrying security incidents occurred in Abidjan in early October. On 4 October, groups of youths loyal to the ruling party reportedly prevented the identification and voter registration process from proceeding at Cocody in Abidjan, citing the absence of officials from the National Institute of Statistics. On 6 October, armed assailants attempted to enter the residence of the Minister of Construction and Housing, Marcel Amon Tanoh, who is also the campaign coordinator of the Rassemblement des républicains opposition party.

In other areas, the main security incidents reported during the period under review emanated from demonstrations by disgruntled personnel of the Forces nouvelles and the national Defence and Security Forces. The Forces nouvelles elements continued to express discontent over arrangements for their integration into the envisaged new army and reintegration opportunities. On 18 August, over 200 cantoned Forces nouvelles combatants demonstrated in Bouaké demanding payment of monthly allowances, while Forces nouvelles elements who were previously securing mobile court hearings demanded payment of outstanding bonuses. Protests continued intermittently until the end of August. On 26 July, elements of the mixed brigade at N'Gattadolikro demonstrated over outstanding allowances. On 26 September, elements of the Ivorian Defence and Security Forces in Daoukro and Yamoussoukro protested over the Government's failure to pay war bonuses. High-level interventions by Forces nouvelles officials and Prime Minister Soro helped to restore calm in Bouaké.

In other areas, tension between communities over land and other disputes, especially in the west, as well as strikes and demonstrations to protest against the rising cost of living in urban areas, continued to be a source of concern. In the western part of the country, attacks by armed highway robbers created an acute sense of insecurity. On 10 July, two members of the integrated command centre's mixed brigade stationed in Famienkro were killed in an ambush by unidentified individuals, while patrolling in the area. Following the incident, the mixed brigade elements vacated Famienkro and refused to return. On 19 July, UNOCI and the Licorne forces intervened to separate elements of the Forces nouvelles and a youth group, who had clashed in Bouna, in the north-east of the country. From 12 to 15 August, members of a civil society organization demonstrated violently against the exploitation of natural resources by Forces nouvelles elements in the Bondoukou area, in the east. Also, violent inter-community clashes were reported at a village in the north-east on 3 September, resulting in the death of eight people and several injured.

There is still an atmosphere of insecurity in the western part of the country, as well as in parts of the former zone of confidence, as a result of continuing indiscriminate attacks by unidentified highway robbers, coupled with violence, including rape of women. The situation remains particularly serious in towns and villages along the Duékoué-Bangolo road, notably in Binao near Bangolo, as well as Blody and Toazeo near Duékoué."

UN Security Council, 10 July 2008, paras. 7-10

"[R]ecurrent protests by cantoned Forces nouvelles combatants over non-payment of their allowances underscored the risk of possible setbacks if adequate resources are not provided to support key aspects of the peace process. On 16 June, more than 200 demobilized Forces nouvelles combatants blocked the main road in Bouaké and discharged their weapons into the air to protest the delay in the payment of their monthly allowances. Forces nouvelles authorities intervened to restore order, while promising the protestors that their grievances would be addressed. UNOCI and Licorne forces deployed to the area to assist in bringing the situation under control. The Forces nouvelles military leadership also requested UNOCI support to defuse the situation during a second demonstration of demobilized combatants in Bouaké on 18 June that resulted in damages to public and private properties.

In mid-May, tensions in Séguéla escalated following the dismissal of Major Zakaria Koné, the Forces nouvelles zone commander of the area, who had opposed the plan to demobilize his combatants, with Forces nouvelles elements loyal to Major Koné discharging their weapons on 18 and 19 May. At the request of the Forces nouvelles leadership, UNOCI increased its military presence in the town. Calm returned to the area following a reconciliation ceremony held on 26 May, during which some 300 Forces nouvelles combatants pledged allegiance to Major Issiaka Ouattara, the newly appointed zone commander who is also the Forces nouvelles deputy chief of staff.

The situation in Séguéla and Vavoua, also within Major Ouattara's area of responsibility, deteriorated further in late June, with Forces nouvelles combatants loyal to the deposed zone commander staging violent demonstrations in both cities on 28 June to protest against the ongoing cantonment operation. At least two soldiers from the opposing sides of the Forces nouvelles were killed and several wounded during the exchange of fire that ensued between the factions. In Séguéla, the demonstrators attacked Major Ouattara's residence, while those in Vavoua took hostage a Forces nouvelles official and two soldiers. The hostages were released on 30 June following negotiations with the Forces nouvelles Chief of Staff, General Soumaïla Bakayoko. At the request of the Forces nouvelles, UNOCI and Licorne troops intensified the patrolling of both towns and provided protection for the main Forces nouvelles camp in Séguéla.

Meanwhile, localized criminality continued to be a growing concern in the area of the country under the control of the Forces nouvelles. On 24 April, 200 students in Bouaké held a peaceful demonstration to protest against mounting insecurity in the city."

UN Security Council, 2 January 2008, paras. 4-5

"In the western part of the country, which remains the most volatile, the security situation improved somewhat during the reporting period as the Ivorian mixed police units continued to maintain law and order, with the support of United Nations police officers, in particular in the former zone of confidence. However, logistical and financial constraints continued to impede the operations of the mixed police units. The mixed unit deployed in Bangolo blocked the Bangolo-Duékoué axis on 14 and 17 November to protest against poor conditions of service. The incident remained localized and was expeditiously resolved by the integrated command centre.

As the disarmament and dismantling of militias stalled, disgruntled militia groups made increasingly belligerent demands for safety net packages and food allowances. In Bouaké on 18 December some 120 disgruntled elements of the Forces nouvelles, who were protesting against the non-payment of their allowances, hijacked private vehicles and attacked several stores in the city. However, the incident was quickly resolved by the leadership of the Forces nouvelles."

Small arms

UN Security Council, 9 October 2008, para. 103

"The Group considers that the factors illustrated above demonstrate that movements of small-calibre weapons persist in Côte d'Ivoire, in both the Government territories and those under the administrative control of the Forces nouvelles, especially in the western region of the country. Both the introduction of new weapons and the lack of credible disarmament clearly hinder progress in the disarmament of the Forces nouvelles ex-combatants and the dismantling of the militias. These factors represent a serious potential risk for peace and stability in the near future and could contribute to increased civil disobedience and heightened local tensions."

For a more detailed account of the role of small arms proliferation in the intensification of grave human rights abuses see also Amnesty International's ["Blood at the Crossroads: Making the case for a Global Arms Treaty"](#) (17 September 2008).

Rapes are on the increase but perpetrators are rarely prosecuted (February 2009)

- Reported cases of rape have been on the increase since 2007, especially in the West
- Rapes have most often gone unpunished as families prefer to pursue amicable solutions to legal recourse

US DoS, 25 February 2009:

"The law prohibits rape and provides for prison terms of five to 10 years; however, the government did not enforce this law in practice. Claims were most frequently brought against child rapists. A life sentence can be imposed in cases of gang rape if the rapists are related to or hold positions of authority over the victim or if the victim is under 15 years of age. The law does not specifically penalize spousal rape. Rape was a problem. Since January 2007, for example, the Court of Abidjan has received an average of 16 cases of child rape per month.

Women's advocacy groups continued to protest the indifference of authorities to female victims of violence. Women who reported rape or domestic violence to the police were often ignored. Many female victims were convinced by their relatives and police to seek an amicable resolution with the rapist rather than pursue a legal case. The Ministry of Family and Social Affairs sought justice on behalf of rape victims, but as of September 30, only nine persons had officially been convicted and sentenced for rape. Twenty-one additional persons accused of rape were sentenced for "immoral offense."

There were increased reports of unidentified highway bandits raping and sexually assaulting women in the western part of the country, especially along the Duekoue-Bangola road."

IRIN, 21 October 2008

"Rapes of women and girls are common in western Côte d'Ivoire and generally go unpunished, said residents of the region.

"These days nearly every time we hear of armed robberies in homes, on the roads or on plantations, we hear of rape," said a resident of the western town of Duékoué some 500km from the commercial capital Abidjan, who wanted to remain anonymous.

"We hear of two, three, four rapes every day."

[...]

Monika Bakayoko-Topolska, gender-based violence coordinator with the International Rescue Committee (IRC) in Côte d'Ivoire, told IRIN: "We certainly are seeing increased reports of rape over the past year and a half or so." She called rape "one of the biggest problems in the west," adding that sexual violence is a problem throughout the country.

Bakayoko-Topolska said it is not clear whether rape cases have risen sharply in the west or whether more people are reporting the crime after an expansion of education campaigns in the region.

She and some residents of western Côte d'Ivoire told IRIN perpetrators of rape are rarely prosecuted.

"Rapes are encouraged," the woman in Duékoué said. "Because there is no punishment." Residents of Duékoué and the nearby city of Man told IRIN that in some cases authorities harassed or ignored women who reported rape, and that even if pursued, alleged attackers are generally released after a brief detention. "

Displaced women and girls are most vulnerable to sexual violence and sexual exploitation (October 2008)

- IDP population consists largely of West African immigrants, among whom women and girls remain most exposed to abuse, especially sexual violence
- Protection needs of these groups are great, but support is practically non-existent.

- Although with the departure of Liberian and Sierra Leonean fighters in 2003, the situation improved, sexual assaults continued to be one of the major protection concerns in the country. Especially in western Côte d'Ivoire there have been increased reports of rapes since the signing of the Ouagadougou Accord in March 2007
- Displacement has fueled an increase in prostitution, sexual violence and sexual exploitation of women and girls, especially in urban settings like in Abidjan

IRIN, 21 October 2008

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"We hear of two, three, four rapes every day."

With the proliferation of arms since conflict broke in 2002, unprecedented violent crime continues to plague many areas of Côte d'Ivoire where a March 2007 peace deal marked a formal end to fighting.

In some parts of the north, attacks by Kalashnikov-wielding men – nearly unheard of before the conflict – are frequent, residents say.

Monika Bakayoko-Topolska, gender-based violence coordinator with the International Rescue Committee (IRC) in Côte d'Ivoire, told IRIN: "We certainly are seeing increased reports of rape over the past year and a half or so." She called rape "one of the biggest problems in the west," adding that sexual violence is a problem throughout the country.

Bakayoko-Topolska said it is not clear whether rape cases have risen sharply in the west or whether more people are reporting the crime after an expansion of education campaigns in the region."

In Abidjan

IRIN, 29 September 2008

"According to a November 2007 Save the Children study of displaced children in Abidjan, displaced 10-14 year old girls often work as waitresses in bars or nightclubs where they are more easily sexually exploited, according to Joanna Macveigh, a protection adviser at Save the Children.

"Cities provide the kind of networks that draw young girls into something they can make a living out of very quickly," Macveigh said, "the more opportunities there are for girls to get an immediate income through, say sex work, the more likely it is to be a force for disaster in these girls lives."

The law offers these girls little comfort – rather than protecting them, the police often used intimidation and violence against them, the girls reported."

Human Rights Watch, 2 August, 2007, pp. 51-52, 73, 83

"When French and UN troops began patrolling the buffer zone between northern rebels and government forces in the south, active fighting came to a halt, ushering in the political and military stalemate of 2004-2007. This period has often been characterized as the period of "no peace, no war." While abuses against civilians were more concentrated in the period of active hostilities,

serious violations including massacres, extrajudicial executions, torture, harassment, pillaging, and intimidation have nevertheless continued to take place.

Human Rights Watch documented fewer cases of sexual abuse committed by the New Forces rebels during the period of 2004-2006 than was the case during the 2002-2003 war or ensuing periods of active combat. This improvement was also noted by civil society representatives and humanitarian workers active in rebel-held Côte d'Ivoire.

Absent more substantial data on patterns and prevalence, it is impossible to be sure why sexual and other attacks have decreased since 2004. However, local observers and civil society members attribute the decrease in sexual attacks first and foremost to the departure in 2003 of Liberian and Sierra Leonean fighters (who had been the most egregious perpetrators of sexual assaults against women and girls); second to the French peacekeepers' impact while controlling a buffer zone known as the "Zone of Confidence" and conducting regular patrols into rebel territory; third to the arrival of ONUCI troops who also conduct regular patrols in rebel-held areas; and fourth to an effort on the part of rebel leadership to address the problem. For example, after the UN-imposed sanctions on rebel commander Martin Kouakou Fofié for major human rights violations in February 2006, New Forces leader Guillaume Soro ordered a reduction in checkpoints, partly in recognition of the many incidents of human rights abuses at such locations.

[...]

Some cases of sexual violence against women originating from neighboring West African countries have taken place within the context of interethnic conflicts over land, particularly in the southwest. Indeed, southwestern Côte d'Ivoire remains beset by ethnic tensions and violence, characterized by armed gangs and militias attacking villages, destroying homes, schools, wells, and health centers, resulting in ongoing cycles of displacement. Killings, rapes, and a few massacres have continued up until the present, long past the end of active hostilities, and even within the Zone of Confidence.

[...]

The protracted nature of the Ivorian political-military crisis has appeared to increase girls' and women's vulnerability to various forms of sexual violence and exploitation including non-conflict-related rape, prostitution of children, sexual abuse by teachers, forced and early marriage, and domestic violence. Many women and girls described being driven to commercial sex work or locked into abusive relationships as a result of the increased poverty caused by the conflict.

Rates of rape where perpetrators are unknown and appear to be civilians or simply armed men without overt government or rebel affiliation are reportedly high. Many cases of sexual assault and exploitation appear to have been facilitated by the breakdown of the legal system, proliferation of arms, and general climate of impunity.

Displacement and poverty caused by the conflict have fueled a major increase in prostitution, sexual exploitation, and sexual abuse of women and children in Côte d'Ivoire. The war is estimated to have displaced an estimated 1.7 million people within the country and additional hundreds of thousands abroad, often splitting up families, undermining the networks that traditionally protect them and leaving women or children to deal alone with responsibility for managing household finances and supporting children. Internally displaced persons appeared to be particularly vulnerable to sexual abuse."

Amnesty International, 15 March 2007, para. 3.1

"Although accurate statistics are difficult to obtain, it is estimated that hundreds, possibly thousands of women were victims of sexual violence as a result of the armed conflict. Large movements of IDPs and refugees fleeing the conflict have resulted in increased vulnerability for IDP and refugee women, particularly Liberian women, in Côte d'Ivoire. Recent information gathered by Amnesty International shows that women continue to suffer sexual assault committed with complete impunity by members of the security forces as well as by members of

armed opposition groups. Civilians and militia members benefiting either from the political backing of government authorities in the south, or from the support of the New Forces in the territory under their control, also commit sexual violence against women with total impunity."

Children are particularly vulnerable to displacement, sexual violence and loss of life because of inter-community tensions (September 2008)

- Children remain particularly vulnerable to displacement, sexual violence and loss of life. A large number of the people displaced in the attacks on Marahui in September 2008 were children for example
- The culture of impunity for cases of sexual violence against children as well as the breakdown of law and order constitute the major obstacles for the enjoyment of children's rights
- Particularly concerned by the absence of the administration in the areas covered by the Forces Nouvelles in the west is birth registration
- Child protection committees have been created in all the villages in the west targeted by NGOs' activities with the aim of promoting a participatory approach
- There has been an increase in the number of street children and those aged between 9 and 14 years are particularly vulnerable

UNOCI, 7 September 2008

"On 3 and 5 September, two violent attacks took place against Marahui village situated 78 km from Bondoukou on the Sorobango Axis.[...] The attackers were reportedly from the village of Assondougo and belong to the Lobi ethnic group.

[...]

An estimated 400 people are displaced within the village and an unknown number are reportedly displaced to surrounding villages, including Tagadi, Kamala and Bandole, a very high percentage of which are children. 33 persons, including 14 children, are reportedly seeking shelter in Laoudi-Ba, on the Bouna-Boundoukou Axis. An unknown number of persons are also believed to be missing.

[...]

Children represent a large percentage of the displaced and are living under very precarious conditions. They are sleeping outside on the bare earth and other basic needs, including clothing and food, are not met. [...]

Child Protection Officers also noted continued security and protection concerns for children, in particular because they are sleeping outside and exposed, Despite the presence of security forces, the village remains vulnerable to additional attacks, particularly during the night. Furthermore, the situation at the school compound [*where most of the displaced are hosted*] is chaotic and in such a context it is more difficult for parents to keep track of their children, rendering them even more vulnerable in the event of an attack."

UN OCHA/EU-Cote d'Ivoire, September 2007, pp. 134-135

"2.3.1 Activités

Les activités de réinsertion des enfants ciblent les enfants ex-associés aux groupes armés. Les belligérants FN et FDS ont signé un protocole de remise des enfants. Selon les ONG, les activités d'identification ont permis de retirer tous les enfants de l'influence des groupes armés. L'estimation se monterait à 4.000 enfants, sans pouvoir être vérifiée.

Le traitement de ces enfants se profile de la manière suivante :

- identification et profilage,
- assistance médicale,
- assistance en vêtements,
- assistance à la réintégration des enfants dans les familles,
- éducation et formation aux métiers chez des maîtres artisans,
- appui à l'éducation informelle au travers de la création de Centres Sociaux d'Education (CSE) ou d'appui aux ONG (PAHO, Sœurs catholiques, ODAFEM). Ces centres apportent aux enfants qui ne peuvent pas aller à l'école, une formation aux métiers en couture, coiffure, menuiserie, etc.
- des activités d'appui au retour à l'école au travers des écoles passerelles ont été appliquées aux enfants capables d'aller à l'école ; la réintégration scolaire a été facilitée et accompagnée de fourniture de kits fournis aux maîtres et aux enfants. Ces activités délivrées dans les Centres ont été étendues aux enfants vulnérables et orphelins dans le soutien apporté aux OEV.

L'exemple type de traitement appliqué aux enfants est le protocole UNICEF suivi par l'ONG ODAFEM qui a pris en charge 178 enfants dont 103 auto démobilisés et 75 vulnérables (58 filles). ODAFEM a ouvert deux Centres de Transit et d'Orientation (Zéré, Man) pouvant accueillir 100 enfants chacun. Les enfants sont reçus en pension complète pendant trois mois afin de les stabiliser. Le CTO définit pour chacun un objectif de vie et délivre des activités d'écoute. Ils sont ensuite placés en famille d'accueil avec un soutien en vivres du PAM et un suivi. Le centre procède à la mise en apprentissage de l'enfant auprès d'un artisan payé à 50.000 FCFA par enfant pris en charge.

Des activités de lutte contre la traite des enfants le long des frontières libériennes ont été menées par Save The Children-UK afin de décourager l'exploitation des enfants dans les mines et les plantations.

2.3.2 Activités de déclaration des naissances

L'UNICEF a conduit avec les ONG partenaires une action vigoureuse de sensibilisation des familles et des communautés à la déclaration des naissances. Ces initiatives ont butté contre une très faible réception. Dans les Zones FN, l'absence de toute administration a été un facteur limitant. Mais là où elle existe, dans le Moyen-Cavally, l'éloignement des campements, les procédures pour parvenir à l'extrait de naissances ne motivent pas les populations.

2.3.3 Participation communautaire et création de comité de protection de l'enfant

Les méthodes d'intervention des ONG en matière de protection des enfants sont toutes fondées sur la participation communautaire dans les zones choisies en fonction de l'urgence du traitement des cibles. Dans chacun des villages, les programmes créent des Comités de Protection de l'Enfant. Ces comités sont installés sur incitation des ONG par les populations qui en choisissent les membres. Leur fonction est la sensibilisation et le traitement des cas :

- sensibilisation des familles sur l'intérêt à scolariser les enfants surtout les filles,
- sensibilisation des populations à l'ensemble du processus de la réunification familiale (identification, documentation, tracing, actes de naissance etc.)

2.3.4 Résultats acquis des projets de protection des enfants

Dans la région, il n'existe plus d'enfants ex-associés aux forces et groupes armés selon les ONG. La plupart des réunifications familiales ont été réalisées.

Les appels à la scolarisation et les appuis ont permis d'envoyer davantage d'enfants à l'école, en particulier les filles. Le PAM va renforcer cette action en offrant une ration supplémentaire aux familles ayant ou voulant scolariser leurs filles.

2.3.5 Limites des activités

Suspension des déclarations des naissances: la suspension des déclarations s'explique par l'apathie des populations mais aussi par les distances et les lourdeurs procéduriales administratives.

L'insuffisance de traitement des OEV/VIH et des handicapés: la rareté des centres spécialisés et le manque de moyens réduisent les capacités d'accueil des OEV et des handicapés. CARITAS / DASU fait état de la faiblesse des soutiens qui lui sont apportés dans la gestion de ses services pour les enfants vulnérables.

Le déficit de protection des jeunes filles: Le personnel de l'enseignement secondaire observe de plus en plus un déficit de protection des élèves et surtout des jeunes filles-mères. La précarité de leur condition de vie en accueil dans les villes (manque de nourriture et de tuteurs) semble en être la cause.

L'insuffisance des activités de lutte contre l'exploitation des enfants : l'enclavement de nombreuses parties de l'Ouest ne facilite pas la lutte contre la traite des enfants. Les activités dans ce domaine sont encore peu développées par les ONG.

L'absence de réponses aux problèmes de montée des enfants des rues : Il existe un grand risque de marginalisation des enfants de 9 -14 ans. Les ONG rencontrent des difficultés de traitement de cette catégorie que la législation ne permet pas de faire travailler mais dont le profil ne permet pas non plus d'aller à l'école. Les effectifs de cette catégorie d'enfants ne sont pas connus mais sont de plus en plus visibles en ville."

UN Security Council, 30 August 2007, paras.8, 11-13, 15

"During the reporting period there was an upsurge in the number of reported cases of rape, while reported killings and abductions have declined in number. There were no confirmed reports of attacks against schools or hospitals nor of any denial of humanitarian access to children by armed groups. Crimes committed against children, particularly rape, killings and abduction, are generally perpetrated by civilian criminals, who may include uncontrolled elements of the armed groups taking advantage of the insecure environment and the lack of law and order. There have been no confirmed reports of violations committed by armed forces and groups cited in my last report.

[...]

During the reporting period, there was no substantiated evidence of the active recruitment and use of children by armed groups. The regular dialogue with parties to the conflict and the progressive stabilization of the political and military situation have led to a steady decrease in the association of children with armed forces and groups. It should also be noted that the United Nations has been able to monitor and verify compliance with action plan commitments on a regular basis.

[...]

Although the majority of the most serious incidents of sexual violence occurred during the clashes of 2002 and 2004, rape and other grave sexual violence against children, especially girls, take place with alarming frequency. These violations happen throughout the country.

Despite the recommendations addressed to the Government and the Forces nouvelles to ensure the rigorous and timely investigation of such incidents and the prosecution of perpetrators contained in my previous report, greater commitment and efforts are still required to redress the culture of impunity for such crimes. In areas under the control of the Forces nouvelles, where the administration of justice system has not been functioning since 2002, no rape cases have been prosecuted. Meanwhile, in Government-controlled areas only a few of the cases reported to the police reach the courts, primarily because of the lack of timely and thorough investigation. Furthermore, the lack of awareness of their own rights, fears of social stigmatization and

discrimination and of reprisals by perpetrators often discourage the victims and their families from pursuing cases.

[...]

While there has been a decline in reported cases of killings, children continue to lose their lives as a direct consequence of the environment of high insecurity and the breakdown of law and order and of institutions. The most immediate threat to the lives of children remains inter-community tensions and violence, with children often caught up in clashes at this level. Many of the killings are not investigated and the perpetrators are rarely identified. The killings are also often associated with other violations such as rape. "

See also Save the Children's *"No One to Turn To. The under-reporting of child sexual exploitation and abuse by aid workers and peacekeepers"* (May 2008) for accounts of sexual exploitation of children in Cote d'Ivoire by aid workers and peacekeepers.

Freedom of movement

Roadblocks continue to hinder free movement of people and goods (February 2009)

- Militia barricades on the Guiglo-Bloléquin axis prevented the return of some 900 IDPs in February 2007
- Displaced persons without identity papers are particularly limited in their freedom of movement
- Roadblocks in both government and rebel-held areas continue to impede freedom of movement, limit the provision of basic supplies to the north, and ultimately contribute to the economic downturn of the country

US DoS, 25 February 2009:

"Persons living under FN authority continued to face harassment and extortion when trying to travel between towns and to and from the government-controlled south. Security forces also victimized northerners when they tried to cross into the zone under government control. The cost of either paying one's way through the various barricades or hiring a money runner to do so was substantial. Government officials reported the roundtrip cost for citizens in the north to travel from Bouake and other cities to Yamoussoukro to cash paychecks to be between 20,000 to 30,000 CFA (\$40-60). A money courier or informal banking service cost either 5000 CFA (\$10) or a flat percentage of the amount transferred."

UN Security Council, 2 January 2008, para. 45

"While no deterioration in the human rights situation was observed during the reporting period, the mission continued to receive regular reports of abuses inflicted on civilians by defence and security forces and elements of the Forces nouvelles, including intimidation, arbitrary arrest and detention, and racketeering at checkpoints. Moreover, a surge in crime in urban areas and along highways undermined the right of civilians to security and freedom of movement."

Refugees International, 31 January 2007

"Numerous security and identity checkpoints subject the population not only to physical risks but also to lost income and work opportunities. Detained individuals experience endless delays, constant harassment, and extortion from armed elements on both sides, who frequently confiscate or destroy papers, seize goods, arrest travelers, or physically abuse and even rape

vulnerable travelers. A person might be pressed to give between \$1-10 (of a \$30 monthly income) to regain freedom of movement. Human rights workers told RI, "Checkpoints are places where women are set aside and sexually assaulted. The bus leaves and they are alone. This is a hidden problem, but is increasing."

IRIN, 2 August 2007

"The economic damage [of these roadblocks] is bad enough," Ivorian Chamber of Commerce President Jean-Louis Billon told IRIN from the commercial capital, Abidjan. "But the most revolting part of this is the human rights violations. There are invasive body searches, including of women. We heard of cases of rape." He added: "And this, from those the citizens should be able to count on for security."

[...]

Koffi, who lives in the northwestern town of Odienne, recently travelled to his home town in central Côte d'Ivoire for his father's funeral. It was his first time making the trip from rebel-held to government territory since before the conflict. "It's the height of humiliation," he said. "The way these officers shake us down for money and abuse people – and it's all done as if it's completely normal. Nothing is hidden."

He spent 7,000 CFA francs (about US\$15) just on bribes at roadblocks – at least several days' work driving his taxi in Odienne. "These days, I could even go a week without making that." At one point he was running out of money and he pleaded with a gendarme. "I told him, 'Please – I'm travelling to my home village for my Dad's burial.' The gendarme shrugged and said, 'I don't give a damn.' All he cared about was getting money from me."

[...]

Many say the hateful and pitiless behaviour on the part of those manning roadblocks mirrors the very kinds of social division and abuse that were integral to the causes of Côte d'Ivoire's rebellion. One factor that gave rise to the rebellion was northerners' exasperation over what they called blatant discrimination and abuse on the part of government security forces. At roadblocks people with names from northern ethnic groups would be singled out and made to pay bribes.

[...]

Social cohesion aside, the racket on Côte d'Ivoire's roads continues to batter families economically.

The extra tariffs hauliers must pay on the roads force up the prices of goods. "Five years ago, three yams [a staple in Côte d'Ivoire] cost between 300 and 500 CFA francs (\$US0.62 to 1.04). Today, they cost about double that," said Aly Cisse, who sells yams in a Bouake market. The price of most items in the market has gone up by 30 to 50 percent, he said.

[...]

Officials with the government and former rebel forces say things are getting better. "This racketeering is certainly a reality," military prosecutor Ange Kessi Kouame told IRIN. "But we're committed to fighting this." He said things are starting to improve, and added: "Especially since it ruins the economy, we must fight this to the end."

Commander Losseni Fofana of the former rebel New Forces said his forces provided passes for vehicles to travel throughout the north. At the road barriers, he said, "there are formalities to take care of". He added: "If this racket still exists, these are isolated acts that we will fight." "

UN Security Council, 8 March 2007, para. 35

"The situation has deteriorated in recent weeks, as increased banditry and militia activities have severely hampered humanitarian operations in the western part of the country. Since 26 February [2007], militia elements of the Front de liberation du grand-ouest have erected barricades on the Guiglo-Bloléquin axis and prevented vehicular traffic in the area. This obstruction to freedom of movement disrupted the repatriation of Liberian refugees from Toulepleu, which the Office of the United Nations High Commissioner for Refugees had scheduled for 27 February. On the same

day, the International Organization for Migration was forced to suspend the return of some 900 internally displaced persons from Toulepleu to 14 villages around Péhé. These incidents were brought to the attention of the Minister for Territorial Administration and to that of the local administrative authorities in Guiglo."

UN Human Rights Council, 18 October 2006, para. 44

"Infringements of the freedom of movement have also been reported to the Representative of the Secretary-General. Roadblocks are common, and displaced persons without identity papers are particularly susceptible to harassment and racketeering when they reach one. As a result, people facing serious economic difficulties cannot always afford to move around."

Removal of buffer zone to facilitate freedom of movement (2007)

Agence France Presse, 11 April 2007

"The removal of the buffer zone will allow Ivorians to freely move between the two parts of the country and be subjected to fewer controls than before.

"All the practical modalities will depend also on the Ivorians. Others would like it to go fast, but others are worried to see the international forces pulling out quickly," said a European military source. "

SUBSISTENCE NEEDS

General

Poverty on the rise in 2008 (December 2008)

- Poverty has risen at the highest percentage in the past 20 years especially in areas of displacement
- Almost half of the country's population is living on less than USD 1.25 per day

IRIN, 3 December 2008:

"Slightly under half of Côte d'Ivoire's 20 million people are now below the poverty threshold, living on less than about US\$1.25 per day - up from 38.4 percent in 2000 and the highest in 20 years, according to results released by the national statistics institute (INS) on 27 November.

The study surveyed 12,600 households to measure poverty and the conflict's impact on households, according to INS. "Poverty in Côte d'Ivoire is becoming increasingly worrying," Nouhoun Coulibaly, head of the INS, told reporters at the release of the results.

INS says 70 percent of Ivoirians have difficulty eating adequately and 68 percent cannot afford proper treatment when ill.

[...]

The INS study showed that the worst-hit areas are the centre, north and northwest, as well as parts of the capital Abidjan. In the north the level of poverty reaches 77 percent, according to INS."

Health

Reduced access to health in areas of displacement and return (January 2009)

- Despite the results achieved in the health sector with the redeployment of more skilled health personnel in former FN areas, access to health in areas of displacement and return remains critical
- In the Moyen Cavally and 18 Montagnes regions few are the public health centres and it is more common to find private ones
- The major obstacle is constituted by the distance to the closer health centre as it normally takes about 1 hr to reach them
- The problem of distance is exacerbated by the lack of means of transport and of financial resources

UN OCHA, 22 January 2009, p. 11:

"Emergency relief initiatives have achieved substantial results in the health sector. The Government, with support from its partners, managed to redeploy more skilled health personnel

in zones previously under FN control, including in the central, northern and western regions. The number of doctors in these regions is now even higher than it was before the crisis (261 doctors are now posted in these regions compared to 235 before, and 170 during, the crisis). The presence of skilled personnel enabled the Government to re-open 567 primary health centres: by September 2007, 95% of primary health centres were operational countrywide. UN agencies and NGOs also provided equipment to health districts and trained health workers on integrated management of childhood illness, safe motherhood and disease surveillance, etc."

NRC, December 2008, Moyen Cavally et 18 Montagnes, pp. 24-25:

"Peu de localités enquêtées possèdent des **structures de soins de santé** publiques. Pour compenser cette absence de structures étatiques, quelques-unes disposent d'officines privées. Diebly de Dieouzon de est la seule localité qui paraît complètement dépourvue de services des soins de santé. Le problème majeur qui semble se poser est toutefois celui de la distance (**temps de marche**) pour se rendre aux structures de santé les plus proches.

En effet, bon nombre de localités semblent se trouver à plus d'une heure de marche. Cependant, ce sont les campements de Bloléquin qui semblent les plus éloignés, avec certaines localités se trouvant parfois à plus de 3 heures : Zehipleu (252 min), N'Tobeni 2 (238 min), N'Tobeni 1 (203 min), Diekro (184 min) et Tiassale (165 min) en tête. D'autres localités qui méritent une attention particulière sont Bably (288 min), Zérégbo (256) et Douaipleu (220 min) de Zou.

Le problème de l'éloignement se justifie d'avantage par la rareté des moyens de transport et le manque de ressources financières qui constituent un sérieux handicap dans l'accès des populations aux centres de santé. Elles s'orientent par conséquent, vers des structures privées, avec des coûts souvent plus élevés, ou bien traditionnelles, dont la qualité des soins est souvent remise en cause. Le problème de **coût** existe d'ailleurs dans la quasi-totalité des localités visitées.

En outre, la **mauvaise qualité** des prestations dans les structures sanitaires publiques (insuffisance du personnel médical qualifié, vétusté et insuffisance du matériel médical existant, manque de médicaments) est un problème soulevé surtout à Saguipleu (43%) de Sangouiné; à Diaplean (43%), Gohouo Zagna (33%), ainsi que le chef-lieu (29%) lui-même de Zéo; Souebly (46%) de Facobly. Egalement à Danhandrou/CIB (36%) de Bloléquin et à Gouessesso (33%) de Biankouma la question de qualité est remise en question(*).

Dans la majorité des localités visitées, un grand nombre d'entretiens soulève avec une proportion élevée d'**autres types de problèmes**, tels qu'une certaine appréhension vis-à-vis des Agents de Santé Communautaires (ASC) non-qualifiés, ainsi que l'insuffisance ou la non-existence des équipements et/ou médicaments, parfois aussi périmés.

(*) Le fait que ces proportions de mentions soient parfois relativement faibles ne reflète pas nécessairement la véritable ampleur du problème. En effet, il arrive assez souvent que les interrogés évitent de soulever le problème et, par conséquent, la réalité est souvent plus importante que ne le montrent les résultats."

IDPs with HIV face particular difficulties (April 2008)

- Health centres are still facing shortages of qualified staff a year after the signature of the Ouagadougou Agreement and many services, including HIV/AIDS services, are still unavailable
- ARV adherence is more difficult among IDPs with HIV because of their mobility

- IDP's vulnerability to HIV has been aggravated by the war as IDP women and girls are more vulnerable to sexual violence
- IDPs with HIV have less access to services because of their impoverishment due to displacement and marginalisation

IRIN, 28 April 2008:

"More than four and a half years after the political crisis that split Cote d'Ivoire in two started, the situation is far from resolved. The Ouagadougou agreement, signed in March 2007 between Laurent Gbagdo, Cote d'Ivoire's president, and the ex-rebel leader, Guillaume Soro, should have marked the resumption of state administration in areas under rebel control, but many services, including HIV/AIDS services, are still unavailable.

[...]

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Like many state institutions, CHU [*Centre hospitalier universitaire*] is experiencing a severe staff shortage. CHU officials have estimated that about 70 nurses are needed for the hospital to function properly, but less than half that number struggle to deal with urgent medical issues. Routine consultations had yet to start up again, said Prof N'Dri N'Guessan, CHU's medical director.

[...]

The university hospital centre in Abidjan is providing care for people living with HIV and prescribing antiretrovirals (ARV), but the centre in Bouake is unable to offer these services. "We already have a shortage of staff; we can't assign doctors or nurses [to HIV/AIDS issues]," N'Guessan said.

"We have been delayed by the war," Bao agreed, who said he hoped to reintroduce these services once CHU had "found its feet". N'Guessan said, "We have organised training sessions for doctors in CNO areas [central, northern and eastern areas under control of the former rebels] on HIV care, and one pharmacist has already been trained."

Only one laboratory in Bouake is processing HIV tests for 40 patients a week, and there are hundreds of patients on the waiting list.

A ministry devoted to the fight against HIV/AIDS is based in Abidjan, but does not have representation all of the country's 19 administrative regions. The process of recruiting new doctors from a pool of 1,200 applicants has begun, according to Dr Massagnon Soro, the ministry's inspector general."

UNHCR, 25 April 2007, p.7:

"They found increased vulnerability to HIV due to impoverishment, increased unemployment, family fragmentation and disruption of social networks, and dependence. The assessment also found that there was an increase risk of HIV due to increases in sexual trading for financial support, sexual exploitation, early sexual relations and unsafe sex (documented by a growth in the number of child mothers). Additionally, only minimal health services were available at most sites, since the many of the health workers had gone to Abidjan to work.

Key vulnerability and risk factors and corresponding recommendations were highlighted during the presentation, including the need to develop a strategy to ensure social and economic

independence among IDPs, targeted HIV prevention for children and increased prevention interventions for students, improved quality and dissemination of information on HIV, increased availability of condoms, improved voluntary counselling and testing (VCT) access, quality, confidentiality and referral, and ensured access to treatment, care and support for PLWHs. Dr. Diabate stated that there were no specific programmes for IDPs, and that in many instances the IDPs had integrated within the existing populations, making existing services insufficient to cover the overall needs of the community. She also noted that issues of stigmatization and discrimination had left many fearful of seeking services. She emphasized the need for services to be distributed fairly within the community."

UNHCR/GoCdl/UNAIDS, 28 March 2007, pp. iv-v:

"The internally displaced people interviewed who for the most part had had stable financial and familial conditions, have been stripped of their homes and income. They describe how financial strain of their extended stay with relatives has worn out family ties and social networks. Parental loss and impoverishment has fractured households as case studies illustrate, where children have either chosen or been forced to leave home and fend for themselves. Parents, humiliated by destitution and degrading events during their displacement express that they have lost their authority over their children, who are engaging in unrestrained sexual activity.

People living with HIV share that even in times of peace they can face financial difficulties when needing to pay for opportunistic infection treatment and prophylaxis. They state that the unemployment, undernutrition, deterioration of health care and unavailability of drugs and reagents they have experienced as a result of the war further aggravates their financial situation. ARV adherence among displaced people living with HIV is noticeably more difficult by their mobility. Moreover, HIV counselors suggest that the proximity of their new living conditions is a further barrier to medication adherence, because suspicious behaviour could reveal their positive status and lead to rejection from family members and/or the host.

Death, financial strains and liaisons with transient men were some sources of fracture among displaced and impoverished families. Women, children and even men were found to be vulnerable to sexual exploitation or trading. The UN peacekeepers were cited as a main source of sexual exploitation in Bouaké. The scale of the violence perpetrated by other men in uniform and paramilitaries could not be documented, although a first hand account of sexual exploitation by a militia was recorded. Teachers' sexual exploitation of students reportedly rose with the vulnerability of their students.

Forced sexual relations were not the only factor increasing risk of HIV. In one case, the separation of spouses after displacement also encouraged unprotected extramarital sexual relations, with voluntary HIV testing never considered. Here, lack of knowledge and displacement combined to raise risk of HIV infection.

Overall, knowledge of HIV was inadequate. Sexual transmission and discriminatory practices towards PLWH were commonly stated. Condom use was not systematic in any site, but appeared to be more frequent in Abidjan than in other towns according to the sex workers interviewed and their clients.

In all four sites, HIV interventions and services were inadequate, and sometimes absent. Displaced people's risky sexual behaviour and vulnerability to HIV have been aggravated by the war; they have poor access to protective mechanisms and HIV services due to their impoverishment, lack of information and marginalisation."

Cost recovery policies may hinder access to health care for IDPs (September 2007)

- The health sector is being affected by repeated strikes over pay scales
- At the same time, the government is looking into the introduction of a cost recovery policy that would prevent the poorest, including IDPs and returnees, from accessing health care
- In a study conducted in Bin-Houye and Zouan-Hounien districts, it appeared that free care had allowed a reduction in the mortality rate of a population presenting a high morbidity rate

IRIN, 7 September 2007:

"The strike, which began on 5 September, is the second in two months as negotiations with the government over pay scale and other trade union grievances have failed.

In the earlier strike in August, hospitals provided some minimum services but this time round that is not the case. The medical trade union this time called for an "indefinite strike without minimum services", according to the union's secretary general, Amichia Magloire.

The Minister of Public Health and Hygiene, Remi Allah Kouadio, has appealed to the state doctors to retain minimum services for the population but they have refused.

This means that even people in urgent need are on their own. At a hospital in the Treichville neighbourhood of Abidjan, an ambulance carrying a patient was turned away on."

UN OCHA/EU-Cote d'Ivoire, September 2007, pp. 65-66:

"La question relative aux coûts des prestations/médicaments proposés à une population appauvrie par la guerre est encore sujette à débats. D'un côté, il est considéré que les populations, en particulier les populations déplacées (retournées) n'ont pas les moyens de se soigner. De l'autre, le rétablissement de la politique de recouvrement des coûts n'autorise pas un retour en arrière à la gratuité des soins, d'autant que les coûts de médicaments génériques sont faibles et certains soins sont déjà gratuits. Néanmoins, des expériences de gratuité ciblée (femmes et enfants ou pathologies spécifiques comme le paludisme/VIH) ou de gratuité partielle (consultation payante/médicaments gratuits) et dégressive (1 à 2 mois) sont rendues possibles grâce à des donations en médicaments. Cette solution doit s'accompagner de mesures et moyens de contrôle de la gestion des donations en médicaments par les agents de santé, pour éviter qu'ils fassent payer les patients. Le contrôle de la tarification des actes de santé a été résolu dans certains cas, où les autorités préfectorales se sont directement impliquées dans le contrôle et la gestion des comités de santé."

IRIN, 24 August 2007:

"The Ivorian health ministry is reviewing its policy of charging fees for health services, hearing recommendations from UN agencies, aid groups and other experts on potential changes to the 10-year-old system.

The effort comes as aid organisations are lobbying the government to provide free health care, at least to some at-risk groups.

The government is "evaluating the health cost recovery system, in place since 1996, to see what has worked and what has not," N'da K. Simeon, head of communications at the Ministry of Public Health and Hygiene, told IRIN. But he said the evaluation is not linked to a debate swirling in Côte d'Ivoire over the merits of free access, saying it is simply time to take stock of a policy that has existed for more than a decade."

Médecins sans Frontières, 12 July 2007, p. 35:

"We can extract the following messages from the results of this survey combined with the evidence from the literature referenced above. These should be the key points used in advocacy:

The population of the region is an extremely poor one both in absolute terms and compared to the rest of the country, and the population has not recovered economically from the effects of the conflict.

This population also carries a high burden of morbidity.

This survey provides clear evidence that currently, providing free access to health care has ensured good access to services for this otherwise very vulnerable population.

Introduction of cost recovery will negatively impact on this population's capacity to access health care, and therefore risks reversing the reductions seen in mortality in this survey.

The socio-economic analysis also demonstrates that only a very small proportion of the population would be able to participate in a cost-recovery system. This has serious implications for the sustainability of a cost recovery system based on exemptions for those unable to pay. The great majority of the population will be exempted and therefore the fees will not provide adequate returns to make the health care system self-funding or sustainable."

Food

High malnutrition rates in 2008 (January 2009)

- High malnutrition rates were found in northern Cote d'Ivoire and peri-urban areas of Abidjan
- The food security situation in the north has deteriorated following a poor maize and rice harvest in 2007
- In the West, the situation seems particularly alarming in Goya Zibiao and Glode in the sub-prefecture of Zéo

UN OCHA, 22 January 2009, pp. 1-2, 10:

"High malnutrition rates were revealed in July 2008 by the Standardised Monitoring and Assessment of Relief and Transitions (SMART) survey, conducted jointly by the National Nutrition Programme (PNN), WFP and UNICEF. The survey concluded that the food security situation in the north had deteriorated, following a poor maize and rice harvest in 2007, erosion of the means of production with the loss of oxen, and general loss of purchasing power as a result of the high food prices. Furthermore, the survey concluded that the global acute malnutrition (GAM) rate is 17.5% in the north, well above the emergency threshold of 10%, and a marked deterioration from the 2006 multiple indicator cluster survey which concluded a GAM of 12.5% in that region.

[...]

In 2008, WFP, in close collaboration with FAO, undertook an assessment to monitor household food security in the Savanes and Moyen Cavally Regions, which are the most vulnerable regions in the country. The results of the assessment show significant food insecurity in the Savanes region where 12% of rural households were severely food-insecure and 15% were moderately food-insecure. Likewise, 15% of those in Moyen Cavally were moderately food-insecure.

In July, a nutrition survey was carried out by UNICEF, WFP, and the PNN in the north and in peri-urban areas of Abidjan to establish the nutritional situation of children under five and to measure

the impact of the food crisis on malnutrition. This survey showed the following: (i) an alarming rate of 17.5% of children under five are undernourished (with 4% severely undernourished) in northern Côte d'Ivoire; (ii) 5% undernourished in peri-urban areas of Abidjan; (iii) 65.3% of children under five with global anaemia (moderate and severe) in the north; (iv) and 61.5% with global anaemia in peri-urban areas of Abidjan."

NRC, December 2008, Moyen Cavally et 18 Montagnes, pp. 22-23

"Bien que l'Ouest soit une zone riche en cultures vivrières, dans nombre de localités visitées, la situation alimentaire semble préoccupante.

La situation semble particulièrement alarmante à Goya Zibiao (avec 86% de mention) et Glode (42%) dans la sous-préfecture de Zéo. Avec des proportions variant de 15 à 50%, l'ensemble des localités de la sous-préfecture de Facobly méritent également une attention; de même que Siambly (36%), Semien (29%), Klangbolably (25%) et Bibita (21%) dans la sous-préfecture de Semien."

Agencies support food needs of vulnerable households (January 2009)

- Of the 13,300 vulnerable households assisted by FAO during the rainy season in 2008, 45% were returnees and 2% IDPs
- During the non-farming season some 17,000 returnees and 1,000 IDPs were also assisted by FAO
- At the same time, WFP has provided assistance to some 17,000 IDPs returning to their villages and to the IDPs in the CATD in Guiglo over the course of 2008

UN OCHA, 22 January 2009, pp. 10-11:

"During the 2008 rainy season, 13,300 vulnerable households were assisted by FAO in seven regions. Some 45% of the households assisted were new returnees, 2% were IDPs, 49% were "very poor" and 4% HIV affected. In total, 620 tonnes of cereal seeds, 15 tonnes of varied vegetables seeds, 469 tonnes of fertiliser (nitrogen, phosphorous, potassium [NPK] fertiliser mixture and urea), 22,110 hoes (industrial and local) and 2,425 pairs of boots were distributed. This enabled approximately 78,000 people to access food for a period of six months by the end of the 2008 agricultural season.

During the non-farming season, FAO also assisted 14,200 vulnerable households (100,000 persons). Some 17% of the households assisted were new returnees, 1% were IDPs, 74% were "very poor" and affected by soaring food prices and 8% were HIV affected. In total, 68 tonnes of lowland rice seeds, 655 kg of varied vegetables seeds, 341 tonnes of fertiliser (NPK and Urea), 28,400 hoes (industrial and local), 5,450 pairs of boots and 8,750 watering cans were distributed.

In the course of 2008, WFP has provided food rations to 42,151 vulnerable groups including 17,000 IDPs in-transit (returning to their villages) and IDPs in the CATD camp in the Guiglo area. Overall, from January to August 2008, 9,882MTs of food commodities were distributed.

Furthermore, hot meals were served to 607,142 school children during their lunch break every school day including 315,000 school children in the north. WFP also delivered a package of HIV prevention and nutrition rehabilitation assistance to HIV-affected beneficiaries and mother and child health (MCH) programmes in partnership with the Ministry of Health, UN agencies as well as local and international NGOs.

Each month, when cases of moderate acute malnutrition were diagnosed by nutritional/medical implementing partners, WFP provided take-home rations comprised of corn soya blend, vegetable oil and sugar in health/nutrition centres for an average of 3,157 malnourished children per month. Approximately 3,013 pregnant and lactating women also received a take-home ration of fortified blended foods at health centres from the seventh month of pregnancy until six months after delivery to enhance their nutritional status, increase birth weights and provide an incentive to use MCH services more regularly.

According to UNICEF, performance data from the Nutritional Therapeutics Care Centres (NTCCs) is encouraging. Approximately 1,500 severely malnourished children were admitted to NTCCs with the following results: (i) cure rate: 75%; (ii) default: 10%; death: 7%; length stay in Nutritional Therapeutics Care Centres (NTCC): three to four weeks; weight gain in NTCC: six to nine g/kg/day. Therapeutic foods provided by UNICEF included: therapeutic milk F75 and F100; ready to use therapeutic food Plumpy Nut and BP100, BP5 for moderate malnutrition management; and ReSomal diet for diarrhoea management. Essential drugs included anti-malarial drugs, ferrous salt and folic acid for anaemia and antibiotics for acute respiratory infection."

Increase in food prices has serious humanitarian implications (2008)

- Increase in food prices have had serious humanitarian implications in Cote d'Ivoire, which imports more than half of its consumption of rice
- Food prices and a poor harvest of corn in 2007 have had worrying consequences for vulnerable households with increased levels of acute malnutrition
- IDPs formerly hosted in the CATD centre in Guiglo started returning following increasing difficulties in guaranteeing a livelihood
- Bribes at roadblocks have contributed to additional increases in prices
- The Government has implemented measures. like the suspension of import duties and VAT, in order to ease the economic pressure on vulnerable households following violent protests in Abidjan in April 2008

UN OCHA, 3 July, p. 8:

"In terms of significant developments over the last six months, the increase in prices of agricultural raw materials and fuel globally remain the most important changes with serious humanitarian implications. At the global level, in 2007, the Food and Agriculture Organization (FAO) price index of food products averaged 23% higher than in 2006. In Côte d'Ivoire, compared with the first quarter of 2007, the price increase has been felt on imported rice (+25% on average), local rice (+12%), maize (+30%), refined oil (+28%), and soap among other basic items. At some regional markets, the increase is more important because of the cost of transportation and illegal taxation. There is thus an increase of +60% on corn in Korhogo, +43% on imported rice in Odiénné and +38% on imported rice in Man.

It is likely that, despite Government measures to suspend import duties and VAT, these increases will continue. Côte d'Ivoire imports more than 800,000 tonnes of rice annually, which represents more than half of its consumption. As the biggest export countries have suspended or reduced their exports, it is possible that a deficit of imported rice will be felt in Côte d'Ivoire in the coming months. This situation, coupled with poor harvests of corn and the below average rice harvests in 2007 is extremely worrying for vulnerable households who face a significant erosion of their livelihoods since the crisis began in 2002. In rural areas, the most vulnerable households are farmers who have limited access to land, day labourers and small farmers who buy most of their food from the market. In addition, in 2007, the maize harvest was bad, whereas it constitutes the

bulk of food in the north (regions of Denguélé, Worodougou and Savannah) where price increases are highest.

The adaptation mechanisms which are likely to be used by these households include buying more on credit, limiting the quantity and quality of daily meals and mortgaging their nutritional status by consuming cassava and yam, which are less nutritious than cereals. Another likely consequence is an increase in acute malnutrition already above the emergency threshold (10% of children under five years) in the northern regions. Spending on health and other social services may be affected, thereby increasing morbidity. Finally, de-capitalisation might be implemented especially by farmers. In contrast, the increase in the sale prices of coffee, cocoa, rubber and palm since 2007 will strengthen the livelihoods of households in the south of Ivory Coast who exploit these cash crops, and limit the impact of higher purchase prices.

The food security assessment of 2006 which covered ten of Côte d'Ivoire's 19 regions identified a total of 1,100,000 persons as being at risk of food insecurity in the event of a clash. Because of soaring prices, the erosion of livelihoods and bad harvests, 20% to 30% of these households are actually food insecure and require emergency food assistance during the lean season (April -September). The profile of vulnerable households could change because higher prices will also affect small farmers who bought the bulk of their food from markets.

Given the progress of the agricultural calendar and logistical constraints, increased assistance through agricultural seeds and agricultural inputs is no longer relevant due to the advanced rainy season. The priority is to address the food needs of the vulnerable populations referred to in the 2008 CHAP.

IRIN, 5 June 2008

"Bribes extracted by police and military forces at road blocks along most of the country's main transport routes are pushing already high food prices even higher, causing the government and military commanders to step in.

Transporters may have to pay the authorities up to US\$71 for a journey from field to market which may be punctuated by as many as 15 roadblocks, according to food-seller Trazié Lou.

"This racketeering is contributing to soaring market prices," Lamine Doulaye, head of a transport organisation, told IRIN. "To distribute consumer products on the market, we have to hand over between US\$2.37 and US\$47 depending on the truck, despite already having paid transport taxes to the state."

He continued, "in order to ensure returns on our profits we have to impose the maximum prices on our goods. This means some market-sellers have increased prices from 25 to 60 percent."

AFP, 3 July 2008

"Les mesures prises le 1er avril pour lutter contre la hausse des prix en Côte d'Ivoire, notamment la suspension jusqu'au 30 juin des droits de douane sur des produits alimentaires de première nécessité, ont été prorogées de trois mois, a-t-on appris mercredi de source officielle.

[...]

Le 1er avril, au deuxième jour de violentes manifestations à Abidjan contre la cherté de la vie, le gouvernement avait pris en urgence une ordonnance pour notamment suspendre jusqu'au 30 juin les droits de douane sur plusieurs produits comme le lait, l'huile de palme, le sucre, la farine de blé ou le riz."

UN Radio, 15 April 2008

"La hausse du prix des denrées alimentaires qui sévit en Côte d'Ivoire n'a pas épargné les déplacés de l'ouest de ce pays qui ont amorcé récemment un mouvement de retour dans les centres d'accueil de l'Organisation internationale pour les migrations.

L'Organisation depuis 2005 avait démarré une opération de retour des déplacés qui avaient fui les violences consécutives au coup d'état de 2002; une opération qui jusque là se déroulait plutôt bien. Malheureusement, la situation de crise alimentaire mondiale a aussi un sérieux impact sur ces populations qui pour la plupart n'ont pas véritablement réussi à se refaire une santé financière. Aussi leur ultime recours restent les centres d'accueil de l'OIM où une assistance humanitaire leur avait été apportée, il y a quelques années."

For a detailed account of the results of the 2007 harvests in Cote d'Ivoire and the implications on food security, see also WFP's "Cote d'Ivoire - Mission de suivi de la saison agricole et de la sécurité alimentaire de l'année 2007" (March 2008)

Shelter

IDPs' housing characteristics (2006)

- Most of the IDPs in the five departments studied live in compounds or 'simple houses'
- An important number of IDPs have also found shelter in shacks or adjoining houses

ENSEA, March 2006, p. 28

"Sur l'ensemble des cinq départements, la majeure partie des ménages vivent dans des 'maisons simples' ou des concessions. En effet, quels que soit le département et le milieu, ces deux types de construction sont plus nombreux. Aussi enregistre-t-on trois ménages sur six dans les 'maisons simples' et deux ménages sur six dans les concessions.

Les maisons en bande et les baraques abritent également une partie relativement importante de ménages. Les autres types de construction, les immeubles et les villas modernes, abritent très peu de ménages (tableau 17).

Tableau 17 : Répartition des ménages selon le type de construction et le milieu (%)

Départements	Milieu	Type de construction					Effectifs	
		Villa moderne	Maison simple	Maison en bande	Immeuble	Concession		Baraque , autres
Abidjan	Urbain	2,7	48,2	14,8	8,3	30,8	1,8	523
	Rural	12,7	30,5	1,8	0,1	43,2	9,8	444
	Ensemble	3,4	40,4	14,0	7,7	33,7	2,4	967
Daloa	Urbain	8,5	22,1	18,5	0,0	52,1	2,6	425
	Rural	8,0	39,6	5,5	0,0	39,3	6,5	485
	Ensemble	8,1	35,8	7,8	0,0	43,5	5,8	913
Duékoué	Urbain	3,3	42,1	18,8	0,4	35,0	6,3	345
	Rural	2,0	50,3	8,7	0,0	23,5	9,3	368
	Ensemble	2,5	44,3	13,1	0,1	27,5	8,3	913
Toulepteu	Urbain	8,2	67,3	26,9	0,0	11,4	0,6	421
	Rural	8,1	78,5	1,2	0,0	0,5	5,1	481
	Ensemble	8,1	72,4	5,5	0,0	2,4	4,3	902
Yamoussoukro	Urbain	10,5	58,1	50,2	8,5	3,1	0,3	471
	Rural	6,2	89,4	1,7	0,0	3,2	3,1	420
	Ensemble	7,3	73,8	14,2	2,2	3,2	0,8	891
Ensemble	Urbain	3,1	47,8	16,0	7,8	30,6	2,0	2385
	Rural	7,7	53,8	4,2	0,0	26,2	6,1	2201
	Ensemble	4,1	43,2	13,2	6,1	29,6	3,0	4586

* le nombre total de ménages dans les cinq départements est estimé à 754 504. Le gap est imputable aux non-réponses.
Source : ENSEA – PDI 2005

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Water and Sanitation

Efforts are carried out to improve access to water and sanitation (January 2009)

- A sizeable proportion of the rural population does not have access to toilets nor drinking water
- Soaring food prices and ineffective redeployment of technical staff from the state water service has had an impact on water and sanitation habits
- Agencies have carried out efforts to improve access to water and sanitation also among returnees
- Particular problems with regard to the quality of water were registered in Facobly, Biankouma and Zéo

UN OCHA, 22 January 2009, pp. 13-14:

"One third of the rural population has no access to toilets and only 55% of the population has access to drinking water, with a significant regional gap in access between urban areas and rural areas, favouring urban areas. Furthermore, the redeployment of technical staff from the state water services and local governments is not yet effective. The situation has been exacerbated by the food crisis and soaring prices which has reduced household resources to ensure consumption of potable water and ensure that hygienic conditions are maintained.

More than 200,000 persons, including 40,000 living in shanty districts near Abidjan (Ayakro, Boribana, Vridi three and Avocatier) and 160,000 returnees in the villages of Zuenoula, Zouan Hounien, Boléquin, Bangolo, Duékoué Danané, Kouibly departments (western region), were

sensitised on basic hygiene throughout the year. These populations now have improved access to potable water and basic sanitation facilities through a series of rehabilitation programmes and maintenance of boreholes with water pumps and drinking fountains. Sanitation campaigns were also organised to clean the environment by destroying unsuitable latrines, shower units and cesspools. Basic sanitation facilities including household latrines, lavatories and public washhouse were also made available.

A total of over 500,000 persons now have improved access to potable water and basic sanitation facilities through a series of rehabilitation programmes, including 200 village pumps and 150 new water points projects run by UNICEF, Government partners and local and International NGOs in the Moyen Cavally, 18 Montagnes, Worodougou, Marahoué and Vallée du Bandama Regions.

Moreover, UNICEF provided many hospitals and health centres with water-storage equipment to ensure they could provide in water for patients, particularly for women. More than 100 water treatment stations belonging to the private water distribution company, in the Central, Northern and Western Zones, received purification materials and were also provided with technical support to keep them in good working order.

Furthermore, IRC's "Return and Reintegration Programme" rehabilitated, in coordination with the village water and sanitation committees, a total of 11 water pumps not covered by any other actions in the Department of Bloléquin (west), as follows:

N°	Sub-Prefecture	Villages	Population in Village	Population in Temporary Camps These people are newly returned and living just outside the village in temporary shelters in the bush.	Number of Men	Number of Women	Total Population	Number of repaired pumps
1	Dieouzon	Bouobly	464	175	344	295	639	1
2		Goénie Tahouaké	1,226	195	802	619	1,421	1
3		Baïbly	2,207	452	1,340	1319	2,629	1
4		Diébly	1,553	474	1,116	911	2,027	1
Total	5,450	1,296	3,602	3,144	6,716	4		
1	Zou	Banguiéhi	428	1,493	1,058	863	1,921	1
2		Zou	3,485	2,952	3,380	3,057	6,437	3
3		Pinhou	3,226	231	1,962	1505	3,467	2
4		Béoua	175	665	453	387	840	1
Total	7,314	5,341	6,853	5,812	12,665	7		
Grand total	12,764	6,637	10,455	8,956	19,381	11		

NRC, December 2008, Moyen Cavally et 18 Montagnes, pp. 23-24:

"En ce qui concerne **l'accès à l'eau**, le problème principal porte sur la qualité surtout à Facobly, Biankouma et Zéo. Nombreuses sont les localités enquêtées de ces trois sous-préfectures affectées par la mauvaise qualité de l'eau ; les mentions sont particulièrement élevées à Tiessan (85%), Sandrou (75%) et Zouata 2 (71%) de Facobly ; Mangouin (100%), Gbombelo 1 (86%), Gbablasso (80%) et Yêgolé (75%) de Biankouma ; Diéou-Zibiao (82%), Gohouo Zagna (73%), Glodé (67%) et Diaplean (64%) de Zéo. Les populations de certaines localités des sous-préfectures de Diéouzon et Sémien semblent également déprécier la qualité de l'eau : Bibita et Sémien (71%), Mané (54%) de Sémien méritent une attention particulière, ainsi que Bouhobly (80%) de Diéouzon et Tiassalé (70%) de Boléquin.

Ensuite, à l'exception des localités visitées à Kouibly et Boléquin, **le temps de marche** pour accéder aux points d'eau excède assez souvent une moyenne de 10 minutes dans bon nombre de localités des autres sous-préfectures. A Facobly, dans toutes les localités, les distances moyennes s'inscrivent entre 11 et 29 minutes de marche; à Zéo ce sont notamment Goya Zibiao, Gohouo Zagna et Dieou-Zibiao qui se trouvent éloignés à plus de 15 min de marche ; de même pour le chef-lieu de à Sanguiné, ainsi que Nionle Gouepieu et Logoulalé ; Mané et Siambly de Sémien et, enfin, Gbablasso de Biankouma où la population met en moyenne 31 minutes de marche pour trouver l'eau.

Les populations ont désigné la brousse comme le principal lieu pour leur **toilette**. En effet, la quasi-totalité des entretiens dans les sous-préfectures visitées ont signalé ce mode comme étant le plus fréquemment utilisé. Toutefois, il existe quelques latrines familiales dans certaines localités"

Water and sanitation facilities remain precarious for IDPs and host communities (December 2007)

- Access to clean water is still poor for IDPs and other vulnerable populations, particularly in the west and in rebel-held areas and in peri-urban areas of large cities
- Limited access to potable water has resulted in the resurgence of endemic diseases and indirectly had a negative impact on education

UN, 10 December 2007, p.40

"The socio-political crisis in Côte d'Ivoire has had a serious impact on water supply and sanitation services in the Centre, North and West due to the absence of qualified operational staff that fled the areas. This resulted in a high rate of breakdown of water infrastructures. The recent peace process may eventually contribute to a substantial improvement as some managers of the Hydrology Department (DHH) are being redeployed, but as this redeployment is still in the early stages large-scale or systemic improvements have yet to be seen.

The situation in urban areas in the mentioned regions remains precarious, with water quality affected by frequent power cuts, often the result of poor cost recovery on energy bills. ICRC continues its support of 115 water treatment plants in the Centre, North and West of the ex-ZOC. A campaign of 500 new boreholes in the North East region is ongoing. Many displaced families have returned to their places of origin, in particular in the Western region. Nevertheless, a large number of IDPs have not moved yet and the sanitary situation of the peri-urban areas of large cities where the majority of them have settled remains precarious.

In rural areas, where people rely mostly on hand-pumps for their water supply, the number of broken-down pumps continues to decrease due to large-scale repair campaigns carried out both by DHH and international aid organisations. DHH is involved in the repair of 7,500 pumps throughout the country. Pump mechanics are also being trained and equipped, while spare-parts are made available in regional stores. Aid organisations have intensified their efforts in the

Western regions, where the largest number of returnees have started to settle. The International Rescue Committee and CARE have water and sanitation projects in the Bangolo area (Diouzon and Zou) whilst *Solidarités*/UNICEF are active in Toulepleu. UNICEF, through Caritas, also runs a project further north in Odienné. CARE also has water projects in the Duékoué and Man departments, but their sustainability is uncertain as it relies on volunteers, who are members of water management committees which are being re-activated.

Sanitation and hygiene activities focused mostly on rural areas where promotion of latrines and better hygiene practices has been carried out. In urban areas, efforts concentrated on solid waste management with projects run by CARE in the Central and Northern cities of Bouaké and Korhogo. As a measure of the success of these projects, significant outbreaks of waterborne or excreta related diseases have not been observed in the last twelve months."

IRIN, 21 March 2007

"It hasn't rained since December in the region of Duekoué, about 400km west of the main city, Abidjan. The southwest is where much of the country's rice, yams and manioc are produced, as well as the leading cash crops: cocoa, coffee and rubber.

Rains should have begun falling in February, but instead the dry season only persisted.

As a result, agricultural production is down and at least half of all local households are suffering from water shortages. Residents are forced to trek hours from where they live to rivers and wells to find water.

Problem compounded

The water shortage in the southwest is exacerbated by an infrastructure that has deteriorated since a brief civil war erupted in 2002, leading to the division of the country between a rebel-held north and a government-run south. Residents wonder whether a new peace accord signed last month will provide better results than previous agreements that have faltered. The new accord makes no reference to the country's various humanitarian crises.

The problems in the southwest are so grave that the state-run Water Distribution Company of Cote d'Ivoire (SODECI) has to alternate its supply of water between neighbourhoods within Duekoué and Guiglo and can only sporadically truck in water to outer villages.

"The boreholes we have are not enough," said a SODECI water technician in Guiglo who asked not to be named. "Every day almost 600 cubic metres of water are required for Guiglo and the surrounding area but we cannot extract more than 300 cubic meters so we cannot satisfy everyone."

He said the water problems would likely worsen in the coming months. "We will just have to wait for the rainy season to solve the problem but in the meantime I am extremely doubtful we can stop the taps and wells from completely drying up," he said.

No water in schools

The lack of water increases the risk of disease, particularly among children. In all but one of the 20 schools in Duekoué and the surrounding area, children have no access to drinkable water.

"They have to drink something in the course of the day and so they look for what water they can get," including from unsafe sources, said a teacher in Duekoué.

Children at school don't even have water to clean themselves, Pascal Niando, the assistant treasurer of one of the schools, told IRIN."

UNICEF, 29 January 2007, p.213

"In the water and environmental sanitation sector, North, West and Central Côte d'Ivoire suffer from a chronic lack of drinking water: 50 per cent of rural populations do not have access to drinking water, and 40 per cent of rural pumps are out of order. In the cities that have received the most significant number of IDPs (Abidjan, Yamoussoukro, Daloa, Duékoué), the still functioning hydraulic infrastructures and sanitary facilities (68 per cent have broken down countrywide) are at the verge of collapsing due to over-exploitation."

United Nations, 30 November 2006, pp. 15-16

"The **water and sanitation** is one of the most affected sectors, with strong pressure exerted on potable water resources of towns that received many displaced persons (Daloa, Duékoué, Yamoussoukro, Abidjan) resulting in the decline of the level and even shortages of water supply in some districts. Worse still, in towns in the interior a section of the population, which has increased with the crisis, has no access to any sanitation system or continue to use non-potable water wells and other sources. In both cases, the situation has serious health consequences. Water infrastructures and sanitation facilities, already marked by regional disparity and major breakdown rates (68%), are strained by overexploitation in zones with high concentrations of displaced persons. Contrary to towns in the interior, Abidjan has a sanitation system of public gutters of more than 990 km for evacuation of wastewater and matter, including the combined sewerage system. This main system covers nearly 70% of the city. However, only 45% of households are connected to the system (Sanitation Department, 2005). Until quite recently, it drained all wastewater and matter into the Ebrié Lagoon. Presently, many households (about 55%) have opted for an individual sanitation system (septic tanks in residential areas and latrines elsewhere). Despite these different types of sanitation, many families continue to discharge water from washing of plates and clothes into streets and gutters.

The Centre, North and West suffer from chronic shortages of potable water. Bouaké, the second largest city with a current estimated population of 400,000 inhabitants, was without water supply for more than one month (2 May-15 June 2006). During this period, humanitarian agencies assured emergency supplies following the breakdown of one of the two engines of the only water station that was still operational. The breakdown was caused by lack of maintenance. Thanks to the action of humanitarian agencies and organisations that supplied water to health centres, public social services and helped with the sanitation of water sources, a major humanitarian crisis was averted. In fact, continuing advocacy contributed to the repair of the pumps at the beginning of June 2006.

In Odienné and Danané, the population has, since the beginning of the first semester of 2006, been suffering from frequent power cuts and interruptions of water supply. SODECI provided a partial solution to these technical problems by repairing the water supply pumps. It is estimated that 50% of the rural population of these zones has no access to potable water. Field evaluation by agencies of the UNS and humanitarian NGOs. and that 40% of the rural pumps remain out of service, which represent 3,000 pumps to be rehabilitated nationwide CI 2006, Mid-Year Review (MYR)/OCHA., after the rehabilitation of nearly 6,000 pumps in 2006."

ACCESS TO EDUCATION

General

Lack of qualified teachers in areas of return remains a serious concern (July 2008)

- The lack of qualified teachers in areas of return remain a major constraint in guaranteeing access to education for children
- Teachers' strikes over improved conditions of service have also affected the academic year
- In the west, the concentration of IDPs in cities like Duékoué and Guiglo has saturated secondary schools
- Children associated with the armed forces, those separated from their parents, orphans and those lacking birth certificates have been marginalised within the school system
- The Fast Track Initiative (FTI), a global partnership between donors and developing countries to accelerate progress towards the Millennium development goal of all children completing primary school by 2015, is not yet been considered for Cote d'Ivoire

UN OCHA, 3 July 2008, p. 14

"The conflict has severely degraded the level of education for children, which was already poor in 2001/2002 with a school attendance level reaching only 56.3% (girls 45.4%). In 2006, despite the combined efforts of Government, local communities, humanitarian actors and other partners to provide education in the most affected zones (Centre, North and the West, and zones hosting refugees), the level of participation in classes had still not reached pre-crisis levels (estimated at 55%, with girls' attendance attaining 51%). The 2006 MICS indicates a precarious situation in rural areas, with school attendance reaching only 48.2% against 66.6% in urban areas.

As a result of the crisis, education has in many instances become a secondary concern given the level of poverty and the emergence of other priorities for families. This situation hinders the achievement of the "Education for All" and Millennium Development Goal objectives, and undermines the fundamental right of children to education. While 588,976 children attended classes at the beginning of the 2002/2003 school year in the Central, Northern and Western zones of the country, only 384,116 received education in 2005/2006, after a campaign directed at advocating for the return of children to schools. By 2006-2007 this number had increased to 686,071, 41% of which were girls.

Weak attendance rates are noted in rural areas where unfortunately schools remain closed, mainly due to a lack of teachers. Moreover, numerous children of school-going age do not have access to school or dropped out as a result of the crisis. Their return or reintegration into the school system constitutes an important challenge. Efforts carried out over the last two years, which included the organisation of exams in the Central, Northern and Western zones, and a single starting date for the school year on 16 October 2006 throughout the country allowed for the progressive return to a unitary national school system.

Response to date

The OPA, which foresees in the redeployment of the national administration in the Central, Northern and Western zones, also anticipates the return of displaced persons and the regular functioning of schools. 17 September 2007 was fixed as the start of the new academic year. However, one of the main constraints in the zones of return remains the lack of teachers.

According to available estimates, only 30% of the teachers that have been redeployed in the zones mentioned above have proper qualifications. "

UN Security Council, 2 January 2008, para. 31

"Since the beginning of the school year in September, teachers in many parts of the country have been on strike to demand improved conditions of service. The action has generated widespread and frequent demonstrations by students protesting the continued absence of teachers from their schools. The situation might improve as a result of reopening in November of financial services in the north, in particular in Bouaké and Korhogo, which will facilitate the payment of salaries and pensions to current and retired civil servants in that part of the country."

Save the Children, 3 June 2008, p.10

"Some CAFS [*Conflict-Affected Fragile States*] are scheduled for FTI [Fast-Track Initiative] endorsement in 2008 (Burundi, Central African Republic, Chad, Haiti and Uganda) and 2009 (Angola, DRC, Republic of Congo, Eritrea and Nigeria [three or four states]). Given the Liberia experience, however, endorsement may not necessarily mean they receive extra resources through the Catalytic Fund. In addition, Afghanistan, Cote d'Ivoire, Myanmar (Burma), Nepal, Nigeria (other states), Pakistan, Somalia, Sri Lanka, Sudan and Zimbabwe (countries with high numbers of out-of-school children) are not yet even scheduled to be endorsed."

In the West

UN OCHA/EU-Côte d'Ivoire, September 2007, p.86

"Le secteur de l'éducation est particulièrement sinistré par la guerre. Les conflits ont provoqué la fuite des enseignants titularisés en zone gouvernementale et des administrations (la DREN s'est délocalisée à Duékoué). Les infrastructures scolaires et les équipements ont été en partie pillés (toits, portes, tables/bancs) parfois détruits ou se sont simplement dégradés. Le pillage, l'occupation épisodique des structures par les combattants, l'abandon et le manque d'entretien n'ont fait qu'aggraver une situation qui n'était pas forcément brillante avant la crise. En 2004, jusqu'à 25 % des établissements primaires de la zone CNO n'étaient toujours pas fonctionnels.

Les déplacements de populations des zones de guerre vers dans les zones refuges telles que Duékoué et Guiglo ont saturé les capacités d'accueil et d'enseignement des établissements, particulièrement les établissements secondaires. Les classes déjà saturées de certains établissements secondaires ont vu leurs effectifs d'élèves doubler.

Enfin, la crise a généré un groupe d'enfants marginalisés du système éducatif. On y trouve les enfants associés aux forces combattantes, les enfants qui ont dépassé l'âge requis, les enfants séparés de leurs parents, les orphelins ou ceux dont les parents sont sans revenu ou malades. Beaucoup d'enfants ne disposent pas de l'extrait de naissance nécessaire à l'inscription à l'école et au passage des examens. Ce groupe d'enfants encore jeunes ne peut pas de surcroît avoir accès à l'apprentissage d'un métier.

1.1 Activités d'urgences

En réponse au manque d'enseignants et de structures, il faut tout d'abord saluer la volonté des parents d'élève et des COGES de maintenir les activités d'enseignement, en recourant aux enseignants volontaires pour travailler dans des salles de classe fortement délabrées et sous équipées ou avec des écoles « communautaires » improvisées. Par ailleurs, les réponses des humanitaires ont été axées sur la réhabilitation d'infrastructures scolaires, la fourniture en équipements et en kits, ainsi que l'appui au corps enseignants, administratif et aux dynamiques villageoises. Des solutions intermédiaires de classes passerelles, d'écoles informelles et d'alphabétisation ont permis à environ 700 enfants exclus du système éducatif de retrouver un niveau leur permettant de réintégrer un cycle scolaire. Enfin, des campagnes ont été menées, visant à la scolarisation des filles et le maintien des enfants à l'école, ainsi que la relance des examens en 2005."

For an analysis of the link between lack of access to education and risks of trafficking, see UNICEF's "Child trafficking in Côte d'Ivoire: Efforts under way to reverse a tragic trend" (14 June 2007)

Summary of education data on IDPs (March 2006)

- IDPs living in urban areas have more access to education
- Less IDP girls are sent to school than boys
- Reasons for not attending school include lack of financial means and not having attended earlier for those aged under ten

ENSEA, March 2006

"Education"

Les déplacés vivant en milieu urbain semblent plus scolarisés que ceux du milieu rural (70% en ville contre 60% en zone rurale). Les enfants et les jeunes dont les âges se situent entre 6 et 24 ans révolus sont en majorité encore inscrits à l'école (75%). Lorsque l'on s'intéresse aux enfants déplacés de moins de 15 ans, il ressort que 70% d'entre eux poursuivent leur scolarité.

Cependant, les filles déplacées sont moins scolarisées que les garçons. Ce sont en moyenne 59% d'entre elles qui sont encore à l'école entre 6 et 24 ans contre 69% de garçons. Cette configuration est peu satisfaisante, néanmoins, elle est appréciable comparativement à la situation à Duékoué où à peine trois filles sur dix ont la chance d'être scolarisée. Les départements ayant les taux de scolarisation les plus élevés sont Abidjan et Yamoussoukro avec des niveaux respectifs de 71% et 67%.

Les principales raisons évoquées par les déplacés qui ne fréquentent plus l'école sont le manque de moyens financiers surtout parmi ceux de 10-24 ans (34%) et le fait de n'avoir jamais été à l'école chez les moins de 10 ans (64%). En général, les frais de scolarité des déplacés scolarisés sont pris en charge par leurs parents biologiques. Ce qui est confirmé par les propos de plus de 70% d'entre eux."

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

Employment strategies used by IDPs (2008)

- Survival mechanisms vary according to gender
- A great number of IDPs are registered as students
- Those IDPs who are employed work in commerce, administration, craft industry and agriculture
- For those IDPs who were business owners before displacement, lack of credit is an obstacle to return
- The ENSEA survey found two times less employed people among IDPs than the general population
- A good number of IDPs, especially in Abidjan, maintained government salaries during displacement

United Nations, 30 November 2006, p. 55

“The survival mechanisms developed in the rural areas vary according to gender. The men look for small contract jobs that are often scarce and poorly paid in the farms. But, once the work is completed, payment of salaries is often a source of misunderstanding. The women buy products on credit and resell them on the market to earn some profit, sell firewood (after asking for permission from the host), local materials used for roofing (“papos”) and snails.”

ENSEA, March 2006

“Emploi

De manière générale, la structure de l'occupation dans la population des personnes déplacées indique une prépondérance des élèves (38%). Ce constat est nuancé dans les départements de Duékoué et de Toulépleu où la majorité des déplacés est occupée. Les actifs occupés (26%) viennent ensuite suivis des chômeurs et des personnes en quête de leur premier emploi (25%). Les personnes actives occupées travaillent essentiellement dans le commerce (34%), l'administration (31%), l'artisanat (19%) et l'agriculture (16%). La structure de l'occupation dans la population des non déplacées est quelque peu différente. En effet, les occupés sont dominants (42%) suivi des élèves (33%), des chômeurs et personnes en quête de leur premier emploi (14%). Dans l'ensemble, les populations déplacées renferment deux fois moins de personnes occupées que dans la population non déplacée.”

US Department of State, 11 March 2008

"More than 90 percent of IDPs lived with host families, and almost 70 percent were located in Abidjan. However, other humanitarian organizations and donors noted that these statistics included IDPs who maintained access to their government salaries even after their displacement."

IRIN, 14 May 2008

"In an attempt to return to normality, humanitarian workers are trying to help people displaced by the war to return home. Aka said they would have to resolve the issue of reintegration, but economic reconstruction was a priority.

"Some displaced persons were working for companies where business is now very slow. Shops and industries have reduced their activity and there is no longer any work," he said.

"Another issue is that their homes and belongings have been looted, and some people no longer have the means to send their children to school. They arrive and have to start a new life, but for that you need a certain amount of money. Displaced persons have come back and then left again for this reason," he pointed out.

"Some displaced persons receive help from organisations, and they would like to move away from this dependency, but you need some money to get started."

This is also true of Josette. None of her children has found a job, and she also dreams of working again. "I want to do something with hands, I want to work but I have to get everything given to me," she said sadly. "The only thing that works here is credit." "

Income generating activities in the West suffer from displacement and little support by humanitarian actors (2007)

- Socio-economic infrastructures in rural areas in western Cote d'Ivoire have been heavily destroyed during the conflict

- The problem of income-generating activities are particularly brought forward by women and youth
- Inter-communal conflicts and consequent waves of displacement have had complex effects on the economy based on coffee and cacao
- Support for income-generating activities has been limited having humanitarian organisations focused on humanitarian assistance
- Humanitarian agencies and NGOs have developed agricultural activities aimed at IDP returnees in the departments of Toulepleu, Man and Bloléquin

UN OCHA/EU-Cote d'Ivoire, pp. 22, 96, 98

"Les infrastructures socio-économiques rurales ont été fortement endommagées. Les efforts menés par les agences humanitaires, ONG, entreprises agricoles et forestières et l'ONUCI pour maintenir fonctionnel un minimum de pistes et ponts sont encore insuffisants, de nombreuses pistes étant presque impraticables. Dans les villes, les marchés et les artères principales sont aussi délabrés.

S'il existe des potentiels d'insertion des jeunes et des femmes dans l'agriculture, tels que la cacao-culture, l'élevage, la pisciculture, l'hévéaculture, etc., les structures gouvernementales sont sous-équipées en matériel et personnel pour offrir un encadrement répondant aux besoins actuels (ANADER, Ministère de l'Agriculture).

Les problèmes des AGR sont particulièrement posés par les jeunes et les femmes. Les jeunes font prévaloir l'isolement et le manque d'opportunités de financement de leur projet, l'absence de soutien de l'Etat et des Conseils Généraux ainsi que le manque de terre, pour justifier leur présence dans les milices et leur récupération par les hommes politiques. Les coopératives de femmes dans le domaine du vivrier se sont désagrégées par suite aux déplacements de leurs membres et le manque de ressource à l'investissement demeure un frein majeur à la reprise d'AGR.

[...]

Des centaines de milliers d'exploitants agricoles, en particulier les étrangers et les Baoulés ont ouvert dans la région de nombreuses plantations sur la base de conventions foncières de teneur très variée avec les autochtones Guéré. Les rixes inter-communautaires ont eu des effets complexes sur l'économie du café et du cacao. Elles ont entraîné le départ massif des populations étrangères à la région et l'impossibilité pour celles-ci d'accéder à leur exploitation. Les autochtones parties prenantes à ces conflits n'ont pas pu exploiter ces plantations en raison du départ de la main d'œuvre étrangère. Aux effectifs importants de travailleurs déplacés, rendus au chômage ou à la sous activité, s'ajoute le nombre de jeunes urbains et ruraux sans emploi.

[...]

Le soutien aux AGR a été pratiquement inexistant, l'attention ayant été accordée en général aux secours d'urgence aux populations. Dans les zones de Zouan-Hounien, dans les départements de Man, Toulepleu et Bloléquin, les agences et les ONG ont développé des activités de relance agricole auprès des PDI retournées, notamment pour les cultures vivrières. Cette relance vise plus à pallier le déficit de vivres et le risque d'insécurité alimentaire qu'à produire des revenus. Quelques AGR ont bien été entreprises sous la forme de micro-projets communautaires. C'est ainsi qu'ont été initiées des activités communautaires autour de projets ponctuels de pisciculture, d'élevage de porcs ou de moulin de manioc, etc."

Public participation

DOCUMENTATION NEEDS AND CITIZENSHIP

General

Renewal of national identity cards made difficult because of religious or ethnic affiliation (2009)

US Department of State, 25 February 2009, para. 2.c:

"Some Muslims believed that their religious or ethnic affiliation made them targets of discrimination by the government with regard to both employment and the renewal of national identity cards. As northern Muslims shared names, style of dress, and customs with several predominantly Muslim neighboring countries, they sometimes were accused wrongly of attempting to obtain nationality cards illegally to vote or otherwise take advantage of citizenship. This created a hardship for many Muslim citizens."

US Department of State, 6 March 2007, para. 2.c:

"Some Muslims believed that their religious or ethnic affiliation made them targets of discrimination by the government with regard to both employment and the renewal of national identity cards. As northern Muslims shared names, style of dress, and customs with several predominantly Muslim neighboring countries, they sometimes were accused wrongly of attempting to obtain nationality cards illegally to vote or otherwise take advantage of citizenship."

The identification process aims at addressing the needs of the undocumented (2008)

- The new identification process started on 25th September 2007
- Mobile courts and tribunals can issue birth certificates or substitute judgments only to people born within their jurisdictions or based on birth registration for those outside
- Claimants need to have at least one witness to attest their birthplace
- The government is parallelly engaged in the reconstitution of civil registries lost or destroyed during the conflict
- Due to a failure to prepare the ground properly, the geographical coverage of the mobile courts has been limited and the turnout relatively low in the first few weeks of the process
- The fourth round of the mobile court operations ended on 15 May 2008 but supplementary mobile courts were deployed on 27 August 2008
- The identification of the population and the voter registration processes were launched on 15 September 2008 to last for 45 days but a number of delays were already recorded since the start

Reuters, 17 September 2007

"Exclusion of any community is precisely what the identification process is aimed to fix, as Côte d'Ivoire fights its way back from five years of unrest and economic decline, triggered by a rebellion calling in part for an end to discrimination against northerners."

After several failed launches, the identification process is scheduled to start on 25 September. Teams of judges and legal experts will travel around the country to furnish those who do not have

birth certificates with special documents that will serve for obtaining national ID and voter cards. A person seeking the documents must show up with at least one witness to attest to his or her birthplace.

The identification process is particularly important to residents of the northwestern Denguele region, who say they have long been cast as foreigners and discriminated against because they share names and ethnicities with communities of neighbouring Mali and Burkina Faso.

Odienne acting mayor Kourouma said local authorities had not yet received a breakdown of how many teams will be in the region and in how many places they would set up shop. Given the lack of road access to so many areas he thought it would be best to hold tribunals in a few central towns rather than in a larger number of towns and villages."

Government of Burkina Faso, 14 January 2008

"Au titre du processus d'identification, le Comité [*d'évaluation et d'accompagnement*] a exprimé sa satisfaction quant à l'annonce du déploiement des équipes des audiences foraines. Il a noté les efforts déployés par le Gouvernement en vue de la reconstitution des registres d'état civil perdus ou détruits et de l'établissement des nouveaux titres d'identité en Cote d'Ivoire, sur la base d'un mode opératoire consensuellement établi. Le Comité a été informé de la préparation d'un programme humanitaire d'inscription à l'état civil des enfants de 0 à 13 ans de la part de la Communauté de Sant'Egidio."

[Click here to access the operating rules of the mobile courts](#)

UN Security Council, 13 October 2008, paras. 27-30

"It will be recalled that the Ouagadougou Agreement sought to accelerate the identification of those Ivorians who were eligible to vote. In that regard, the Agreement provided that all individuals who were on the voters' list in 2000 would be automatically eligible to receive national identity cards and voters' cards; the ongoing mobile courts would issue duplicate birth certificates to Ivorians aged 18 years and older, whose births had never been recorded in civil registers, to enable them to register to vote; and the civil registers that had been lost or destroyed during the conflict would be reconstituted to enable all other Ivorians who might not have been included on the 2000 voters' list to register to vote.

In my last report, I stated that the fourth round of the mobile court operations officially had ended on 15 May. Following the recommendation of the Permanent Consultative Framework meeting of 9 May, supplementary mobile courts were deployed on 27 August to issue duplicate birth certificates to applicants in areas that had not been adequately covered during the main operation. In that regard, the Ministry of Justice and Human Rights deployed 50 teams to 34 jurisdictions throughout the country. At the conclusion of the operation on 25 September, a total of 35,370 declaratory judgements in lieu of birth certificates had been issued. Of these, 32,239 were issued to Ivorian nationals and 3,131 to foreigners. The number of declaratory judgements issued in lieu of birth certificates since the mobile courts operations were launched in September 2007 stands at 750,000.

The identification of the population and the voter registration processes were launched on 15 September, subsequent to the promulgation of a decree on 14 September which stipulated that these two crucial processes would be conducted over a period of 45 days. As of 1 October, 5,849 Ivorians had been registered as voters. Although the pace of voter registration and identification is expected to increase as more teams are deployed throughout the country, it is unlikely that the process will be completed within the 45 days stipulated in the 14 September presidential decree.

The operation to reconstitute the civil registers and restore birth, marriage and death records that were lost or destroyed during the crisis was launched by the Minister of Justice on 15 May. The

initial stages of the exercise involved preparing an inventory of the existing as well as destroyed and lost civil registers. The United Nations Office of Project Services, funded by the European Union, is providing technical assistance to this operation. Article 2 of the presidential decree adopted on 14 September stipulates that registration on the voters' roll of those applicants affected by the reconstitution operation should not change the time frame of the publication of the provisional electoral list."

[Click here to access the standard procedures for the identification process](#)

Life for the undocumented is difficult (2008)

- Addressing documentation needs will contribute to addressing the root causes of the conflict
- Customary marriages and lack of birth certificates have contributed to create between three and five million undocumented people
- Lack of documentation prevents formal employment and access to education and fosters harassment by security forces
- The people of the sub-prefecture of Bloléquin in the West and Boniérédougou and Katiola in the North appear to be particularly affected by the lack of documentation

NRC, December 2008, Moyen Cavally et 18 Montagnes, p. 21:

"Le constat général est que la proportion des **sans documents** reste assez notable dans la majorité des localités. La sous-préfecture de Bloléquin se distingue avec les fréquences les plus élevées essentiellement rencontrées dans ses campements, à savoir N'tobéni1 (91%) ; Sakassou et Djèkro (80%) ; N'tobéni2 et Tiassalé (70%) ; Allakabo (60%) ; Douaipleu et Golou (33%). Mais il existe également à Zéo dans les localités de Diaplean (50%), Glodé (34%) et Zéo (29%) ; Pombly (36%) et Tacourably (31%) de la sous-préfecture de Kouibly ; Dainé (33%) et Sangouiné (31%) sont les plus affectés à Sangouiné, comme le sont également Goénié Tahouaké (54%) et Bouhobly (33%) à Diéouzon. De même, Klangbolably (25%) et le chef-lieu de Sémien (21%), Koulouan (50%), Phing Béoua (33%) et Péhé Zarabaon (27%) de Zou et Gbombélo1 (29%) et Yêgolé (25%) de Biankouma et, enfin, Zouata 2 (29%) de Facobly.*

been living for decades without documents; now it is even harder to get them. Everyone understands the problem cannot be solved in six months, but it is important to advance the operation.” Residents are expected to return to their place of birth, which is difficult while the conflict is unresolved.

Some government officials claim there are over three million undocumented (some estimates are as high as five million) West African immigrants (about half from Burkina Faso) living in the country with questionable eligibility for citizenship. Birth on Ivorian soil does not automatically confer citizenship, but only one parent must be a citizen for the child to become one. Blurring the issue further are family ties and intermarriage that stretch across borders. Most marriages in the country are customary and unregistered with the state, and many lack birth records, thus proving an Ivorian parent may be difficult. There may also be some migrants in Côte d’Ivoire who do not wish citizenship. The pilot program on documentation found that approximately 16 percent of those seeking nationality documentation were ineligible and thus at high risk of statelessness.

Life for the undocumented is difficult. Some displaced lost their documents during flight, others have had them confiscated. Still others lost their proof of citizenship when government buildings were destroyed during the conflict. Northerners complain they’ve been marginalized, denied jobs, citizenship and identity cards, and harassed because of their northern names. RI was told that the police and military personnel routinely abuse and harass those they deem non-citizens or to be northerners. One humanitarian worker reported, “Checkpoints make life almost impossible. Every couple of kilometers travelers assumed to be foreign have to get down from the vehicles and pay.” Another source said, “Individuals are harassed, sometimes taken to jail, and if they can’t pay, their documents may be taken away. They become stateless.” Lack of documentation prevents formal employment not only for individuals who were born in Côte d’Ivoire but also for those who are citizens of member countries of the Economic Community of West Africa, even though they have the right to live and work in any ECOWAS member country.”

United Nations, 30 November 2006, para. 42:

“[T]he lack of identity papers limits displaced persons’ access to social and educational services. For example, mothers describe how difficult it is to enrol their children in school without a birth certificate. Their lack of identity papers also makes them particularly vulnerable to racketeering and corruption.”

Overview of the documentation needs of IDPs in Abidjan and Grand Bassam (July 2007)

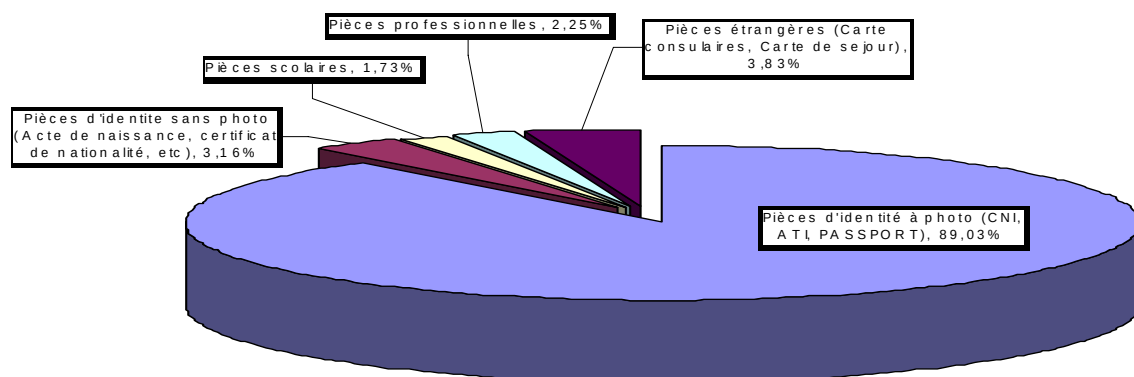
- Almost 8% of the heads of households interviewed declared not owning identity papers
- They come mainly from the regions of 18 Montagnes, Vallée du Bandama, Moyen Cavally, Lagunes and Savanes
- Conversely, around 10% of the members of the households do not have ID papers, for the majority children aged of less than 13 years

UNHCR/GoCdi, July 2007, pp. 12-13

"a) Chefs de ménages

10,478 (soit 92%) chefs de ménages possèdent divers documents d'identification, à savoir la carte nationale d'identité pour les nationaux ou des passeports, les cartes de séjour ou de résidence pour les étrangers ou bien les actes d'état civil tels que : actes de naissance, jugements supplétifs, certificat de nationalité, etc. 892 chefs de ménages, soit 7,8%, ne disposent pas de pièces d'état civil ou d'identité. Ils proviennent des zones centre, nord et ouest, notamment les 18 Montagnes, la Vallée du Bandama, le Moyen Cavally, les Lagunes et les Savanes. Tableau (g) en Annexe A donne un résumé par nationalité des chefs de ménages.

Graphique 13 : Répartition des ménages selon le type de pièce d'identité du chef de ménage



b) Les membres du ménage

Il ressort du résultat de la collecte d'informations que 7,322 (10,2%) personnes ne possèdent pas de document ; la situation se présente comme suit :

- Enfants de moins de 13 ans : 3,391 (18,2% des PDIs dans cette catégorie d'âge)
 - Enfants de 13 à 17 ans : 1,270 (12,4% des PDIs dans cette catégorie d'âge)
 - Adultes de plus de 18 ans : 2,661 (6,2% des PDIs dans cette catégorie d'âge)
- TOTAL : 7,322 (10,2% de la population total des PDIs)"

PROPERTY ISSUES

General

Land issues are at the heart of the displacement situation (2008)

- The complexity of land ownership is linked to both economic and demographic reasons and political manipulation
- A key to the economic development of the country between 1960 and 1980 was the availability of foreign labour, which was further encouraged by introducing liberal land ownership laws in this period, under which the land belonged to those cultivating it
- The economic recession at the end of the 1980s not only had an impact on general standards of living but also exacerbated tensions between locals, West African workers and internal economic migrants
- Several types of conflicts are linked to the land: conflicts among autochtones, intergenerational conflicts, conflicts between autochtones and migrant workers
- The 1998 Rural Land Act as amended in 2004 currently regulates land rights
- The authorities are responsible for recovering property illegally occupied and where possible provide compensation in consultation with IDPs
- In the western regions of Moyen Cavally and Dix-Huit Montagnes land conflicts are a recurrent problem for most of the villages, in particular around Logualé, Bangolo and Gueybly

UN OCHA/EU-Cote d'Ivoire, September 2007, pp. 123, 25-26, 121-122

"Les conflits récents entre communautés d'origines différentes sont les manifestations d'enjeux fonciers aussi anciens que les mouvements de colonisation agricole en Côte d'Ivoire.

Dans les années 50, suite aux mouvements massifs migratoires spontanés ou encouragés par une politique de développement de la culture du café-cacao, les mécontentements autochtones durent déjà être régulés par l'administration coloniale. A partir de l'indépendance, la systématisation de la mise en valeur des forêts au profit des agricultures pérennes s'est accompagnée d'appel à la main d'œuvre étrangère et de l'établissement massif de colons agricoles, baoulés ou voltaïques. Les conflits récurrents se manifestaient alors sur les droits fonciers et sur les modes de cohabitation entre les différentes communautés. Ces conflits fonciers évoluaient dans un contexte de « négociation conflictuelle permanente qui impliquait des groupes diversifiés et des coalitions variées, parties prenantes de ce processus : les autochtones cédant (...) de terre, les 'étrangers' accédant à celle-ci sous la protection (...) de l'administration, les agents locaux de l'Etat en relation de patronage (...) avec les migrants, (...), les 'cadres' et les politiciens (...) ».

Lors des années 60, l'interventionnisme de l'Etat dans la mise en valeur rationnelle et accélérée des terres s'est manifesté par le mot d'ordre lancé par Houphouët-Boigny en 1963 « La terre appartient à celui qui la met en valeur », qui a pris force de loi. Les colons agricoles purent bénéficier d'une protection administrative efficace pour accéder à la terre. Face à la pression administrative, les autochtones s'efforçaient de maintenir un minimum de maîtrise foncière sur les terres cédées aux étrangers « en préservant la fiction du tutorat traditionnel ». L'institution du tutorat est une convention qui donne à tout bénéficiaire d'une délégation de droits fonciers un devoir de reconnaissance à son « tuteur », se manifestant par des contres-prestations, telles que le reversement d'une partie de la production ou la participation aux dépenses exceptionnelles du tuteur, etc.

Dans un contexte d'imprécision des délimitations des terroirs, les autochtones pouvaient marquer leur maîtrise foncière vis-à-vis des villages voisins par ce processus d'aliénation de terres aux étrangers. Au cours des années 70, la pression foncière et le changement de génération ont transformé la relation de tutorat en une « entreprise de négociation permanente ». A partir des années 90, le tutorat a perdu de sa légitimité sous l'effet des revendications des jeunes, des citadins de retour au village et des cadres citadins.

• Les conflits entre autochtones

Les conflits entre les familles autochtones portent principalement sur les limites de leur domaine foncier. Ces problèmes sont particulièrement sérieux, car compte tenu de l'abondance de la ressource foncière aucune des familles n'a une idée précise des limites de l'étendue des terres. Ces problèmes de limite se posent presque toujours après contractualisation des terres pour leur exploitation par des « étrangers ». Le conflit s'étend alors aux exploitants et vise à déterminer les droits de tutorat et de rente des allogènes.

• Les conflits intergénérationnels au sein des familles autochtones

Ces conflits sont relatifs aux modalités d'association ou de prise en compte des jeunes dans le partage ou la réservation des ressources. Les jeunes se plaignent que leurs parents vendent ou donnent la terre aux étrangers sans les concerter ou qu'ils n'ont plus de terre parce que tout a été vendu.

• Les conflits entre autochtones et étrangers

L'ambiguïté des conventions passées entre tuteur et étranger entretient une situation conflictuelle permanente réglée à l'amiable par des compromis. La remise en question entre générations, les positions politiques et discours extrêmes de certains cadres, les revendications d'appropriation

de terres et le clivage ethnique de la logique de guerre ont exacerbé les tensions conduisant à des règlements violents, meurtres et déplacements de populations.

[...]

Les conflits autour du foncier sont de nature inter et intra-communautaires. Ils sont entretenus par l'ambiguïté des conventions coutumières, la remise en question de légitimité entre générations, les positions politiques et les discours extrêmes de certains cadres, les revendications d'appropriation de terres et les clivages ethniques exacerbés par la logique de guerre. Les structures de médiation et de gestion des crises tant coutumières qu'administratives sont insuffisantes.

[...]

Le foncier est régulièrement cité comme cause de la crise dans la région Ouest. D'aucuns considèrent que les conflits ne sont pas fonciers mais participent plutôt d'un banditisme de spoliation des terres et des récoltes. Certains préfets et sous-préfets en charge de suivre les règlements des conflits à l'Ouest concluent néanmoins que 90% des conflits sont d'origine foncière, mais concernent en majorité les familles autochtones et ne sont pas intercommunautaires. Enfin, d'autres estiment que ce ne sont que des problèmes de cohabitation, sur lesquels viennent se greffer secondairement le foncier. Néanmoins, lors de l'étude, les évaluations d'IRC et CARE menées dans les départements de Bangolo et Duékoué n'étaient pas encore dépouillées de façon à définir une typologie des conflits ou d'attribuer la part du foncier.

Une étude récente sur le foncier [[Modes d'accès à la terre, marchés fonciers, gouvernance et politiques foncières en Afrique de l'Ouest. J.-P. Chauveau et al. Avril 2006, IIED - CLAIMS Africa](#)] estime qu'«en Côte d'Ivoire, la dimension foncière de la crise en milieu rural est évidente. La crise de l'économie de plantation accentue les tensions entre exploitants, les planteurs burkinabés ayant souvent de meilleures performances, du fait de leur accès à une main-d'œuvre peu coûteuse, parfois de leur contrôle des filières. Rentrant au village en échec d'insertion urbaine, les jeunes autochtones de la zone forestière ont trouvé des terroirs saturés et remettent en cause les droits accordés aux 'étrangers' par leurs pères.(...) Les situations sur le terrain sont en pratique très contrastées. Aux situations 'd'arrachage ' de terre s'opposent des cas où les migrants n'ont pas été inquiétés. Par ailleurs, les migrants ivoiriens (Baoulés en particulier) sont fréquemment plus mal considérés que les Burkinabés, qui respectent davantage les normes locales et le devoir d'assistance à leur tuteur » (p.75)

En tout état de cause, les problèmes fonciers sont récurrents dans les régions et se posent en termes très diversifiés. Ils restent associés à des dynamiques conflictuelles qui débouchent régulièrement sur des morts d'homme et des rixes inter- communautaires suivies de déplacements de population et de la déstabilisation des systèmes de production. Par ailleurs, la méconnaissance des acteurs de terrain gouvernementaux ou des ONG du cadre foncier d'une part et le décalage entre le cadre légal foncier et les pratiques informelles de régulation locale d'autre part ne font qu'amplifier la confusion des situations conflictuelles."

IRIN, 13 November 2006

"Authorities this year completed a pilot programme to record rights to land after lengthy consultations with villagers, elders, chiefs and local officials. The consultations include reviewing existing territorial agreements between individuals, families and communities.

Competition for land and the lack of official identity documents are partly behind the political impasse that has divided Cote d'Ivoire since a failed coup in September 2002 triggered a brief civil war. The conflict resulted in the exodus of millions of West Africans who for years had considered Cote d'Ivoire their home after they or their parents immigrated to work the country's fertile land.

The government effort has aimed to clarify land tenure and safeguard it through formal registration. The boundaries of 105 villages in the southwestern cocoa belt and the southeast were mapped out and at least 20 land disputes have been resolved since 2004, analysts said.

"People were very happy. All the operations went well," said one analyst, speaking on condition of anonymity because of the sensitivity of land issues in Cote d'Ivoire. "Villagers and farmers are hungry for official documents and contracts. They need concrete and visible marks accepted by everyone because sometimes they simply don't know that this is not their parcel of land but the neighbour's one."

Door closes

Founding president Felix Houphouet-Boigny, who ruled Cote d'Ivoire for 33 years after independence from France, had decreed that "land belongs to the person who cultivates it" and encouraged West Africans from Mali, Burkina Faso, Niger and other neighbouring countries to farm in the fertile west and southwest of Cote d'Ivoire to help develop the country's economy.

As the population grew, swathes of virgin rainforest were slashed and burned to create more land to grow coffee, fruit and cocoa. The immigrants helped transform Cote d'Ivoire into the world's largest cocoa exporter and the most successful economy in West Africa.

But falling world prices for cocoa led to an economic downturn in the 1980s. Many Ivorian youths left the economic hub of Abidjan on the coast and returned to their villages only to find there was not enough farmland to go around.

Politicians, including former president Henri Konan Bedie, began talking of "Ivoirite" or "Ivorianness" after Houphouet-Boigny's death in 1993. Then a 1998 law recognising customary land rights in Cote d'Ivoire effectively ended the country's open-door immigration policy by preventing migrants and their offspring from having land rights.

The introduction of nationalism, coupled with the country's economic problems and competition for land, triggered attacks on West African migrants. "The Ivorian political context favours the explosion of [land] conflicts, feeds them and prevents their resolution," one Abidjan-based analyst said."

UN Human Rights Council, 18 October 2006, paras. 58-60

"The problems related to land in rural areas are one of the major challenges facing the Ivorian authorities. This is a complex issue and raises questions about the scarcity of arable land, demographic pressures, the economic crisis that dates from the beginning of the 1980s following the collapse of coffee and cocoa process on the world market, and the exploitation of the issue for political ends.

Rural land is governed by the 1998 Rural Land Act, the prime purpose of which was to clarify land rights by providing a legal framework for them and to modernize customary land rights. Under article 1 of the Act, only the State, public authorities and individual Côte d'Ivoire nationals can own rural land. This provision represents a break with the past policy of President Houphouet-Boigny, under which the land belonged to the person cultivating it. Against a background of political tension linked to the power struggle, the Act aroused a sense of injustice in many non-Ivorian owners, some of whom had been cultivating the land for several generations. They were especially worried that their non-Ivorian descendants would not be able to become owners of the land. In response to their fears, and in implementation of the Linas-Marcoussis Agreement, the 1998 Act was modified by a law dated 14 August 2004, under which rights to rural land ownership acquired before 2004 can be transmitted to descendants. The owners concerned by this derogation must be on a list drawn up by the Council of Ministers. At a time when the question of

identifying Ivorian citizens is at the heart of the discussions, the Representative of the Secretary-General is concerned about the risks that the law will either not be applied or will be applied in a discriminatory fashion.

The authorities have a responsibility to help displaced persons recover their property and possessions and, where possible, to provide appropriate compensation or another form of just reparation (Principle 29). The process of adopting legislation to provide a framework for the provision of such compensation should be speeded up. In cases where the property of displaced persons is occupied by unauthorized individuals- especially in the north- the necessary steps should be taken to enable the property to be returned to them. In this connection, the Representative of the Secretary-General has taken note of the communiqué from the secretary-general of the Forces Nouvelles announcing the establishment of a special committee to address this question in territory under the control of the Forces Nouvelles. All these matters, like every other issue related to the situation of displaced people, should be addressed in consultation with the people most affected- displaced persons themselves."

In the west

NRC, September 2008/Moyen Cavally et Dix-Huit Montagnes, pp. 26-27

"Les **disputes de propriétés et les conflits fonciers** semblent être des questions récurrentes pour la majorité des localités. D'abord, la question des **disputes de propriété** porte notamment sur l'occupation illégale de certaines concessions, telles que les maisons ou les appartements. Ces disputes sont particulièrement étendues à Bahé-Sebon de Gueyebly, avec 40% de mention. Les proportions sont aussi élevées parfois dans d'autres localités de Gueyebly et Duékoué, mais celles-ci incluent la notion de conflits fonciers qui sera analysée par la suite.

Concernant la question des **conflits fonciers**, les fréquences de mention commencent à partir de 54% (43% si l'on considère les localités prises en compte par l'ancienne interprétation) pour l'ensemble des localités, mais atteignent souvent entre 90 et 100% de mention telles qu'à Dinegouiné, Soapieu Dazeré, Yappleu, Koulinlé (100% chacune), Gouekangouiné (94%), Dioulé (93%), Gbloalé, Banlé (92% chacune), et Kpoagouiné (91%), tous de Logoualé, Beon-Gohouo (93%), Guehouo (92%) de Bangolo, Delobly (100%) de Gueyebly. "

The 1998 Rural Land Act is difficult to apply in the context of IDPs' return (2007)

- The legal framework regulating land issues in Cote d'Ivoire is composed of the 1998 Rural Land Act, promulgated in January 1999 and three decrees and fifteen implementation order adopted between 200 and 2002

- The law reserves land ownership to Ivorian nationals
- The 1998 law foresees a period of 10 years since its entry into force (January 2009) during which all land-rights holders (excluding tenant farming methods) have to have their rights recognized through a land certificate, be it either individual or collective
- Passed this deadline, the land is registered in the name of the State and the farmer becomes a tenant on the land. After a second period of three years, all Ivorians holding land certificates must apply for individual land registration resulting in the issuing of definitive private land titles
- The 1998 Rural Land Act is largely not known and not applied in the West
- Since 2002, pilot projects to delimitate villages' land and to establish land certificates were launched but the full implementation of the law will require several more years
- The implementation of the 1998 land reform suffers from a lack of human and material resources
- The peace protocols established in the context of IDPs' return largely ignore the 1998 law and risk conflicting with it once this will be applied
- The modalities for the issuing of land certificates are not adapted to the situation of returning IDPs

UN OCHA/EU-Cote d'Ivoire, September 2007, pp. 26, 122

"Les problèmes de la question foncière se déclinent sous plusieurs formes. Le cadre juridique est encore méconnu et non appliqué. Aujourd'hui quelques avancées ont été réalisées, mais la mise à disposition des titres fonciers réclame encore plusieurs années. Depuis 2002, la mise en place du dispositif opérationnel et des opérations tests de délimitation des terroirs villageois et d'établissement de certificat foncier ont été initiées. Des comités sous-préfectoraux et villageois ont été constitués seulement dans une vingtaine de départements et une centaine de délimitations de terroirs ont été réalisées. La mise en application de la loi est encore quasi-inexistante et souffre d'une insuffisance en moyen humain et équipement et de l'absence de plan cadastral.

La loi foncière et les procédures d'obtention du Certificat Foncier ne sont pas connues, tant au niveau des services techniques comme l'ANADER, qu'au niveau des collectivités territoriales et locales et des paysans. Les agents de terrain des ONG impliqués dans la gestion des conflits et la cohésion sociale ignorent également le contenu de la loi. Les protocoles de paix établis entre les autochtones et les «étrangers» dans le cadre des retours des PDI ignorent tout de la loi foncière. Ils risquent d'être confligènes à moyen terme lors de l'application de la loi.

Les modalités d'établissement de Certificats Fonciers sont inadaptées à la situation de retour actuel des PDI. Elles souffrent de manque de personnel, de lourdeur administrative, de l'absence de relevé et de plan cadastral. Les délais de mise en oeuvre ne répondent pas aux priorités d'apaisement et de stabilisation de la gestion foncière à l'ouest.

[...]

Le cadre réglementaire et juridique du foncier rural existe à travers la loi relative au Domaine Foncier Rural votée en 1998 et promulguée en janvier 1999. En application à cette loi, trois décrets ont été pris en 1999 et quinze arrêtés d'application entre 2000 et 2002.

«La loi réserve la propriété foncière rurale aux Ivoiriens. Elle prévoit une première phase de dix ans (après sa promulgation, soit la limite de janvier 2009) durant laquelle tout détenteur de droits fonciers impliquant une appropriation de la terre (à l'exclusion des modes de faire-valoir indirects) doit faire reconnaître ses droits pour obtenir un certificat foncier (individuel ou collectif). Passé ce délai, la terre est immatriculée au nom de l'Etat et l'exploitant en devient le locataire. Au terme d'une seconde période de trois ans, les certificats fonciers détenus par des Ivoiriens doivent donner lieu à une immatriculation individuelle et aboutir à la délivrance d'un titre de propriété privée définitif. Les exploitants non-ivoiriens ne peuvent aspirer qu'à une promesse de bail emphytéotique, soit auprès des titulaires autochtones de certificats fonciers, au cas où ceux-ci les auraient fait figurer parmi les « occupants de bonne foi », soit auprès de l'Etat si la terre est immatriculée au nom de celui-ci.»

La loi et décrets prévoient que l'établissement du Certificat Foncier passe par une enquête impliquant les autorités sous-préfectorales et coutumières, le comité de gestion du foncier rural sous-préfectoral, le comité villageois de gestion du foncier rural, et autres agents administratifs, tels qu'un commissaire enquêteur. Son établissement requiert également un relevé des parcelles, le levé de plan du bien foncier et la pose de délimitation physique par layonnage en accord avec les membres de l'équipe d'enquête.

[Click here to access the Rural Land Act, law n.98-750 of 23 December 1998](#)

[Click here to access the decrees regarding the implementation of the 1998 land reform](#)

Aujourd'hui, quelques avancées ont été réalisées, mais la mise à disposition des titres fonciers réclame encore plusieurs années. Depuis 2002, la mise en place du dispositif opérationnel et des opérations-tests de délimitation des terroirs villageois et d'établissement de certificat foncier ont été initiées. Des comités sous-préfectoraux et villageois ont seulement été constitués dans une vingtaine de départements et une centaine de délimitations de terroirs ont été réalisées. La mise en application de la loi est encore quasi inexistante et souffre d'une insuffisance en moyen humain et équipement et de l'absence de plan cadastral.

Le Plan Foncier Rural a tenté des expériences de recensement du parcellaire, mais ce plan ne couvre pas encore le territoire. Des projets de délimitation des parcelles et de terroirs soutenus par l'UE sont en cours sur les axes Tabou- San Pedro- Sassandra et Daloa."

Property restitution poses problems in the North (2007)

- The conflict has engendered different types of damage including to property
- Most of the damage concerns property and/or goods in the areas of origin or habitual residence of the IDPs
- Property restitution is particularly difficult in northern Cote d'Ivoire where rebels occupy the houses of the IDPs

UNHCR/GoCdi, July 2007

"La crise a occasionné des dommages physiques, moraux, psychologiques et matériels. Les principaux dommages subis sont le traumatisme et les violences physiques (les agressions physiques, et les tortures), ainsi que la destruction des biens, notamment les maisons d'habitation. Des biens ont été confisqués, notamment les maisons, ateliers et voitures principalement aux ressortissants togolais, ivoiriens, béninois et nigériens (Tableau (h) dans Annexe A).

Il est important de reconnaître que la plupart de ces actes ont été commis dans les zones d'origine ou de résidence habituelle des déplacés. En comparaison, les dommages subis dans les zones d'accueil ont été négligeables, ce qui amène à penser que les déplacés y ont rencontré beaucoup moins de problèmes de protection."

IASC, 15 August 2007

"The North is characterised by marginalisation, an 80% unemployment rate and tensions in the population. Groups or whole communities that fled during the crisis are now coming back, and in particular women have reported cases of assaults by returnees. Property restitution poses another problem, as many rebels have occupied the houses of the fled IDPs, who do not dare claim their property back upon their return. The Ministry of Reconciliation, which is in charge of IDP related issues, has set up an antenna, and with the current redeployment of the administration in the North things are expected to move forward."

The case of the protected forests in the West (2007)

- Parts of reserved forests in the West were sold to migrant workers with the complicity of traditional chiefs and local authorities
- Tensions between local groups and migrant workers started arising in 1998 and with the war in 2002 people were forced to abandon their plantations and displaced
- In turn, IDPs from the Zou settled on the plantations previously vacated

OECD, February 2007, p. 41

"The colonial State had made forest exports an economic priority. The forest decree of 1912 confined indigenous farming activities and reserved most of the forest for colonial exploitation. The protection of reserved forests (6,915,000 ha in 1949) was the principal means of expropriating customary lands. Until the 1950s, indigenous entrepreneurs were excluded from the sector by colonists. They consequently invested in plantation farming, thereby contributing to

deforestation. Protecting the development of indigenous family plantation farming was a far more important political challenge for african political elites. From independence onwards, a large part of the reserved forest was returned to farming purposes.

State permanent property includes 202 reserved forests, 8 national parks and 3 reserves. The only land open for exploitation is the forest found south of the eighth parallel (34% of the area of the country). Although forest exploitation provides a few direct jobs, a certain number of young people are nevertheless used as "coxers" to mark the valuable trees situated in cultivated areas. Obtaining concessions, permits and preferential favours encourages corruption, while "cleaning" reserved forests of their illegal farmers gives rise to targeted blitz operations on small farmers. The implementation of a participative "farmers-forest" co-management policy for progressively managing the scattering of illegal farmers has not yielded conclusive results.

[...]

The war economy [...] encourages mining-type exploitation of forest resources. On the government side, the search for a rapid means of financing the war effort has led the para-State company responsible for the exploitation of the forests to remove protection from reserved forests since 2003. In the far west, war chiefs and also young militiamen have turned to forest exploitation, especially in the Guiglo region. Intercommunity violence seems to be fuelled by the pillaging of a few reserved forests and parks, with the complicity of forest companies and certain officials of the army (the reserved forests of Scio and Goin Dédé in the Guiglo department, the Mount Peko national park in the Bangolo department). The Forces Nouvelles fighters are also exploiting resources in the protected northern area, with the complicity of forest companies established in the area under government control."

In the Moyen Cavally region, migrant workers coming from centre-west Cote d'Ivoire and West African countries (in particular Burkina Faso) were sold parcels of land in the reserved forests that they quickly transformed into coffee or cocoa plantations. The majority of IDPs state that it is since 1998 that problems arose. With the eruption of the conflict in 2002, more and more people were displaced and forced to abandon their plantations in the reserved forests. IDPs from the Zou, however, settled in turn on these plantations vacated by their owners.

UN OCHA/EU-Cote d'Ivoire, September 2007, pp. 124-125

"Avant la guerre, des populations « étrangères » ont occupé les forêts classées, comme la forêt d'IFA au Sud de Bloléquin, pour y ouvrir de grandes plantations. Elles y sont demeurées jusqu'à ce que la guerre les conduise à les quitter. Ces plantations ont été reprises par des autochtones PDI venant du Zou. L'expulsion de ces PDI du Zou par les autorités préfectorales - expulsion qui s'inscrit dans le cadre des retours actuels – restent incomprises par les jeunes autochtones, qui n'admettent pas pourquoi l'administration expulse leurs « frères » pour y faire retourner les «étrangers». Pour eux, l'interdiction d'occupation doit être égale pour tous."

PATTERNS OF RETURN AND RESETTLEMENT

General

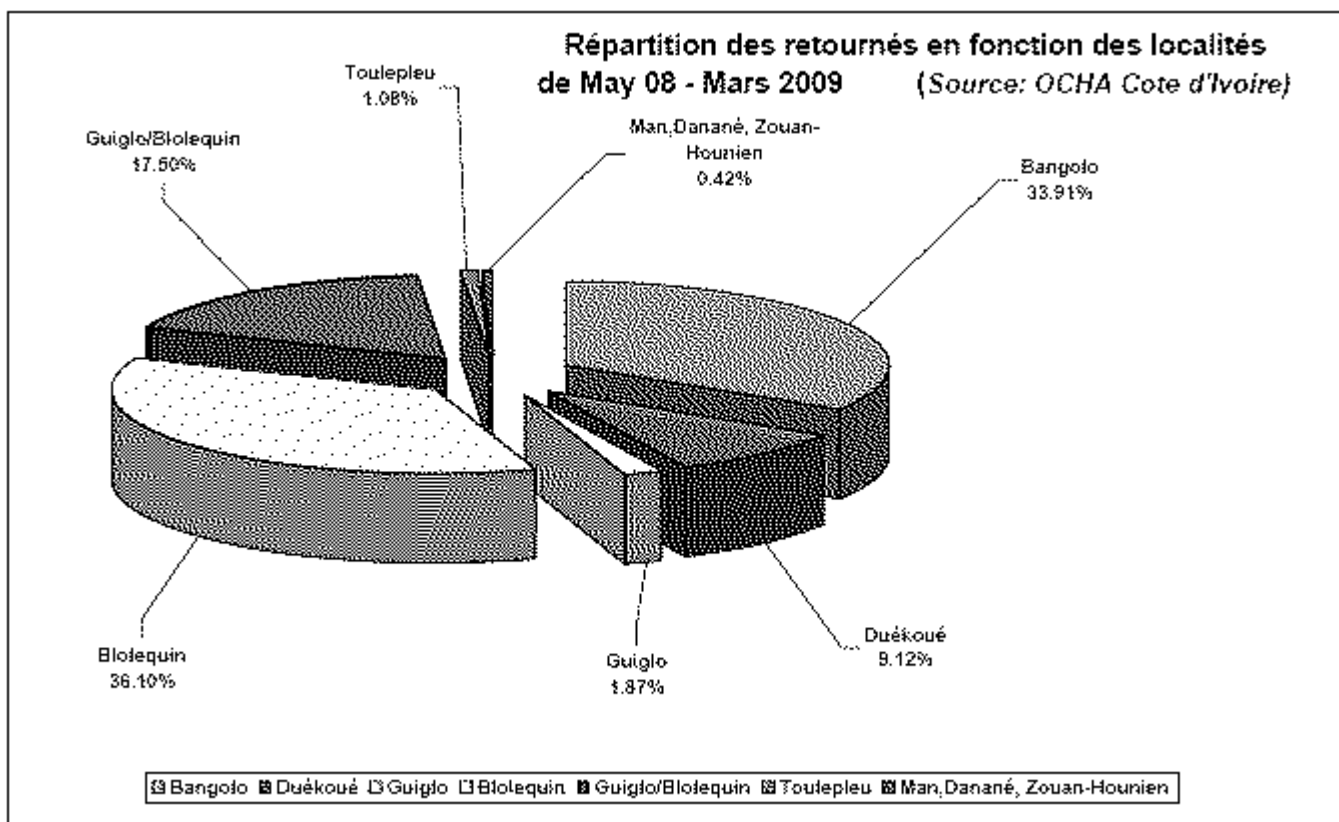
Overview of returns (April 2009)

- In the course of 2008 and at the beginning of 2009, the spontaneous return of IDPs intensified reaching some 76,000 people only in the western regions
- As many as 7580 people have spontaneously returned on the axis Guiglo - Toulepleu
- To allow IDPs from the Centre d'Accueil et de Transit des Déplacés (CATD) to return, the IDPs from the Zou occupying their plantations were displaced again and were waiting to return. The CATD closed on 31 July 2008 although a residual caseload of IDPs still remained onsite
- To facilitate returns, government agencies and humanitarian actors have focused on reconciliation activities
- Given the important number of spontaneous returns, follow-up on social cohesion in the areas of return, however, is not always included in the plans of the humanitarian agencies

UN Security Council, 13 April 2009, para. 24:

"While an estimated 76,671 internally displaced persons have voluntarily returned to their areas of origin, land disputes and an overall weak social fabric pose a threat to the sustained pace of return and resettlement of the remaining internally displaced in the west. Meanwhile, critical humanitarian needs, requiring an overall \$37 million, face considerable funding shortfalls. The Central Emergency Response Fund allocated \$2 million towards meeting humanitarian needs arising from return of internally displaced persons and reintegration processes and towards activities aimed at addressing malnutrition and food insecurity in the north."

UN OCHA, April 2009:



UN Security Council, 13 October 2008, para. 12:

"The general humanitarian situation in the country continued to improve during the reporting period, owing in part to the continued positive evolution of the peace process as well as the ongoing resettlement of internally displaced persons. In a major breakthrough, on 31 July the Humanitarian Coordinator in Côte d'Ivoire officially closed the transit centre for displaced persons in Guiglo."

UNOCI, 6 August 2008:

"Le Représentant Spécial adjoint du Secrétaire général des Nations Unies pour la Côte d'Ivoire et Coordonnateur humanitaire du système des Nations unies, Georg Charpentier a effectué, lundi, une visite aux autorités et aux déplacés internes, pour discuter avec eux suite à la fermeture du Centre d'Accueil Temporaire des Déplacés (CATD) de Guiglo."

Lors de la rencontre avec le Préfet de Région, le colonel Danon Djédjé et ses collaborateurs, M. Charpentier a expliqué que la fermeture du CATD résulte des progrès réalisés depuis la signature de l'Accord Politique de Ouagadougou (APO). Cette fermeture fait également suite, a-t-il indiqué, aux engagements pris par les différentes communautés lors d'un atelier tenu à Bloléquin, le 22 mai 2008, pour le retour des déplacés et intervient conformément au chronogramme prévu pour les opérations de retour des déplacés."

UN Security Council, 10 July 2008, paras. 47-48:

"The spontaneous return of displaced persons continued during the period under review. Since the signing of the Ouagadougou Agreement and as a result of strengthened coordination between authorities and humanitarian actors in the western area of Côte d'Ivoire, 61,432 internally displaced persons have returned to their original homes. Humanitarian assistance and protection will continue to be provided to these populations."

To address tensions between the host community in Bloléquin and returning internally displaced persons, the Minister of National Reconciliation and the Minister of Solidarity and War Victims, together with the United Nations Humanitarian Coordinator in Côte d'Ivoire, organized a workshop on 23 May to develop proposals to facilitate the return and reintegration of displaced persons into their communities of origin. Participants recommended that the Government rehabilitate the existing social infrastructure and provide income-generating opportunities for youth. "

UN OCHA/EU-Cote d'Ivoire, September 2007, pp. 28-30:

"Les principales cibles d'attention sur les PDI sont celles en provenance des régions de l'axe Guiglo-Bloléquin-Toulepleu du Moyen-Cavally et de l'ex-zone de confiance (Zou, Diéouzon et Guéyibly).

2.7.1 Les retours des PDI du Moyen-Cavally (axe Guiglo-Toulepleu) : Il s'agit de populations allogènes et étrangères. À partir de la réinstallation d'un climat de paix à l'issue des accords de Ouagadougou, l'option a été prise par le IAHCC de sécuriser les PDI dans le CATD et d'encourager leur retour. Après avoir respecté les précautions préalables (visites « Go & See », processus de rapprochement communautaire, établissement de comité de paix), les retours se sont amorcés. Fin juin 2007, six cantons des départements de Bolequin et Toulepleu ont déjà accueilli 1359 personnes. OIM a organisé de nouveaux retours vers d'autres cantons dans la perspective de la fermeture du CATD programmée en juillet 2007. En juin 2007, ces actions de retour rencontraient les contraintes et limites principales suivantes.

- D'importants retours spontanés sur l'axe Guiglo-Toulepleu: Des effectifs de l'ordre de 7580 personnes étaient retournées spontanément dans le sillage des retours organisés du CATD. Elles provenaient de groupes en attente dans les villes de la région ou de retournés du Burkina Faso. Ces populations n'étaient pas prises en compte dans les estimations des besoins par les acteurs humanitaires.

- De nouvelles populations en phase de transit: Pour permettre aux PDI du CATD de réintégrer leurs plantations, l'administration militaire a poussé à la libération de plantations occupées par les déplacés du Zou, avec l'accord de leurs frères d'accueil guérés. Ces expulsions engendrent de nouvelles populations déplacées en attente de retour et installées en familles d'accueil sur l'axe Guiglo-Bolequin. Ces PDI ne bénéficiaient ni d'un appui sur place, ni d'un programme de retour. Elles étaient estimées fin juin 2007 à 700 personnes et pourront voir leur effectif s'accroître au gré des expulsions des plantations.

- Le manque de suivi et d'encadrement de la phase post-retour: Du fait du nombre important de retours spontanés, le suivi de la cohésion sociale en situation de post-retour échappe à l'encadrement prévu pour les effectifs d'OIM. Les renforts attendus des agences en termes d'appui à la cohésion sociale, de suivi de la fonctionnalité des infrastructures socio-collectives dans les zones d'accueil font encore défaut hormis les appuis combinés FAO/PAM et les activités «Vivres contre Travail » du PAM.

- L'établissement de protocoles de paix ou de protocoles conligènes ? : Des protocoles de paix contraires aux droits humains selon les Principes Directeurs Relatifs aux PDI ont été signés par les autochtones et les PDI étrangères comme manifestes de paix. Ces protocoles ne prennent pas en compte la loi foncière nationale. Ils sont en réalité une nouvelle convention foncière et du travail qui autorise les autochtones guérés à s'accaparer les biens et le travail des retournés.

2.7.2 Les retours dans l'ex-zone de confiance (Zou, Diéouzon, Guéyibly)

Au mois de Décembre 2006, on dénombrait environ 78.000 déplacés de la zone de confiance à Duékoué, Guiglo et Bolequin. Ces PDI autochtones proviennent notamment du Zou, Diéouzon et

Guéyibly. Ces populations souhaitent retourner chez elles tout en exigeant le retour à la sécurité, la réhabilitation des infrastructures collectives et individuelles, la récupération de leurs forêts et de leurs plantations accaparées par les résidents et les nouveaux «étrangers».

Les programmes des ONG IRC et CARE, en charge de la préparation au retour des PDI ont été amorcés. En juin 2007, si les diagnostics des conflits sociaux et des besoins en réhabilitation des infrastructures ainsi que la mise en place des comités de paix étaient en partie achevées, acteurs humanitaires et populations s'accordaient pour conclure que l'insécurité et l'absence des autorités, de l'administration, de la police ne permettaient pas d'encourager les populations au retour. Ces activités présentaient certaines limites:

- Le rapprochement entre communautés n'incluait pas les PDI en attente dans le Moyen-Cavally, dont les moyens sont limités pour s'engager à explorer leurs villages. Les comités de paix risquent de devoir être reconstitués au retour de ces PDI dans leurs villages d'origine.
- Les délais nécessaires de traitement des résultats des diagnostics sociaux qui risquent de rendre caduques des informations dans une situation très labile.
- L'absence de plan de contingence des humanitaires d'accompagnement au retour en cas de restauration subite des autorités et de la sécurité dans le Zou (définition des besoins, dénombrement, apport de vivres, transport, appuis sanitaires, apport de kits, etc.)
- Le manque de concertation sur le terrain entre tous les acteurs, y compris sur les PDI et les autorités préfectorales, pour définir les conditions au retour cadrant avec les Principes Directeurs."

[Click here for detailed statistics compiled by OCHA on numbers of returns in the Zou as of February 2008](#)

[Click here for a compilation of statistics on return movements in the Moyen Cavally and ex-zone of confidence as of April 2009](#)

Return processes (January 2009)

- Many return movements have been spontaneous but humanitarian agencies have supported some of them
- IDP focal points and IDP leaders have been involved in "go-and-see" visits and in informing the displaced communities of the possibilities to return

UN OCHA, 22 January 2009, p. 12:

"In June 2008, a workshop in Bloléquin provided an opportunity to address some of the issues that were constraining the returns process. After major obstacles were addressed during the workshop, some developments in the returns process were achieved, including the closure of the International Organization for Migration (IOM)-administered CATD camp in Guiglo on 31 July 2008. In September 2008 the estimated number of returnees to the west, according to OCHA figures, was 69,933 people.

However, it is worth noting that, some setbacks have been experienced during IDPs returns. In Zéaglo there were clashes between returnees and host communities over property rights in the beginning of 2008, which prompted the secondary displacement of some IDPs. There were also ambushes and assaults, including murders and rape, targeting returnees, which has disrupted the returns process.

The total number of IDPs living on the Guiglo-Bloléquin axis had reached 7,829 persons from Zou and Diéouzon according to the International Rescue Committee's (IRC) "Return and reintegration Programme" figures and IOM. Wherein an around Guiglo, IDPs now have one focal point in each place, who is assisted by IDPs leaders. A total of five IDPs focal points (two in the Department of Guiglo, two in the Department of Bloléquin and one in the Department of Duékoué) and 16 IDPs leaders (six in the Department of Guiglo, eight in the Department of Bloléquin and two in the Department of Duékoué) were trained on basic protection and techniques to enhance social cohesion. These focal points have enhanced local decision-making processes and they are in frequent contact with OCHA and other humanitarian actors to increase IDPs' participation in dialogues on humanitarian needs. The IDPs focal points and leaders took part in an IRC-organised Round Table held in Abidjan in February 2008 which addressed the issue of IDPs in the area of Zou, supported by UNDP, OCHA, and the Ministry of Solidarity and Victims of War.

The IDPs leaders also supported activities related to information sharing on areas of return in adherence to the guiding principles on internal displacement. With the leaders, IRC initiated a Go & See Visit in Bloléquin in March 2008. This provided an opportunity for six communities (three *autochtones*, two *hallogènes*, one *allochtone*) from Zou (place of origin) to travel to Bloléquin (place of displacement) to meet with IDPs from Zou and exchange information on living conditions and the situation in their places of origin. The exchanges have helped IDPs make decisions about returning, based on objective and reliable information."

Summary of data on IDPs' wishes to return or resettle (September 2008)

- In Abidjan, IDPs are more likely to be wanting to return to their region of origin than non-IDPs. Only a minority of IDPs, in fact would like remain where they are or move somewhere else in the city
- Results from a survey conducted in 2005 found that the majority of the IDPs planned on going back to their homes once the situation will be normalized
- Wishes to return changed according to area of origin with only a minority of men from the north wanting to return
- Support in material resources constitutes an extra incitement for IDPs to return

Tufts University/IDMC, September 2008, pp- 39-40

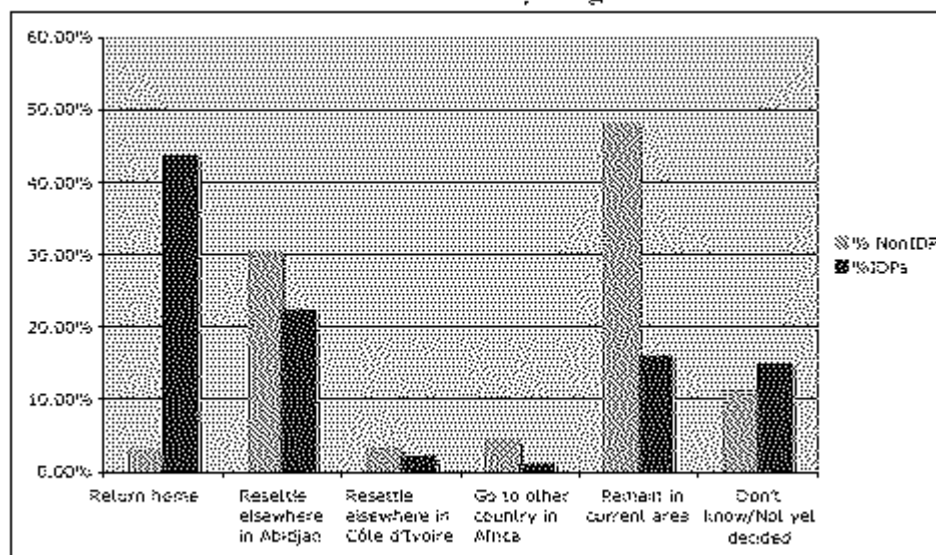
"We asked respondents whether they and their families hoped to return to their place of habitual residence, resettle elsewhere in the country or remain in Abidjan. As shown in Table 5.7 and Chart 5.7, there were several significant differences between IDPs and non-IDPs. IDPs were more likely to want to return home than non-IDPs (44% vs. 4%), and less likely to want to remain where they were in Abidjan. Whereas 77% of non-IDPs wanted either to remain where they were or move elsewhere in Abidjan, this was the case for only 34% of IDPs. Of all our respondents only two (less than 1%) said they wanted to migrate to North America or Europe.

Table 3.7 Intentions about future mobility/migration

	Remain in current area Abidjan	Settle elsewhere in Abidjan	Return home	Settle elsewhere in Côte d'Ivoire	Go to another country in Africa	Go to US or Eur	Don't Know
NonIDP	48%	30%	4%	3%	4%	<1%	11%
IDP	16%	22%	44%	2%	1%	0	15%

Pearson Chi = 226.793, signif 0.00

Chart 3.7 Intentions about future mobility/migration



ENSEA, March 2006

“Volonté de retour des PDIs vers leurs lieux d’origine et les raisons de leur sédentarisation dans leur lieu de résidence actuelle.

En règle générale, les déplacés ne sont pas retournés dans leur zone de résidence d’avant la crise pendant toute la durée de celle-ci. C’est le cas de 8 personnes déplacées sur 10. Aussi, 83% des déplacés qui ont refusé de faire un tel voyage ont avancé la raison de l’insécurité qui règne toujours dans le pays.

La majorité des PDIs (72%) font le projet de quitter les ménages d’accueil et de retourner dans leur zone de provenance à la fin de la crise, après que la situation se soit complètement normalisée. Cependant, cette situation d’ensemble n’est pas uniforme et change parfois considérablement selon la zone de provenance du déplacé. Ainsi, les hommes déplacés venus de la zone nord qui souhaitent y retourner ne sont que 17 % alors que, la proportion de femmes venant de cette zone et ayant manifesté le même désir s’élève à 43 %. Ce sont les proportions les plus faibles des volontés de retour exprimées. Les réfugiés en provenance de la Vallée du Bandama manifestent également une assez forte réticence à retourner dans leur zone de départ : 46 % des hommes et 57 % des femmes seulement ont exprimé le désir de retour. En revanche, plus de 4 personnes sur 5 souhaitent retourner lorsqu’elles proviennent du Haut Sassandra ou de l’Ouest (82 % et 77 % respectivement au niveau des hommes, 74 % et 77 % respectivement pour les femmes).

Une proportion significative de 13 % des déplacés interrogés (autant chez les hommes qu'au niveau des femmes) refuse obstinément le retour dans leur ancienne localité de résidence quelle que soit l'incitation.

Des attentes matérielles ont été avancées comme incitation pour le retour dans leurs localités d'origine par certaines PDIs. Elles souhaitent une aide au retour et d'autres pensent que la réhabilitation des logements endommagés et leur évacuation seraient les conditions préalables. Les premiers constituent 14 % de l'ensemble et les seconds 10%."

Tensions remain high between returning IDPs and local communities in western Cote d'Ivoire (2008)

- In western Cote d'Ivoire, many local communities have been frightened by the return of IDPs due to continuing ethnic tensions and violence, and this has itself caused further displacement
- Access to land has been one of the major causes of friction between returning IDPs and local communities
- In some cases IDPs have been unwilling to return before armed elements were disarmed
- Efforts for conflict resolution and reconciliation have been taken place in the villages at the initiative of both the government and the international community

UN OCHA, 28 April 2008

"On the Humanitarian Coordinator's request, the Ministers of National Reconciliation and Solidarity and War Victims hosted a meeting on 15 April to discuss the latest developments related to difficulties affecting peace and reconciliation among local communities along the Guiglo – Bloléquin axis, and prospects for durable solutions, particularly in Zeaglo area. The meeting agreed on the need to organize a meeting in Bloléquin during May 2008 with the participation of concerned parties, to try to resolve the remaining obstacles affecting the access of IDP returnees to their plantations, which forced some of them to return to their previous Transit Centre (CATD) in Guiglo. Community leaders, the youth, humanitarian actors and donor representatives will attend the gathering, which will be jointly organized by the above mentioned ministers, with support from the UN.

Authorities in Bloléquin held meetings on 12 and 13 April 2008 and discussed the issue of allowing returnees to access their farms at Zéaglo with the youth and traditional chiefs of Beoué, Douandrou, Pohan, Ziglo, Zéaglo, Dahandrou and the adjacent settlements. An agreement in principle was reached, although the youth maintained their position, denying non-autochthon communities returning in the area to access their farms."

UN OCHA, 10 September 2004

"There has been limited movement of IDPs, the majority of which are living with host families in the South of the country. It has been estimated that there are at least a quarter of a million IDPs living in Abidjan. Some movement has been noted in the western part of the country, however this mostly concerns farmers who have returned to cultivate their crops. The environment in the west remains very hostile towards IDPs. There has been virtually no return of civil servants to the Northern part of the country, and they remain reluctant to return before the DDR process.

On the 13th of August a group of Baoulé, including men and women attempting to return to their homes in and around Bloléquin, was held up in the village of Kaadé, where they were physically aggressed, stripped of their belongings and denied the possibility to pass through the area. They were also prevented access the following day even though they had received passes from the

local authorities and were escorted by gendarmes. The problem of denied access has also been encountered by humanitarian agencies, which have been denied access to vulnerable populations including IDPs North of Bolequin."

UN OCHA, 26 April 2004

"In the western Côte d'Ivoire tensions are heightened due to the premature return of IDPs to their areas of residence. Humanitarian organisations are receiving mixed reports from IDPs and host villages regarding their return. It is clear that while some communities and IDPs may be ready to be reunited others are not.

In the classified Forest Scio, situated northwest of Guiglo, the return of IDPs to the campement of CIB in the forest of Scio led to violent clashes and the death of one Guéré, who was decapitated in early April. Due to this incidence and a general feeling of insecurity among the local inhabitants, many have chosen to leave the village. It is estimated that since the 2nd April 2004 a total of 321 IDPs have returned to CIB. OCHA and IOM will conduct a mission to this area to further investigate the situation.

The conflict between the of Dozos from Duoekpé and the Guéré from Diéouzon (26km northeast of Bangolo), on the 20th April has led to the displacement of 357 villagers of the Guéré ethnic group from Diéouzon and 158 from Duoekpé, who have fled to Bangolo.

LICORNE has been prevented from conducting its routine patrols in the Bolequin. On the 19th April, LICORNE was held back by a barrage set-up by groups of young men, accusing LICORNE of facilitating and organising the " clandestine" return of Burkinabé. Also in Bolequin, between Guiglo and Toulepleu, it has been reported that, the local population are alarmed and frightened by the return of IDPs and have sought shelter on the main road. Many villagers are still against the return of immigrants and intercommunity tensions are still very high. It is clear that serious efforts for conflict resolution and reconciliation are needed and that villagers are unable to initiate this process themselves. On the 23rd April the Minister of National Reconciliation, Professor Danon Djedje, visited Bolequin and Toulepleu in order to start the process of peace and reconciliation by establishing the local reconciliation committees.

Tuteurs (land owners) are coming to the camps in Nicla, Guiglo to encourage the return of IDPs as they urgently need the labour force for the start of the agricultural season. However, as mentioned earlier, many local communities are not yet ready for their return, likewise not all IDPs are not willing to return before the disarmament of armed elements begins.

In Man 1486 IDPs (173 families) have registered with the committee for IDPs to facilitate their return to their areas of residence, which include Danané, Bin-Houye, Zouan-Houien and Mahapleu. Many of these families expressed a wish to return to their homes in order to commence this year's agricultural season. The humanitarian community have been contacted to provide support for their return.

Number of IDPs Wanting to Leave Man and Return to Areas of Residence:

Area of residence	No. IDPs	Families
Danané	472	58
Bin-Houye	259	26
Zouan-Hounien	594	70
Mahapleu	161	19
Total	1486	173

Source: Committee for IDPs in Man

There are some humanitarian support mechanisms (WFP food-aid) in place for IDPs who have returned to their areas of residence. Between the 14th-20th April, WFP in partnership with ICRC WFP provided 5,515 returnees with rations and commenced food for work programmes in Zouan Houien, Bin Houye and Man.

The general council of Danané has presented a project for peace and reconciliation in the department of Danané. During the crisis many fled from this area, particularly from Bin Houye and Zouan Hounien. The project is comprised of various different stages including 1) facilitating inter-community dialogue and building social cohesion, 2) sensitisation of local authorities (formal and informal) and 3) addressing the specific cases of IDPs in the prospect of their return."

Peace process promotes return but obstacles remain (2007)

- Land and property rights are among some of the main challenges faced by returnees
- Returns were recorded throughout 2006 but because of lack of land access secondary displacement has also taken place
- There are no reliable figures with regard to returnees
- Insecurity remains the major obstacle to return

IRIN, 5 April 2007

"The new peace deal may bring a new set of problems. "Now they say we are going to return but will we have the right to our plantations?" asks Kouassi.

Michel Tia, head of the regional IOM bureau in Duekoué, said the agency was trying to accelerate the return process to further help people like Kouassi and his family who do not receive the same assistance as those in the displaced camp in Guiglo.

Humanitarian organisations held negotiations with landowners to help ease people back into their communities but many challenges remain.

"Houses are nonexistent in the villages they are returning to," said Tia. "Everything was destroyed. We have thought of putting up tents. The displaced [at the Guiglo center] are used to that and afterwards we will think about rehabilitating the houses to settle them definitively."

Amadou Malgré Ouédraogo, 60, is one of the leaders of the Burkinabe community at the Guiglo camp. He said his garden of peppers, beans and eggplant is embarrassing compared to the hectares he once farmed. But he is resolved to restart his life once he returns to his village.

"I lost everything and now in the name of peace we are obliged to accept the situation," he said. "But that will not be easy if they do not guaranty us a minimum of land to cultivate."

IOM, 23 March 2007

"IOM has assisted a first group of some 178 internally displaced persons (IDPs) return to and resettle in their areas of residence in Western Cote d'Ivoire.

The group, made up mostly of West African migrant workers who had fled ethnic strife in 2002 and 2003, left the IOM-run Centre for Assistance to Temporary Displaced Persons (CATD) in Guiglo on Wednesday for three villages in the prefecture of Toulepleu, on the Liberia border.

Upon arrival in Péhé, Taibly and Diail, the returnees and vulnerable families in the host community received food and non food items such as tarpaulins, blankets and kitchen kits, which had been

pre-positioned ahead of time by IOM. More food assistance, seeds and tools will be distributed next week by WFP and FAO.

This first return and reintegration operation follows extensive efforts deployed by IOM over the past year to promote reconciliation between communities of displaced West African migrant workers and host communities over complex land issues.”

UNHCR, 23 March 2007, p. 6

“There are no reliable figures on the return movement, which has already started on a small scale. One figure, which was collected by IOM and the NGO Cap Anamur in June 2006, concerned 300 IDPs who returned to their places of origin from Duékoué and Yamoussoukro. Some of these returnees have, however, recently moved again following insecurity in Blody and Fengolo in the *Zone de Confiance*.”

US Department of State, 6 March 2007, para. 2.d

“During the year an estimated 40,000 IDPs returned to their areas of origin, some without external assistance. UN agencies and local authorities also facilitated the small-scale return of IDPs to several locations in the west of the country with varying degrees of success. The displacement patterns often complicated the return of IDPs. For example, the displaced Burkinabe and other settlers living in the Guiglo IDP camp said that their plantations around the western town of Blolequin, south of the Zone of Confidence, were being occupied by indigenous Guere populations, who themselves had been displaced from their land in the Zone of Confidence at the beginning of the crisis. The government had not addressed this situation by year's end.

[...]

In late 2005 the government attempted to forcibly expel approximately 200 IDPs from a Catholic mission in the western town of Duekoue to compel them to return to their villages. Some of the IDPs cited security concerns and refused to return. The subprefect of Guehieby, located in the Zone of Confidence, used limited local funds to rent private homes for the IDP families, and families were forced to share overcrowded houses or take up residence in abandoned houses. The Catholic Mission permitted a number of IDPs to remain until alternative arrangements were made.”

UN Human Rights Council, 18 October 2006, para. 53

“Everyone who spoke to the Representative of the Secretary-General, particularly displaced persons themselves, stressed that all displaced persons would like to return to their region of origin. The Representative of the Secretary-General was unable, however, to collect reliable information on the number of people who had already returned to their place of origin. In most cases, displaced persons believe that the conditions for their return are not in place, especially with regard to security. Many of the individuals questioned spoke of material problems related to their possible return – basically their increasing poverty and problems related to the destruction or occupation of their homes in their place of origin. The total absence of State organizations in the zone of confidence and the absence of the government administration in the north of the country are also obstacles to return.”

HUMANITARIAN ACCESS

General

Roadblocks impede humanitarian access (2007)

- Roadblocks mounted after inter-community clashes prevent access to UN agencies and NGOs
- The tensions erupted around Guiglo in February 2007 calmed down after a few days allowing the international community to resume their operations

UN OCHA, 4 March 2007

"Le 25 février 2007 à Glopoudi, à 15 km nord de Guiglo, des individus armés non identifiés auraient attaqué un autochtone Guéré, le blessant grièvement à la mâchoire. A la suite de cet incident, la situation est restée très tendue entre populations autochtones et allogènes sur l'axe Guiglo-Bloléquin. Plusieurs barrages ont été érigés à Glopoudy, Zouan, Domobly et Mona. Le 26 février 2007, une équipe du HCR se rendant à Toulepleu procéder au rapatriement des réfugiés Libériens a été bloquée à Zouan. Une autre équipe UNICEF en mission à Toulepleu a été obligée de rebrousser chemin sur Guiglo. Des patrouilles militaires des Forces Impartiales (FI) ont été également refusées d'entrer tant à Domobly qu'à Glopoudy. Dans l'après-midi du 27 février, la situation s'est davantage dégradée lorsque des instituteurs venant de Bloléquin pour Guiglo, accompagnés d'une escorte militaire, ont été bloqué par des jeunes de Glopoudy qui ont par ailleurs désarmer les militaires. Les FDS de Bloléquin sont venus en renfort à ceux de Guiglo pour rétablir l'ordre et récupérer les armes auprès des jeunes. La situation sur l'axe est redevenue calme le 1er mars 2007, le HCR a pu organiser le rapatriement de 124 réfugiés Libériens dont 17 venus du camp Peace Town de Nicla, et le reste est venu de Toulepleu et environs."

NATIONAL AND INTERNATIONAL RESPONSES

National response

Overview: National response (2009)

The declared overarching goal of the government's IDP plan is the return of all displaced people to their original homes. The Ouagadougou Accord focuses on the drafting of a national strategy document to facilitate the return of IDPs, and remains silent on the right to resettle in another part of the country or integrate locally, as prescribed in the Guiding Principles on Internal Displacement.

Some IDPs have benefited from government support to return home. The government launched a project to this end from 2007 until February 2009 (Fraternité Matin, 20 April 2009). The project was implemented by the Ministry of Solidarity and War Victims, the government focal point on IDP issues, with the support of the Swedish government and UNDP. 2,407 internally displaced heads of households reportedly benefited both from logistical and material assistance for their return.

Confusion over the roles and responsibilities of different government bodies has hampered the national response. An inter-ministerial committee was set up in 2007 to coordinate the protection of and assistance to the country's IDPs, but it has consistently suffered from a broad lack of high-level participation. Elements of a national legal framework upholding the rights of IDPs, including a bill defining compensation mechanisms for war victims including IDPs, were still awaiting signature in April 2009, years after they were initially drafted. In April 2009, the Minister of Solidarity and War Victims publicly voiced its frustration over the lack of engagement of the rest of the government and the limited financial commitment in support of IDPs (Fraternité Matin, 20 April 2009). However, having cleared its arrears with most of its multilateral creditors and having gained the approval of the International Monetary Fund (IMF) for a three-year arrangement under the Poverty Reduction and Growth Facility (PRGF) in March 2009, the government should now have more room for higher spending on pro-poor policies and post-conflict needs (IMF, 27 March 2009).

National developments on the issue of children and armed conflicts (2008)

- Positive national developments have been recorded on the issue of children and armed conflicts. Côte d'Ivoire was among the conflicts designated by the UN Security Council for the setting up of a Monitoring and Reporting Mechanism (MRM) on six grave violations of children's rights (including child recruitment and use) established by its Resolution 1612 (2005) on children and armed conflict.
- The government promised the UN Special Representative for Children and Armed Conflict in September 2007 to create an inter-ministerial structure to co-ordinate work on the protection of children associated with armed groups and armed forces

Coalition to Stop the Use of Child Soldiers, May 2008, p.120

"Côte d'Ivoire was among the conflicts designated by the UN Security Council for the setting up of a Monitoring and Reporting Mechanism (MRM) on six grave violations of children's rights

(including child recruitment and use) established by its Resolution 1612 (2005) on children and armed conflict. The action plans by FAFN and pro-government militias for ending the use of child soldiers were the first such action plans to be negotiated by the UN under the framework established by Resolution 1612 (2005).

The UN Special Representative for Children and Armed Conflict visited Côte d'Ivoire in September 2007. Although the Ouagadougou agreement made no explicit reference to children, the Special Representative obtained firm commitments from the government and non-government actors with regard to the protection of children associated with armed groups and armed forces. In particular, the government promised to create an inter-ministerial structure to co-ordinate work on these issues. The Special Representative also stressed the importance of ending the use and involvement of youths in political violence.

There were allegations of other serious violations of children's rights, including the trafficking of children and the use of child labour particularly in cocoa plantations. In June 2007 UNICEF reported that it was working with the co-operation of the government and the Forces nouvelles, particularly along the borders, to curtail trafficking, and had intercepted 100 children. Sexual violence against women and girls by members of, or persons affiliated to, government forces, armed groups and pro-government militias took place in a climate of widespread impunity. There were also allegations of UN peacekeepers involved in sexual exploitation and abuse of women and girls.

At a February 2007 ministerial meeting in Paris, Côte d'Ivoire and 58 other states endorsed the Paris Commitments to protect children from unlawful recruitment or use by armed forces or armed groups and the Paris Principles and guidelines on children associated with armed forces or armed groups. The documents reaffirmed international standards and operational principles for protecting and assisting child soldiers and followed a wide-ranging global consultation jointly sponsored by the French government and UNICEF."

Government sets up committee for IDP protection (2007)

IDMC, 8 February 2007

"The Ivorian government [set up](#) an inter-ministerial committee to coordinate the protection of and assistance to the country's estimated 750,000 IDPs, at the end of January in Abidjan. This followed the recommendations of the First Conference on Internal Displacement in West Africa, held in Abuja in 2006. With the country's economic, social, humanitarian and security situation [deteriorating](#), the consultative committee is charged with proposing strategies and drafting a national action plan on IDP protection. While the Ivorian government and the rebels [hold](#) talks in Burkina Faso, IDPs are in an increasingly precarious situation. Insecurity, impunity and lingering tensions based on nationality and voting issues have prevented large-scale returns. The most challenging areas are government-controlled parts of the west and the Zone of Confidence patrolled by UN and French forces, whose mandate was [extended](#) until the end of June 2007. Human rights violations, including killings, disappearances and death threats, are a common occurrence, [according](#) to Refugees International."

[Click here to access the text of the decree creating the inter-ministerial committee](#)

[Click here to access the minutes of the meetings \(January to May 2007\) of the committee](#)

International response

Overview: International response (2009)

The humanitarian community has decided to focus its resources in 2009 on IDP protection and resettlement in the west, and nutrition and food security in the north (OCHA, 22 January 2009). Other early recovery and development needs would be addressed by other bodies and funding mechanisms, such as the two trust funds set up by UNDP (one for the elections and the other for the larger government programme on crisis recovery) in an effort to facilitate external funding (OCHA, 3 July 2008). Operational agencies have increasingly shifted to early recovery activities, and the humanitarian community has issued an appeal entitled *Critical Humanitarian Needs* instead of a CAP for 2009.

The government and the international community have tried to include guarantees for the sustainable return, resettlement and reintegration of IDPs in the UN Development Assistance Framework (UNDAF) for the period from 2009 to 2013, to “consolidate peace and contribute to durable and equitable economic recovery” (UN, 3 July 2008). The UNDAF, the first UN joint planning exercise in Côte d'Ivoire since the crisis, recognises that challenges such as the sustainable return of IDPs will not be resolved if the causes of their displacement are not addressed. Foremost among these are access to formal legal identity and access to land. At the same time, comprehensive mapping of return movements and assessment of both returnees' needs and IDP's intentions should be undertaken.

Various funding mechanisms have been used to support return movements and IDPs (2008)

- Both the CAP and the Central Emergency Response Fund (CERF) have proved useful funding mechanisms in support of activities benefiting IDPs and returnees
- In 2008, \$6.4 million were allocated in support of humanitarian operations from the under-funded emergencies window of CERF
- With regard to early recovery programmes, UNDP has set two trust funds to facilitate and accelerate reception and disbursement of external funding
- Before granting additional funding, the World Bank has requested better transparency in the cocoa sector

UN OCHA, 3 July 2008, pp. 5-6

"Since the 2007 Mid Year Review (MYR) relief assistance to, and protection needs of, IDPs has remained a strategic priority, which the 2008 Common Humanitarian Action Plan (CHAP) further emphasised. As a result, humanitarian actors continued to provide effective and coordinated support (balanced and inclusive between intervention sectors) to ongoing return movements, especially in the western parts of the country, thanks to the funds received from the under-funded window of the Central Emergency Response Fund (CERF). On 1 February 2008, the Emergency Relief Coordinator allocated an amount of \$6.4 million in support of humanitarian operations in Côte d'Ivoire from the under-funded emergencies window of the CERF.

Under the leadership of the Humanitarian Coordinator, humanitarian actors decided to use the grant to strengthen the humanitarian response in support of return dynamics in the western parts of the country, in line with the strategy of the 2008 Consolidated Appeals Process for Cote d'Ivoire.

[...]

As humanitarian interventions focus on providing response to existing relief and protection needs of IDPs, returnees, refugees and other vulnerable groups in host communities, needs related to early recovery and sustainable development are being addressed by the appropriate actors through the relevant programming and funding mechanisms including the Government-led "Programme de Sortie de Crise" (PSC) and two United Nations Development Programme (UNDP) administered Trust Funds (one for the PSC and one for Elections) established to facilitate and accelerate reception and disbursement of external funding."

UN OCHA, 19 September 2007, pp.18-19

"CERF response: CERF provided rapid response funds to address the relapse of violence in the West of the country in 2006 and address IDP flows. It served as a mechanism to fill gaps in the under-funded CAP and provided funds for vaccination campaigns.

CERF Allocations for Ivory Coast (March 2006 – April 2007)

Appeal	CERF funding (window)	Comments
Epidemic Outbreaks	SUS 2.7M (rapid response)	
IDP crisis	SUS 750K (rapid response)	
	SUS 4M (under funded 2006)	
	SUS 4.5M (under funded 2007)	
Total	\$11.95 M	

Source: CERF Secretariat

Decision-making: The CAP is formulated by all participating UN agencies and organisations and forms the basis for coordinated (humanitarian) response. CERF proposals were formulated by UN agencies and endorsed by UNCT and RC/HC.

Other funding mechanisms: There is also a small ERF of £15,000."

On the other hand, the Government needs to provide better reassurances on its governance before other funding mechanisms open up.

Reuters, 6 September 2008

"The World Bank has ordered Ivory Coast to tackle "serious corruption" in its lucrative cocoa industry, saying it will not lend money to the country unless it sees better governance of the sector.

Obiageli Ezekwesili, World Bank vice president for the Africa region, said it would be "absolutely unacceptable" to support reducing poverty while the poor were being denied adequate reward for their work.

On Friday, Ezekwesili said Ivory Coast could reach the World Bank's debt relief decision point by the end of the year and then have more than \$3 billion of external debt written off by mid-2009, pending an assessment by sister organisation the International Monetary Fund.

Over the next three years, some \$800 million of Bretton Woods funding could be available to the world's top cocoa producer, which is struggling to organise elections in November, aimed at ending a crisis sparked by a brief war in 2002-2003."

References to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles

- References to the Guiding Principles in the national legislation
- Other references to the Guiding Principles (in chronological order)
- Availability of the Guiding Principles in local languages
- Training on the Guiding Principles (in chronological order)

References to the Guiding Principles in the national legislation

None

Other references to the Guiding Principles (in chronological order)

As of October 2008, a draft bill on IDP protection with references to the Guiding Principles remained in draft form.

Strategy for the Assistance and Protection of Internally Displaced Persons, developed by UN OCHA in Cote d'Ivoire in 2007, sets out immediate and mid-term priorities for ensuring durable solutions along the lines of the Guiding Principles.
Source: UN OCHA
Date: 20 December 2007 (draft awaiting input from the relevant ministries)
Document: Les PDIs en Côte d'Ivoire - priorités immédiates et à moyen terme

Strategy for the Assistance and Protection of Internally Displaced Persons, developed by UN OCHA's IDP Adviser in Cote d'Ivoire at the beginning of 2004, sets out objectives along the lines of the Guiding Principles, e.g. the need for durable solutions for returning IDPs.
Source: UN OCHA
Date: 17 January 2004
Document: Proposition de stratégie d'assistance et de protection des personnes déplacées (endorsed)

Availability of the Guiding Principles in local languages

Guiding Principles in [French](#)

Training on the Guiding Principles

OCHA and UNICEF-CI training workshop: OCHA and UNICEF-CI jointly organised a workshop in Abidjan on 14 and 15 May to develop a Code of Conduct for all humanitarian workers in Cote d'Ivoire, as well as a strategy to improve assistance and protection of vulnerable groups, including refugees, the sick and wounded, minorities, the elderly, handicapped individuals,
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women and children, and particularly IDPs. The workshop which was part of the effort to increase complementarity between humanitarian and military initiatives, was attended by Government Ministries, UN agencies and local and international NGOs as well as the FANCI (Ivorian national armed forces), ECOMICI and French Operation Licorne representatives.

Sources: UN OCHA; UNICEF

Date: 14-15 May 2003

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"On the basis of the consensus reached during the seminar, humanitarian actors will soon finalise a Code of Conduct for all humanitarian workers in Cote d'Ivoire and will revise their strategies for assistance to and the protection of vulnerable populations, particularly internally displaced populations (IDPs)" (UN OCHA, 16 May 2003).

OCHA and UNICEF-CI training workshop: OCHA and UNICEF-CI jointly organised a workshop in Abidjan on 16 May directed to the impartial forces ECOMICI and the French Operation Licorne Forces to the sensitise them on humanitarian intervention.

Sources: UN OCHA; UNICEF

Date: 16 May 2003

Document:

"On the basis of the consensus reached during the seminar, humanitarian actors will soon finalise a Code of Conduct for all humanitarian workers in Cote d'Ivoire and will revise their strategies for assistance to and the protection of vulnerable populations, particularly internally displaced populations (IDPs)" (UN OCHA, 16 May 2003).

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